



ETHICS

Classroom Study Material Part-1



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ETHICS AND HUMAN INTERFACE

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1. Introduction

Student Notes:

Ethics plays an immensely important role in the human society. It helps us to identify moral values, understand our behavior and shape our decisions, both in our personal and public life. We study ethics as a subject to raise our awareness, resolve moral dilemmas and be a better person. Following example highlights the **relevance of ethics in the decision making-**



The protagonist in the epic film, Judgment at Nuremberg, Chief Judge Dan Haywood was faced with a strange predicament. He presided over a tribunal that was going into the trial of four judges of Germany. The charge was that these four had used their offices to abet forced sterilization and ethnic cleansing of certain groups (Jews, homosexuals, etc.) during Hitler's Nazi regime. On the other hand, there were arguments that since judges and civil servants do not make laws, but only carry out the laws of their country, they should not be punished. Could they really stand up to the injustice and cruelty when the state machinery could very well be used against them? Or was the excuse of 'doing my duty' just a veil behind which they could shrug off their moral and legal responsibility? Moreover, the Cold War was heating up and no one wanted any more trials in Germany, as it could lead to negative public opinion. It was expected that the tribunal would free the judges without sentencing them to imprisonment. The dilemma before the tribunal, therefore, was whether it was right to forget the past and let it be or to punish all those who abetted implementation of such inhuman acts? The trial goes on to show that "in a situation of crisis, even the extraordinary, compassionate and empathetic men/women can delude themselves to commission of heinous crimes beyond imagination". Judge Haywood did not give into the pressure and decided the case on its merits – punishing those against whom charges of conscious participation in the government organized cruelty and injustice could be proved.

We tend to hold opinions on a variety of subjects. How is that opinion shaped? How do we define whether a particular event, decision or a fact, however unconnected to us, is good or bad, right or wrong?

Many people will not be concerned about how much money a cricketer in India earns. But how do we co-relate their earnings with other equally demanding, but not as glamorous sports? Or of a hardworking traffic policeman with a hardworking corporate employee working in an air-conditioned office in Mumbai? Does the right to bear child also includes the right to terminate the child's life? Is saving several lives at the cost of one life justified?

These questions **do not have simple yes-no answers**. But the framework which we use to evaluate these questions cannot be arbitrary. It has to be reasoned. What can be the moral argument for or against such discrepancies?

Further, as a civil servant, not only does one have to take decisions which impact the **lives of others but has to make choices for oneself as well**. For example, does accepting tenders from a firm run by a relative amount to conflict of interest? What should be correct way to approach such situations? In this chapter we will **try to draw a basic framework of reasoning** that can be helpful for us to handle and answer such moral dilemmas.

What is 'Ethics'?

The term 'ethics' is derived from the Greek word '**ethikos**' which can mean custom, habit, character or disposition. At its simplest, ethics is a system of thinking about the moral principles. It is the investigative study of '**What is the right thing to do?**' They affect how people make decisions and lead their lives.

Thus, ethics is a system of moral principles that helps us differentiate between right and wrong, good and bad, fair and unfair. These can be said to be the **guiding light for human conduct**. The change in human behavior and action due to application of ethical principles helps us to build a humane society where everyone can live in peace and harmony.

Whether or not there are any **universal moral principles that can be applied irrespective of person or circumstance is a debate** that philosophers have had throughout history. Every society has tried to codify the principles of good or acceptable conduct many times in past. Bad or unacceptable conduct has been discouraged or punished. Religious views on ethics, for example, tend to be universal. The concept of Categorical Imperative as proposed by Immanuel Kant gives a test of determining universality of an act.

What is not Ethics?

(a) **Ethics is not religion:** Many people are not religious, but ethics applies to everyone. Most religions do advocate high ethical standards but sometimes do not address all the types of problems we face.

Prof. M. V. Nadkarni explains, it is possible to have ethics without religion, **but religion without ethics is not worth its name**. One can be very ethical without being religious, but cannot be religious without being ethical. In spite of this a combination of ethics with religious can be useful.

(b) **Ethics is not following the law:** A good system of law does incorporate many ethical standards, but law can deviate from what is ethical. Law may have a difficult time designing or enforcing standards in some important areas, and may be slow to address new problems. For example: marital rape is not illegal, however it is considered unethical.

(c) **Ethics is not following culturally accepted norms:** Some cultures are quite ethical, but others become corrupt or blind to certain ethical concerns. For example, the prevalence of slavery in the United States before the Civil war or the caste system in India.

2. Ethics and Human Interface

Ethics operates in our lives through human interface. These **interfaces** are made of human institutions like family, peer group, school, community, market and state etc. Understanding the relation between our thinking and these interfaces brings out the essence i.e. underlining core principles that influence our behavior.

2.1. Essence of Ethics

The **essence of ethics** lies in the requirement of common ethical principles to ensure our collective goals of peace, harmony and stability in society. In public life, it can be best reflected in values of accountability, empathy, honesty, integrity, probity, compassion etc.

The **most basic need for ethics** lies in the fact that we do not automatically know what is beneficial for our lives, and what is detrimental. We constantly face complex choices that affect the length and quality of our lives. We must choose our values, where to live, how to spend our time, whom to associate with, whom to believe? We must choose what to think about, and how to go about achieving our goals. Which character traits to acquire, and which to eliminate? Which of our emotional responses are beneficial, and which, detrimental? By what criteria should we judge others, and on what basis to interact with them? To the extent that we default

on deliberation, we are at the mercy of social and emotional factors that may be far from optimal.

Ethics is about the choices that we make or fail to make. We are aware of our conscious thoughts and of our ability to make informed, intelligent choices - that is what we call free will. We are aware that the choices that we make have consequences, both for ourselves and for others. We are aware of the responsibility that we have for our actions. But, we do not have reliable inherent knowledge or instincts that will automatically promote our survival and flourishing. We may have an inherent emotional desire to survive and avoid pain, but we do not have innate knowledge about how to achieve those objectives. A rational, non-contradictory ethic can help us make better choices regarding our lives as well as social well-being.

The choices which individuals make **may become rigid over a period of time** into beliefs and value system of a society. Legal system of a country greatly depends upon these values and beliefs. Think of surrogacy laws: does the freedom to become a biological parent gives us the authority to put monetary value on something as intrinsic as motherhood? The law on surrogacy in India reflects the Indian value system whereas in other countries, it reflects theirs'.

Ethics or Moral philosophy contemplates what is wrong or right. As a discipline, it has three branches – Meta-ethics, Normative ethics and Applied ethics.

- **Meta-ethics** investigates the broader questions, such as 'how can morality be defined?', 'What is justice?' etc.
- **Normative ethics** is concerned with what we *ought to do*. It provides a framework for deciding what is right or wrong. Various philosophers have tried to give this framework through reasoning, for e.g. deontological ethics of Kant, utilitarianism of Jeremy Bentham and John Stuart Mill, virtue ethics of Aristotle.
- **Applied Ethics** deals with practical issues of moral importance such as capital punishment, surrogacy, and dilemmas in day-to-day life, etc. (Further refer to section on dimensions of ethics below)

2.2. Key Terms: Beliefs, Values, Norms, Principles, Morals, Ethics

The terms beliefs, norms, values, morality, ethics and principles are used interchangeably very often but there are subtle differences between them. One can think of these terms in an evolutionary framework to appreciate the differences – from an individual's beliefs to a social norm to a country's law. A human being thrives on what he/she believes in. A community goes by what they think is acceptable. A society acts based on how they are expected to act. These are called, respectively, beliefs, norms and values.

Beliefs

- Beliefs are **basis of our thinking**. A coffee-mug lies on my table. I believe that a coffee mug lies on my table. Ram killed Ravan according to Ramayana. Someone might believe that Ram did in-fact kill Ravan.
- Beliefs come through our **experiences** and influence our ideas, viewpoints, knowledge and attitudes.
- They create fables, myths, folklore, traditions, and superstition. They can also be true and verifiable facts, history or legends.
- Beliefs lay the foundation of a cultural group, but they are often invisible to the group that holds them.
- They are **important because they give us hope**. A human being thrives on what he/she believes in. However, beliefs are not fixed, they can be changed. Peripheral beliefs can also be changed.
- Two people might have different beliefs about a phenomenon – as simple as a glass being half empty or half full, to complex theological questions such as how did earth or life come to being?

- Beliefs **evoke emotions**, but not-necessarily actions.

Values

- Values denote **preference** – for good or bad. They are important and lasting beliefs or ideas about what is good or bad and desirable or undesirable.
- **Values come through** external environment, personal experiences and human interfaces like family, school etc. They are expressed generally **in the terms of 'should'**.
- Our interest in the stories like Ramayana and Mahabharata make us learn certain values such as elderly respect, duty, honesty, integrity, etc. One can also assign negative values to acts such as kidnapping and insulting. We make judgment about how desirable or undesirable a thing is.
- Values thus act as **guiding principles** to move ahead. It has a major **influence on** person's behavior and attitude.

Norms

- Norms are generally **accepted social practices** that guides human behavior e.g. it is a norm to say thank you to helping hands as a mark of expressing gratitude.
- Norms functions as mainly as an informal guidelines in a particular group or community about right or wrong social conduct. They are a form of **collective expectations of community's** members from each other.
- Norms are a form of social control or **social pressure** on individual to conform, induce uniformity and check deviant behavior. They are expressed through social customs, folkways or mores.
- Norms provide **order** in a society. For e.g. in a traditional society, it is a norm that a son must obey his father's command and fulfill his wishes.
- **Non-conformity** to social norms can attract **punishment**. Punishment may be in form of being looked down upon, derision, scolding, boycott, imposing penance, etc. Laws are a later stage of evolution of norms, where the society has codified the terms of expected and unexpected behavior from its members. Those who are deviant are tried in a court of law and punished accordingly.

Norms, Values and Belief

- It is important to note that for an individual, norms are imposed **externally** whereas beliefs and values are **internal**.
- Norms are a **specific** guide to behavior whereas values provide **indirect** guidance only.

Principles

Values, beliefs, morality vary from individual to individual. Ethics may also differ in different communities and culture. However, Principles are **moral rules** that are considered as universal in nature e.g. honesty is the best policy can be an individual principle to follow as it is universally believed. Principles are about universal truths and standards such as fairness, truthfulness, equality, justice etc.

Morals

- Morals are the desired values and beliefs about what is right or wrong, acceptable or unacceptable in a particular situation.
- While they do prescribe what the right conduct is, morality is ultimately a **personal compass**, a personal choice. Think of religion, say Jainism, which has its five principles (Truth (Satya), Non-Violence (Ahimsa), Non-stealing (Asteya), Celibacy (Brhamacharya) and Non-attachment (aparigriha)) that act as moral guides for people following Jainism. However, it ultimately is the individual choice of which morals do they actually follow or use to judge rightness or wrongness of an action. Those who are indifferent to right or wrong are called **amoral**, while those who do evil acts are called **immoral**.

- **Morals may change over time.** Historically, religion has been an important source of morals. With new knowledge, a person's morals may change. For example, homosexuality - an act still considered unnatural and hence, immoral, is gaining more acceptance throughout the world. Some morals transcend time and cultures. For example, selfishness is considered as immoral, whereas loyalty and telling the truth are considered as moral.

Ethics

- **Knowledge of ethics** provides the logical framework for understanding and interpreting right and wrong in a group or a society.
- Ethics (also understood as Moral Philosophy) is concerned with questions of **how people ought to act**, and the search for a **definition of right conduct and the good life**.
- Here, ethics involves **systematizing**, defending, and recommending concepts of right and wrong behavior. There may be different approaches to arriving at the right conduct i.e. ethical behavior. However, all these approaches are **reasoned frameworks**. Major approaches are virtue based, duty based and utility based.
- In a practical sense, ethics refers to **rules** concerning upright behavior. Many organizations have rules concerning the standards of behavior expected of their employees. For example, a hospital may require that doctors prescribe the treatment which balances the requirement, effectiveness and cost to the patient. There is no legal requirement, but it **ought to be the way in which a doctor acts**. Medical profession requires that doctors must respect the autonomy of the patients (autonomy as in right to choose the type of treatment depending on means available, confidentiality of personal information, etc.). A financial company may require that investment details of its clients should not be revealed by its employees. The so called '**codes of ethics**' are there because a person's own morals may be silent on these aspects. These codes thus act as guides for right conduct.
- Ethics explains the **guiding principles** to decide what is right or wrong. They are the standards which influence the decisions made by a person.
- Note the word 'guiding principles' - ethics are externally imposed. Since they come from **external source**, they tend to be **consistent** and **objective**. They require the person to act in specific ways. Digression from these standards is considered unethical and may be informally disapproved or censured.
- **Truthfulness, honesty, integrity, respect, fairness** are examples of ethical principles.

Ethics and Morality

Ethics and morality seem to carry the same meaning and they are generally used interchangeably. However, some philosophers make a distinction between the two.

Ethics differs from morality in that it denotes the theory of right action and the greater good, while **morality** indicates their practice at the individual level. Ethics is the science of morals.

Ethics and morality is practiced through morals.

Elaboration: Consider science. Science is not there in nature in a systematized form. It has to be derived based on observations and practice. Once scientific study has been done and results arrived at, they are subjected to tests in the real world. Once it gets established, it is prescribed as the correct way to go about doing things, such as construction of a multistory building based on principles of physics.

- Ethics is where one studies about moral principles. Morals are the practice of this knowledge.
- Ethics thus are rules which govern the conduct of all the members of a group (such as doctors, lawyers, policemen, cultural group or society). Morals are those standards which the individual sets up for himself/herself.
- Both ethics and morals may be embodied in conduct rules, which may have the force of law. Otherwise, **morality** means individual propositions and is subjective by nature as it varies from person to person while **ethics** are collective propositions of society and thus are more objective compared to morality.

- Morals are principles which help guide a person about rightness or wrongness of an act. Ethics are principles of right conduct –i.e. what should be the right way in which a person should act in a situation.

The difference clearly comes out in the **classic case of a defense lawyer**. A lawyer may consider murder to be a reprehensible act, deserving severe punishment. But a defense attorney has to be unbiased and her professional ethics require her to defend the client to the best of her abilities, even if she knows that the client is guilty. Everyone, even a terrorist, deserves a fair trial in a court of law, not a kangaroo court or mob justice.

- An individual's morals can be informed by the broader rules of ethics. Believing that theft is wrong may stem from the ethical principle of respect of private property of others.

Take **example of a civil servant** being involved in two different illegal acts. Taking bribe for doing his/her duty is a crime under Prevention of Corruption Act. It is also a violation civil service ethics. On the other hand, being involved in a relationship outside marriage is a moral lapse. Similarly, consider a police officer who indulges in consumption of drugs. Society considers such person to be of weak morals. Further, it is unethical to be inebriated if one is responsible for maintaining law and order. Moreover, suppressing information from the department about his involvement in such activities will also be a breach of departmental ethics. Finally, it is also illegal to consume banned substances under the law.

Ethics and Laws

Ethics is a **reasoned framework of moral principles**, which is concerned with what is good for individuals and society. However, **law** is **structured system of rules and regulations** enforced through certain authority to govern individual's behavior, actions and social relations.

Relationship between law and ethics

Similarities:

- Both laws and ethics are systems which maintain a set of moral values and prevent people from violating them. They both provide guidelines to people of what they may or may not do in certain situations. Most laws represent the minimum standards of ethical human behavior.
- It is when certain ethical principles become widely accepted, they are codified into laws. For example, 'motherhood' in our society is considered to be sacrosanct and does not trade for monetary value. Therefore, the law regulating surrogacy in India allows only altruistic surrogacy.



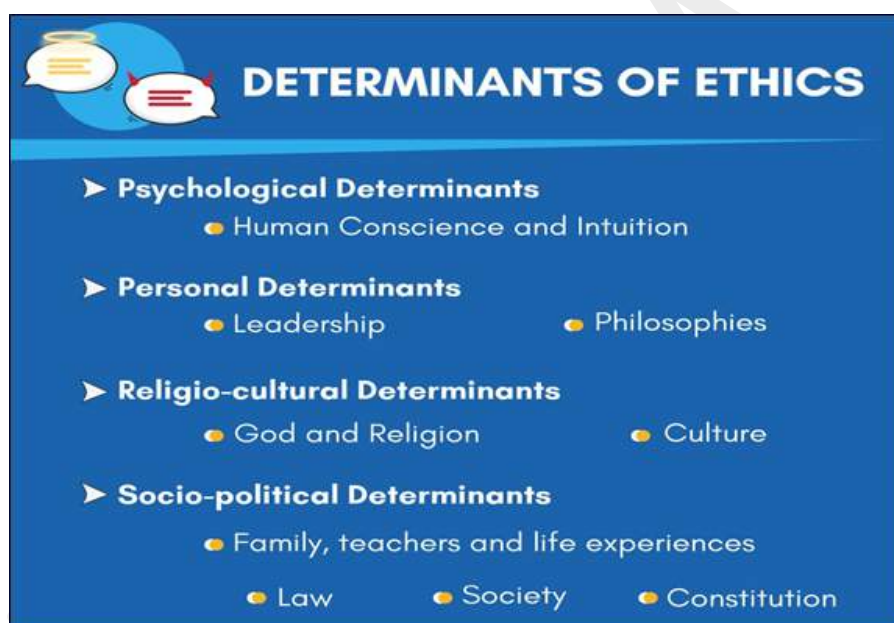
Dissimilarities:

- Foremost, law provides for punishment for violation- a legally enforceable action by the competent authority. Ethics on the other hand **may invite social sanction, but no legally enforceable punishment** in a court of law.
- There may be many areas where law does not exist or is silent. But **ethics and morals have a wider scope**. For example, the law will not bind a businessman to tell his competitor about their new client that has a reputation of not paying dues, but ethics will still guide judgment here.
- Ethics may vary from people to people because different people may have different opinions on a certain issue, but laws describe clearly what is illegal no matter what individual opinions people have of them. To some extent, ethics is not well defined, but laws are defined and precise.
- Ethics as a code of conduct may evolve as a society matures, but laws need to be changed through specific action of the legislature.

The **relationship** between law and ethics is **dynamic and a function of its time**. **Ethics guide laws**. Changing ethical and moral standards lead to amendment or invalidation of existing laws. For example, The Right to Information was enacted to codify the ethics of transparency in government functioning. Similarly, earlier homosexuality was widely perceived as unnatural and immoral. But with the social progression, Section 377 has been declared unconstitutional in so far as it criminalized “consensual sexual conduct between adults of the same sex”. Abrogation of Section 66A of the IT Act, 2000 which curtailed free speech was a classic case where progressive ethics of people helped reading down of a regressive law. As is clear from above analysis, **laws and ethics can be in conflict with each other or may reinforce each other**.

2.3. Determinants of Ethics

Our ethics is largely shaped by influences that determines how we live our lives in a society. These influences are called **determinants**. They inform the way in which an individual acts or takes decision and tells us what society expects from its members in a behavior. These determinants can be largely categorized as psychological, personal, religio-cultural and socio-political.



1. Psychological Determinants

- **Human Conscience and Intuition** – This school believes that what is good is good because it is good. Its goodness or badness does not need any justification. Accordingly, what is good or not can be **detected by the intuitive moral sense**. Basic moral truths are self-evident to a person who directs his/her mind towards moral issues. Please note that moral truths according to an intuitionist are not derived from rational arguments or from having a hunch or a feeling. They are simply realized by pondering over moral issues. **It is like an ‘aaha!!’ moment of realization.**

Conscience and Intuition

Human beings behave according to the knowledge they have and experiences they go through. Our conscious mind is what actively evaluates a situation and then takes decisions. However, our subconscious mind is a repository of all our past experiences and decisions. Although we do not actively summon our subconscious mind, there are, metaphorically, lightning fast calculations that tell us what to do or what not to do.

- **Intuition** is the ability to understand something instinctively, without the need for conscious reasoning. Our intuition, although seemingly totally random (as it is instinctive), is not always so. For example: One sees a cricket match and sees that Sachin gets out when he

smiles. Next time, if the person sees Sachin smiling while batting, he would probably think that he will get out. This is intuition. Although it seems totally random, it is based on our past experiences, observations or simply information given by others. However, intuition has no moral choice involved. It is merely an expectation of an outcome.

- **Conscience** is a person's moral sense of right and wrong, viewed as acting as a guide to one's behaviour. It also flows from our repository of experiences and knowledge. It is often referred to as the inner voice of reason. This inner voice may or may not involve elaborate reasoning, but it does concern with judging a situation as good or bad i.e. a moral choice is involved. Conscience can also be suppressed willingly. A person may choose to do something which his/her conscience opposes because there is some higher authority or a threat prohibiting the desired action. This leads to crisis of conscience.

2. Personal determinants

- **Leadership** – The leadership of a society or an organization or nation also helps to determine the conduct of their followers or admirers is ethical. For example – Indian democratic, liberal, secular, tolerant tradition has been the gift of our forefathers and makers of modern Indian society. However, leadership is also prone to unethical practices. It depends on the virtue of the leaders themselves. Thus, being ethical cannot always be equated to following the leader.
- **Philosophies** – Various philosophers and thinkers subscribe to different sets of ethics. For example – for a consequentialist, ethics in action is determined by its outcome while for a deontologist, it depends on the nature of the act itself. Thus, ethical values of an individual will depend upon the philosophy to which it was closer to in formative years.

3. Religio-cultural determinants

- **Culture** – The ethical principles of an individual are also influenced by the culture and the country in which she/he is based. For example - western culture seems to be individualistic while Indian culture is based on values of universalism and multiplicity. Even literature, scriptures etc. guide person's conduct. For example – Vedic literature, Buddhist literature etc.
- **God and Religion** - It advocates universal and ideal ethical standards. Religious textbooks deal with questions of how an individual should behave and how the society should be. For e.g. Christian Morality is one of the important sources of ideal individual behavior in west.

The conception of 'Ram Rajya' in India is more of an ethical society rather than a governance model. Religion based ethics trace the source to God - something is good because God says so, the way to live a good life is to do what the God wants. However, one should not identify ethics with religion. Because then ethics would apply only to religious people. But ethics applies to the behavior of the atheist as well. Also, the source of religion can scientifically be only traced back to humans. As such, it is dependent upon context, situation and experience and is subject to errors and revision.

4. Socio-political determinants

- **Society** - In any society, most people accept standards that are, in fact, ethical. However, one should not equate being ethical to "whatever society accepts" as society can deviate from **what is** ethical. An entire society or its large influential section can become ethically corrupt. For example, Nazi Germany or Stalinist Russia imposed on their citizens particular standards of living and tried to indoctrinate them. Caste system in India has continued through millennia because of approval of influential members of the society. Further, there are many issues where there is no social consensus. Thus, ethics cannot be equated with whatever society accepts.
- **Family, teachers and life experiences** – Parents, family and teachers shape the value system of a child. Their behavior, conduct and teachings influence the direction in which

the child steers. In fact, affiliations to same religion, customs and tradition are seen in same family. However, some also break free from the beliefs, notions and ideas of their parents and choose their own set of principles according to own free will. For example – a boy may consider girl child same as that of male child even if he and his sister was treated unequally by their parents.

- **Law** - The law often incorporates ethical standards to which most citizens subscribe. However, one should not equate being ethical to following the law. Laws, at times, can deviate from what is ethical. For example – slavery laws in US did not make slavery ethical. On the other hand, laws which banned slavery and gave equal rights reflect convergence of laws and ethics. Relationship between law and ethics has been detailed above.
- **Constitution** – Constitution of various countries also is a way to establish moral disposition of their society. For example – equality, accountability, democratic values are reflected in some country's constitution and autocratic, high-handedness, and inferiority, non-participative values are reflected in the framework of other countries.

Because, law, society, religion can deviate from what is ethical, one needs to constantly examine one's moral standards to ensure that they are reasonable and well-founded. Being ethical requires continuous effort in studying our own moral beliefs and our moral conduct and striving to ensure that we follow it in our routines. Thus, **individual by oneself** is also one of the most important determinants of ethics – everyone has emotional convictions or deep intuitions about the immorality of, say, murdering an innocent victim, about aborting a female fetus, or regarding child abuse.

Skill in addressing ethical issues can be learned and cultivated if we recognize the importance of doing so. The requirement is that we view our treatment of ethical problems as an ongoing process of designing the best courses of action for specific situations we face. This demands that we are able to establish a framework for understanding ethics in dynamic rather than static terms.

2.4. Consequences of Ethics

Consequences of ethics mean the outcome of human actions which are guided by ethical thinking. This means consequences also determine how good or bad an act is.

- It **can be measured** by happiness, suffering, pain, pleasure born out of human action.
- It **motivates or prohibits** one to do or not to do certain things. For example – If hard work guided by ethical values results in desired success then action itself gets justification to be good and effective but if action does not produce outcome then it will be treated as not efficient.
- Humans in general tend to **maximize pleasure from their actions**. However, some people prefer short term pleasure without consideration of long-term consequences while some may prefer temporary pain to ensure long term pleasure in future. For example – one may satisfy its sweet tooth or give in to their cravings while ignoring the health benefits which may cause pain in future. Others may exercise daily and practice self-control to ensure disease-free life in future.
- However, predicting consequences of human actions is difficult. There is whole theory of ethics that is based on nature of consequences. It is called Consequentialism. However, please note that 'Consequentialism' is just one part of 'Consequences of Ethics'. Consequentialism is an ethical theory which says that an act should be considered ethical if it is able to produce good consequences.

2.5. Dimensions of Ethics

Different ethical theories that inform the ethical thinking create various dimensions of the subject. Ethical theories are philosophical explanation to understand, explain and perhaps guide us in practice of making moral judgments. An ethical theory is not merely description of moral

beliefs of individuals, societies or cultures. A person pondering over ethics tries to answer the following questions:

Student Notes:

- A. The very nature and status of morality:** Is morality what god/religion says? Or is it the set of rules which human beings have designed for themselves to further their mutual self-interests? So what exactly is ethics, its definition and its scope?
- B. The nature and meaning of moral judgments:** Are moral judgments merely emotional in nature i.e. do they express our emotions and desires rather than being rational and reasoned? Can moral judgments be classified as true or false universally or are they dependent on context? E.g. 'Honesty is the best policy' - is honesty only a desirable trait in a person or is this statement a universal truth? If true, is there a context which is associated with it?
- C. The fundamental rules, principles and values justifying moral judgments:** Are consequences the only thing that matter in a decision or are there certain other principles which must be followed? Is human happiness more important than adhering to duty? Or is being virtuous more important than both? Any of these principles may underlie a moral judgment.
- D. Practical application of ethics:** Is stealing for the sake of feeding children justified? Should advancement in biology continue unhindered or should there be certain control over genetically modified babies? Should admissions in universities be based solely on merit or should there be affirmative action for people with relatively backward socio-economic background? What should be the parameters to decide merit?

The questions A-D are the different dimensions along which ethics is studied. These are categorized more specifically as Meta-ethics, Normative-ethics and applied ethics.

- 1. Meta-ethics** deals with the nature of moral judgments (questions in A&B). It looks at the **origins and meaning of ethical principles**. For example, when we talk of bioethics, meta-ethics will not answer the questions of right or wrong. Rather it tries to define the essential meaning and nature of problem being discussed. So it will examine 'what does it **mean** to ask whether genetic research is morally permissible?' 'What are the sources which we should consider in determining the ethical nature of genetic engineering? – is it god or the human made laws?'
- 2. Normative ethics** (questions in C) is concerned with the content of moral judgments and the criteria for what is right or wrong. It involves arriving at moral standards that regulate right and wrong conduct. In a sense, it is a search for an ideal litmus test of proper behavior. It is the branch of ethics concerned with establishing how things should or ought to be, how to value them, which things are good or bad, and which actions are right or wrong. It attempts to develop a set of rules governing human conduct, or a set of norms for action. **Under normative ethics we study different approaches to ethical questions.** A given situation has not one ideal solution, rather different values to different principles will lead us to different decisions.

Some of the important approaches of Normative ethics are:

- **Consequentialist approach** – According to this approach, ethics of an action is determined by its consequences, result or outcomes. The more good consequences an act produces, the better or righter that act was. Utilitarianism is one form. It states that people should maximize utility. **Utility** can be measured in terms of human welfare or well-being. In hedonism, it is said that people should maximize their pleasure. Thus, according to these, actions which maximize pleasure or welfare and minimize pain or suffering are ethical e.g. higher economic growth justifies the weak environmental and labor laws, glowing face justifies the use of harmful chemicals in beauty creams, and Growing revenue justifies the use of more commercials in TV programs.

The greatest happiness of the greatest number is the foundation of morals and legislation. - **Jeremy Bentham**

Student Notes:

- **Deontological approach** – According to this approach, ethics is based on what people do and not what was the outcome of that action. It is non-consequentialist as we can't show good outcomes to justify our actions. According to this, we need to **do the right thing** because it is right and avoid the wrong thing because it is wrong. Certain acts by themselves are unethical such as it is wrong to kill people, steal, tell lies etc. **Natural Rights Theory** (such as that espoused by Thomas Hobbes and John Locke), holds that humans have absolute, natural rights. These are in the sense of universal rights that are inherent in the nature of ethics and not contingent on human actions or beliefs. This eventually developed into what we today call human rights.

Immanuel Kant's Categorical Imperative roots morality in humanity's rational capacity and asserts certain inviolable moral laws. Kant's formulation is deontological in that he argues that to act in the morally right way, people must act according to duty, and that it is the motives of the person who carries out the action that make them right or wrong, not the consequences of the actions. Simply stated, the **Categorical Imperative** states that one should only act in such a way that one could want the maxim (or the principle) of one's action to become a universal law, and that one should always treat humanity as an end rather than means.

"An action, to have moral worth, must be done from duty" - **Immanuel Kant**

- **Virtue ethics** – It is person rather than action based. It focuses on the **inherent character** of a person rather than on the nature or consequences of specific actions performed. According to this approach, a virtuous person always does the right thing. He will do the same thing always in similar circumstances. Virtue ethics not only deals with the rightness or wrongness of individual actions, it provides guidance as to the sort of characteristics and behaviors a good person will seek to achieve. Thus, according to it, to build a good society, people should be helped to be virtuous people. Although list of virtues changes over time, yet certain virtues which more or less remains in the list are – justice, fortitude, temperance, self-care, fidelity.

"An unexamined life is not worth living." - **Socrates**

- **Contextualist approach** – It rejects prescriptive rules. According to this approach, right and wrong depend upon the situation as there are no universal moral rules or rights. Thus, each case is unique and deserves a unique solution e.g. At some places, lockdown during pandemic is justified due to worsening situation, but in other places may not be justified. U.S uses protectionism in global trade citing its situation.
- **Super-naturalist approach** – where ethics is attributed to God, that is, the only source of moral rules is God – whatever the God says is ethical. Thus, being ethical in your life means following what God says e.g. god made animals inferior to humans so animals can be used for human purposes as commodities.

3. Applied ethics (questions in D) – it attempts to apply ethical theory to real life situations such as it looks at controversial topics like war, animal rights and capital punishment. It has many specialized fields, such as engineering ethics, bioethics, geoethics, public service ethics and business ethics. It is used in determining public policy.

3. Applied Ethics: Specific Examples

3.1. Environmental Ethics

Environmental ethics is the branch of ethics that studies the relation of human actions and natural environment. Environmental ethics treat environment as a part of society. It is about

environmental values and societal attitudes related to protecting and sustaining biodiversity and ecological systems.

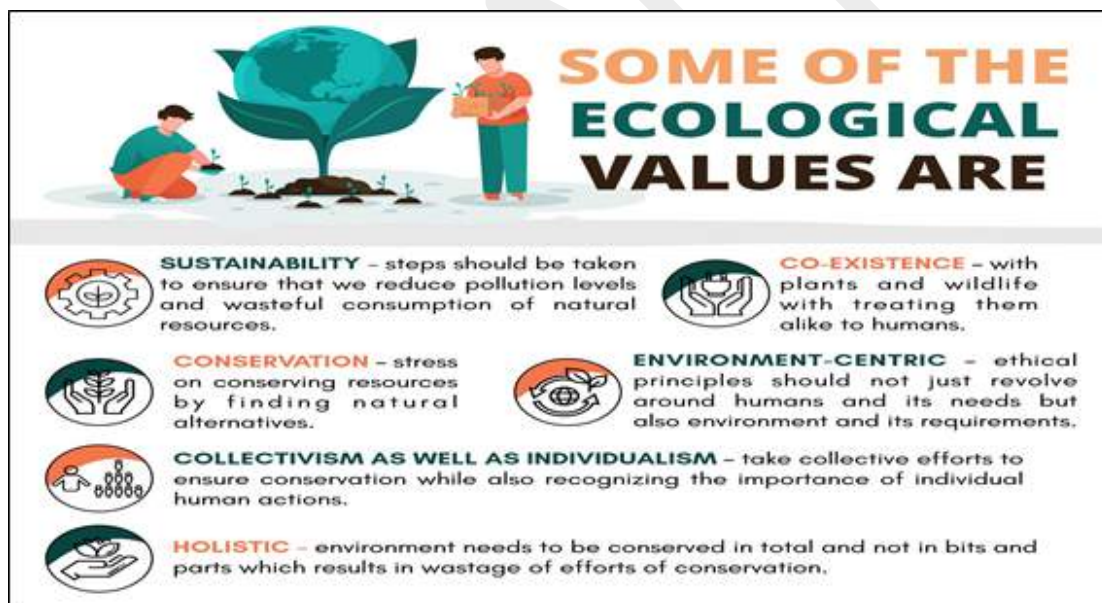
Student Notes:

Increasing pollution, depletion of natural resources, dwindling plant and animal biodiversity, the loss of wilderness, the degradation of ecosystems, and climate change are all part of a raft of “green” issues that have implanted themselves into both **public consciousness and public policy** in recent years.

The job of environmental ethics is to outline our moral obligations in the face of such concerns. The two fundamental questions that environmental ethics must address are: **what** duties do humans have with respect to the environment, and **why**?

The latter question usually needs to be considered prior to the former. In order to tackle just what our obligations are, it is usually thought necessary to consider first why we have them. For example, do we have environmental obligations for the sake of human beings living in the world today or for our future generations, or for the sake of entities within the environment itself, irrespective of any human benefits in terms of ecosystem services? Different ethical approaches give quite different answers to this fundamental question and has led to the emergence of quite different environmental ethics.

Ecological values are part of Indian tradition where nature was revered for its services to mankind. Various environmentalists such as Baba Amte have also spread awareness about ecological balance and wildlife preservation. They believed that humans have to live in harmony with nature, and not by exploiting nature and motivated people to adopt a model of sustainable development that would be beneficial for both mankind and nature.



“Earth provides enough to satisfy every man's needs, but not every man's greed.”
Mahatma Gandhi

3.2. Business Ethics

Business ethics represents a set of ethical principles that are applied in a business environment. It is applicable to all activities and individuals of an organization. Many firms develop detailed codes of conduct to guide the actions of people employed in their organization. Thus, business ethics can be termed as study of content and effectiveness of these codes of conduct.

Business entities should have the moral responsibility for what they do. For example – responsibility of treating their employees well, responsibility of respecting the environment from which they draw resources, responsibility for the impact of its product on consumers etc.

Corporate reputation is dependent on the level of morality adopted in corporate operations. Some examples of ethical practices in business can be:

- Not being tempted to cheat, deceive or manipulate others
- Following laws and regulations that structure market and organizations in letter as well spirit.

However, laws cannot cover all the business practices. Thus, law leaves gaps which can be exploited by businesses. This is where business ethics comes in. Businesses should not exploit market when market is failing due to externalities or imperfect information.

Business ethics with respect to consumers

Firms, in their engagement with consumers, should follow certain ethical practices such as

- Maintaining standards in the production of goods and services such as healthcare, pharma production etc. to ensure safety of the users consuming it
- Giving true picture of the product to consumers in advertisements
- Not undertaking sale of inappropriate products such as illegally obtained organs, drugs, sexual services etc. which demean intrinsic value of humanity by treating it merely as a means to generate profits.

Business ethics with respect to employees

Firms should take care of following issues while dealing with their employees

- **Non-discrimination** – The employees should be treated strictly according to the basis of the merit they possess with respect to the job
- **Pay commensurate to their efforts** – Employee should be paid according to the contribution he/she made towards success of the organization.

Note- Other aspects of business ethics will be covered in detail as part of the document “Corporate Governance”.

3.3. Ethical Management

Ethical management is the incorporation of **ethics in management** i.e. one should refrain from bad practices in management. **Managerial ethics** is the set of standards that dictate the conduct of manager operating within a workplace.

- There are no legal rules or laws formulated for this purpose.
- Instead, the **ethics code** is assembled by the company to guide its managers. It typically references shared values, principles and company policies about basic conduct and outlines the duties of the manager towards employees, the company and its stakeholders.
- Although not enforceable, managers who consistently ignore certain company's ethics may be asked to step down. **Examples** include having a code of conduct to use company's equipment such as telephone or cab service for personal use, giving fair opportunity to subordinates to express their grievances, or prior declaration of any conflict of interest situation such as accepting gifts from vendors, etc.

Kindly note: Business ethics and Ethical Management (Managerial Ethics) are **slightly different**. **Business ethics** affects the parties that are influenced by actions of the business. It is a standard for enterprise decision making and action. **Ethical management** concerns more with standards of personal behavior for managers to deal with employees and other stakeholders.

Also note: Management of ethics is different. To manage ethics means to create a set of principles or code for all to comply with ethical behavior. It is how one deals with conflicts of interests and dilemmas to make an ethically sound decision, how one manages to direct his/her's actions and satisfy his/her's conscience to move towards ethical path.

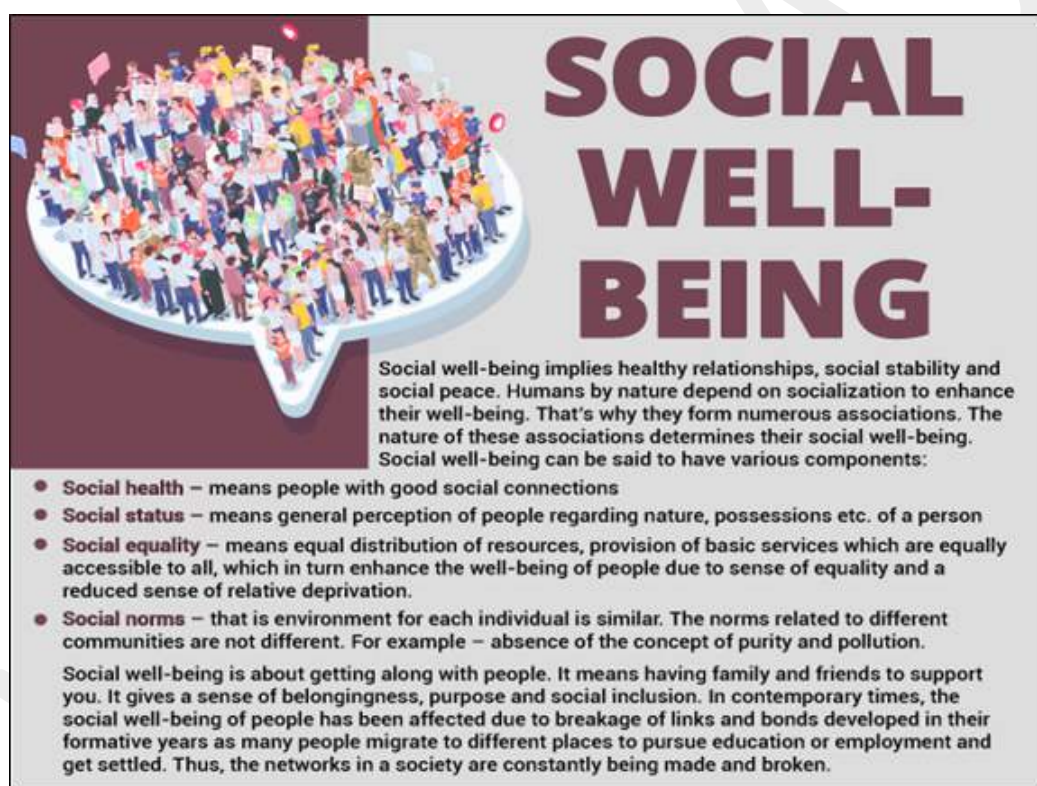
3.4. Ethical Conflicts in Cosmopolitan Culture and Urbanisation

Student Notes:

Economic development and desire for wellbeing has made the phenomenon of rapid urbanization and culture of cosmopolitanism a de-facto feature of the modern society. This leads to enhanced job opportunities, rise in standards of living of people, economic progress of a nation, rise in awareness, assertive demands regarding provision of services by government etc.

Cosmopolitanism is the ideology that all human beings belong to a single community with similar set of moral principles. Theoretically, here everyone can retain their individual and cultural integrity while also keeping themselves open to the larger world. **Cosmopolitanisation and urbanization are associated with the following values:**

- Inclusivity, oneness, human rights and dignity, cultural diversity, solidarity, equality
- Openness, good governance, responsibility and accountability, democracy
- Globalization, modernism, industrialization, consumerism, liberalization
- Opposition to chauvinism, social justice, peace
- Collective Intelligence through information



However, they also give rise to various **ethical conflicts** such as:

- **Environmental sustainability versus use of resources for development projects** – Large projects such as mining, building dams, power projects etc. are required to meet rising demands of people and improve standard of living. This is in direct conflict with the question of sustainability i.e., optimum utilisation of resources by present generation so that sufficient resources are available for the generations to come.
- **Rising inequality and the condition of poor and vulnerable** – The fruits of economic growth have been appropriated by only a few and thus, it has led to immense inequality. The conditions of people living in urban slums and squatters versus the gated communities in metros reflect the divide that urbanization has created and is perpetuating.
- **Conflict of resources** – Although, people are migrating to urban areas, following a cosmopolitan culture, yet the vast population growth in urban areas is leading to resource

crunch in terms of land, water, infrastructure etc. Thus, many people living in small spaces, with low water accessibility and congestion on roads etc.

- **Salad bowl vs Melting pot model of society** – Due to cosmopolitanisation, many cultures have lost their identity and are increasingly being subsumed and consumed by dominant cultures of the world.
- **Global vs Regional Values** – In opposition to melting pot model, regional and local cultures are asserting themselves strongly as a reaction to globalization.
- **Cultural diversity vs Cultural clashes** – the opportunities in these areas brings people from various backgrounds and culture here and enables them to get an exposure to them. But this diversity at times leads to clashes when some people are not open to new culture.
- **Individualisation vs Collectivism** - increasing individualisation in urban areas results in new social structures where the traditional family is not as dominant as before. Self-interest seems to have taken over other values.
- **Lifestyle Changes vs Healthy routine** – People have begun to associate themselves more with the Mcdonaldisation than their traditional diverse cuisines and habits.

3.5. Bioethics

The modern field of bioethics emerged in the 1950's and 1960's and represents a radical transformation of the much older and traditional domain of medical ethics. The term "bioethics" refers to the broad terrain of the moral problems of the life sciences, ordinarily taken to encompass medicine, biology, and some important aspects of the environmental, population and social sciences. The traditional domain of medical ethics would be included within this array, accompanied now by many other topics and problems.

Four general areas of inquiry can be identified:

- **Theoretical bioethics** which deals with the intellectual foundations of the field.
- **Clinical ethics** which refers to the day-to-day moral decisions confronted in caring for patients.
- **Regulatory and policy bioethics** which seeks legal and policy solutions for moral problems concerning life and death. Examples of issues falling into this area would be use of foetal tissue in research, defining death, guidelines for do-not-resuscitate (DNR) orders in hospitals, euthanasia, cloning, rationing health care resources, and so on.
- **Cultural bioethics** which considers ethical questions in relation to the historical, ideological, cultural, and social contexts in which they are expressed.

Bioethics Principles: Following are the **four** principles which form the **framework for moral reasoning**.

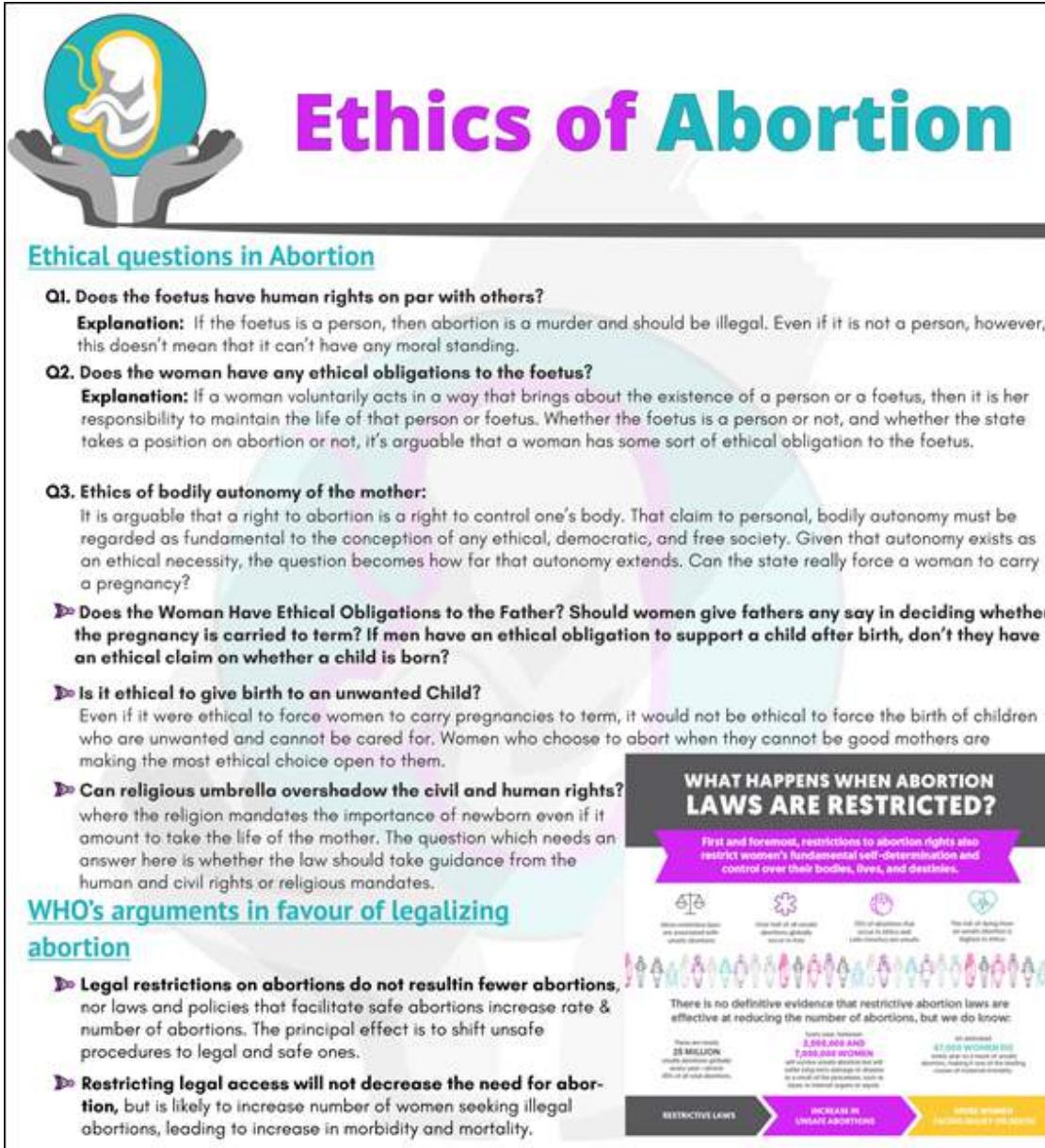
Principlist Biomedical Ethics	
Autonomy	Respect for persons. Humans are a means unto themselves and not a means to an end. This encompasses the right to be free to make choices about your body
Beneficence	Obligation to contribute to person's welfare. Interventions and provisions should provide benefit directly to the patient. This focuses on doing things that are of benefit to another. It requires positive steps to heal, and not merely avoiding doing harm.
Nonmaleficence	Obligation not to inflict harm on other persons. Harm is to be avoided or minimized. Underlying tenet of medical professional mission statements (Hippocratic oath)
Justice	For health care, this is the distribution of health (and health care) in a fair and equitable manner. This requires attention to prioritization and rationing. There is no one just way to allocate resources, and most systems utilize several prioritization schemes in concert to attempt to achieve a just distribution
• The four principles are meant to be used in concert with each other and not in isolation. To use them one aims to uphold ALL of the principles for any issue. If one or more are violated, the violation needs to be minimal. Additionally, there is no hierarchy of principles - which principle is most important (or which two or three) is dependent on the context of the dilemma. • Principlist moral theory can be problematic in that there is no guidance for proceeding when the four principles cannot be balanced (or upheld). also considers ONLY the four principles, although there are many other principles, considerations, and values to be considered and weighed into decision making in most ethical dilemmas. • In western nations such, as USA, autonomy tends to have a higher emphasis than it may in other places	

The moral questions of bioethics can also be viewed within broader theories of ethics-

- A **utilitarian** approach asks which consequences of a choice or action or a policy would promote the best outcome. In this view, the broader good might be deemed the greatest good. The utilitarian view would, in the context of health care rationing, for example, look for the collective social benefit rather than advantages to individuals.
- A **deontological** perspective, on the other hand, would argue that "good consequences may have to be set aside to respect inalienable human rights". An example would be subjecting individuals to medical research that may do harm to that individual, while providing the potential to help others.
- Other moral theories, such as that of **Aristotle**, stress neither principles nor consequences but see a combination of virtuous character and seasoned practical reason as the most likely source of good moral judgement.
- The approach of **casuistry** is to carefully examine individual cases in the solving of practical moral problems, and to let principles emerge from these over time.

Today, in the medical and health fields health practitioners are frequently called on to make moral decisions as well as medical decisions. Indeed, it may be held that a good medical decision should be tantamount to a good moral decision. It is in this context that the field of bioethics has emerged as a vitally important field.

"What distinguishes ethics from science is not any special kind of knowledge but merely desire. The knowledge required in ethics is exactly like the knowledge elsewhere; what is peculiar is that certain ends are desired, and that right conduct is what conduces to them." -**Russell, Bertrand**.



Ethics of Abortion

Ethical questions in Abortion

Q1. Does the foetus have human rights on par with others?
Explanation: If the foetus is a person, then abortion is a murder and should be illegal. Even if it is not a person, however, this doesn't mean that it can't have any moral standing.

Q2. Does the woman have any ethical obligations to the foetus?
Explanation: If a woman voluntarily acts in a way that brings about the existence of a person or a foetus, then it is her responsibility to maintain the life of that person or foetus. Whether the foetus is a person or not, and whether the state takes a position on abortion or not, it's arguable that a woman has some sort of ethical obligation to the foetus.

Q3. Ethics of bodily autonomy of the mother:
 It is arguable that a right to abortion is a right to control one's body. That claim to personal, bodily autonomy must be regarded as fundamental to the conception of any ethical, democratic, and free society. Given that autonomy exists as an ethical necessity, the question becomes how far that autonomy extends. Can the state really force a woman to carry a pregnancy?

▶ **Does the Woman Have Ethical Obligations to the Father? Should women give fathers any say in deciding whether the pregnancy is carried to term? If men have an ethical obligation to support a child after birth, don't they have an ethical claim on whether a child is born?**

▶ **Is it ethical to give birth to an unwanted Child?**
 Even if it were ethical to force women to carry pregnancies to term, it would not be ethical to force the birth of children who are unwanted and cannot be cared for. Women who choose to abort when they cannot be good mothers are making the most ethical choice open to them.

▶ **Can religious umbrella overshadow the civil and human rights?**
 where the religion mandates the importance of newborn even if it amount to take the life of the mother. The question which needs an answer here is whether the law should take guidance from the human and civil rights or religious mandates.

WHO's arguments in favour of legalizing abortion

▶ **Legal restrictions on abortions do not result in fewer abortions,** nor laws and policies that facilitate safe abortions increase rate & number of abortions. The principal effect is to shift unsafe procedures to legal and safe ones.

▶ **Restricting legal access will not decrease the need for abortion,** but is likely to increase number of women seeking illegal abortions, leading to increase in morbidity and mortality.

WHAT HAPPENS WHEN ABORTION LAWS ARE RESTRICTED?

First and foremost, restrictions to abortion rights also restrict women's fundamental self-determination and control over their bodies, lives, and destinies.

There is no definitive evidence that restrictive abortion laws are effective at reducing the number of abortions, but we do know:

- There are about 25 MILLION unsafe abortion globally each year, causing 10% of all fetal deaths.
- From 2008 to 2018, 3,000,000 AND 7,000,000 WOMEN suffered serious complications and deaths as a result of the restrictions, such as those to medical supplies or supply.
- An estimated 67,000 WOMEN DIE every year as a result of unsafe abortion, making it one of the leading causes of maternal mortality.

RESTRICTIVE LAWS → INCREASE IN UNSAFE ABORTIONS → WOMEN WHO DIE

4. Ethics in Private and Public Relationships

4.1. Ethics in Private Relationships

It refers to the ethics that a person identifies with in respect to people and situations that they deal with in everyday life. It largely involves relations with family and friends. They are based on emotional bonds rather than any formal procedure that regulates them and therefore, they are informal in nature. Private relationships are often given or inherited. They are relatively permanent with more tolerance for imperfections.

Ramayana is a classic example of ethics in personal relationships. Although ethics in private life varies from person to person but there are some common underlying principles that are accepted by the society. For example -

- **Loyalty** – loyalty to one's partner and to the family members
- **Love** – loving all the members of family with their imperfections
- **Affection** – caring for needs of all the members as your own

Ethics in private relationship are generally directed by individual virtues, universal human values, religion, social norms and law of land. Ethics in private relationship are also checked by

private religious law. Individual familial and community obligations have long been written into law and supported by serious sanctions from ancient time to today's inheritance divorce, marriage and other laws. In India, along with moral codes, religious institutions and constitutional provisions govern ethical issues in private relationship

4.2. Ethics in Public Relationships

It refers to the ethics that a person may adhere to in respect of their interactions and business dealings in their professional life. Public relationships are those that exist by the virtue of profession or the position one holds in professional life.

ETHICS IN PUBLIC RELATIONSHIPS The core values in the public relations that guide behaviors and decision-making process and are vital to the integrity of any profession can be said to include as follows:	
 Advocacy – serving the public interest by acting as responsible advocates for those one represents	 Honesty & selflessness - adhering to the highest standards of accuracy and truth in advancing the public interest and not personal interests
 Expertise – acquiring and responsibly using specialized knowledge and experience and through continued professional development	 Accountability & openness– for your actions taken in respect of your position in public service
 Loyalty & spirit of service - honouring the obligation to serve the public interest	 Fairness & Justice – uphold the essence of preamble by providing justice in all spheres

The Committee for Standards in Public Life (**Nolan Committee**) defined seven principles. These are: **selflessness, integrity, objectivity, accountability, openness, honesty and leadership**. Similarly, the **OECD countries** have also come out with a set of core values to guide public servants. These are **impartiality, legality, integrity, transparency, efficiency, equality, responsibility and justice**.

Note: More details on this part will be covered under the document- Ethics in Administration.

4.3. Relation between Public and Private Ethics

The distinction between private and public ethics is a dubious one because both in public and private lives, we have to live by same ethical values in general. There cannot be any dichotomous relationship between the two. Since ethics promotes a virtuous life, it is equally applicable to both.

A person who is **unethical in his public life** can hardly be expected to be ethical in his private life and vice versa. The way a civil servant treats women in his family is reflected in how he handles female co-workers or whether policies implemented by him have a gender bias or not. If we take examples of great personalities, we will find that they had same yardsticks to measure their public as well as personal lives, for example Gandhiji, former President Shri APJ Abdul Kalam.

Sometimes **public/professional relations may become personal relations**. For example – a teacher-student relationship - sometimes in class, teachers uses personal examples with children, children also shares their weaknesses with the teachers so that he/she can help in improvement. So, in this case, at some level, the relationship has become personal with the kind of bond the two have started sharing.

It is very important that there is **no conflict between personal and professional** ethics as it may lead to frustration, guilt or confusion & dissonance in the mind of some persons. Both of them shape and reinforce each other. For personal development, they need to be congruent to each other. But **too much of congruence** may also lead to stagnation of ideas and changes – For example – if no person in public service is reform oriented and is congruent with the present society, then socio-cultural changes will be difficult to bring.

Ethics in public life places a greater responsibility and is more demanding as in public life you **cannot always follow your personal ethics**. For example – personally you may feel abortion is morally wrong, but if you are a doctor, you need to do abortion according to your professional ethics. Such dilemmas are natural but we need to draw a line between personal and professional role. When performing a role in public, we need to separate our personal lives and follow professional code of conduct strictly.

5. Resolving Ethical Conflicts: What is the way out?

Every human being is an end in itself. Certainly, we use other human beings to achieve our ends. A student uses the teacher to achieve his/her goals. However, there is a crucial aspect of an informed consent that is involved here. Hence, it is important that we do not treat humanity as **merely** as a means.

What is ethical or moral can be determined by whether it is **just and fair**. For example, if you have one flute, whom should you give it to: a person who is good at playing flute (virtuous), a person who has the maximum need for it (utility) or a person who has been assigned the task to play flute (deontological)? The answer is not simple. However, by making the process of distribution fair and just can one really claim that an ethical solution has been arrived at.

No one approach is universal or claim to be without any demerits. Aiming for maximizing total happiness might lead to violation of basic rights of an individual. Aiming to adhere to duty might lead to negative consequences; just that responsibility of those consequences will be lessened on the individual who takes the decision. In the long run, general happiness can be increased by rewarding the virtue and penalizing vice.

Justice means choosing what the **right thing to do** is without fear or favor. The process of judgment must be free of any bias- not only bias towards an individual or a class should not be there, but also the approach or the methods which one uses cannot be the same all time. This means that if the utilitarian approach produced the best results in a case, it does not and should not become the favored approach in all subsequent decision making. **A wider, multi-dimensional worldview equips a person with tools to make a well-informed and just decision.** With experience in diversity, one comes to realize more and more about circumstances and problems of others. As such, effort should be made to incorporate interests in other cultures and societies as well. This way, a **reasoned and well-argued decision** can be arrived at. This decision should be able to recognize the benefits and aim for their maximization as well as recognize the demerits and aim for their minimization.

6. Human Values

“Values” denote the value or importance we assign to different aspects of the world around us. A value is a preference as well as conception of the preferable. We attribute values to every human action, thus denoting its vastness.

Ethical decision-making often involves weighing values against each other and choosing which values to elevate. Conflicts can result when people have different values, leading to a clash of preferences and priorities.

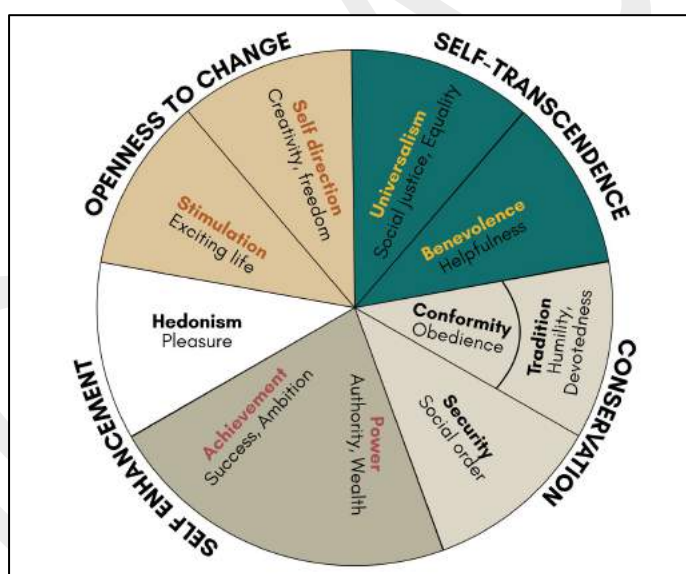
Some values have **intrinsic** worth, such as love, truth, and freedom. Other values, such as ambition, responsibility, and courage, describe traits or behaviors that are instrumental as **means** to an end.

Some values are considered **sacred** and are moral imperatives for those who believe in them. Sacred values will seldom be compromised because they are perceived as duties rather than as factors to be weighed in decision-making. For example, for some people, standing during the National Anthem is a non-negotiable value. For others it may only be a matter of choice.

However, human values are of utmost importance. **Human values** are defined as those values which help man to live in harmony with the world. They are at the core of us being humans. Without a deep understanding of one's relationships with nature, fellow human beings, society, and a deep respect for all life, one is not really educated. **Human values** consists of **wide range of values** related to personal, family, community, social, political, environmental and work life of the individuals.

The sense of equality, mutual respect, the **philosophy of life and let live** are the cherished results of human values. They can be thought of as socially desirable goals that are internalized through the process of **conditioning, learning or socialization**. Our educational system is naturally concerned with values. One of the important missions is to inculcate some universal basic human values such as – happiness, fairness, love, peace, freedom, safety, respect, responsibility, cooperation, self-reliance, equality etc.

So, whether values are sacred, have intrinsic worth, or are a means to an end, values vary among individuals and across cultures and time. However, values are universally recognized as a driving force in ethical decision-making. Human values hold importance due to the benefits it has for society. They **provide criteria by which we judge** people, objects, actions, ideas and situations. **Human values may be subjective or objective, intrinsic or extrinsic, personal or community, theoretical or practical, social, political or economic** etc.



One of the attempts made by researcher, **Shalom H. Schwartz's theory** of basic values which seeks to identify a core set of basic human values grounded in the motivational goals inherent in

1. our individual, biological needs,
2. our need for smooth coordination and cooperation with others, and
3. the need of groups of people to survive and grow as groups.

The system of 10 basic values derived from these goals forms a continuum arranged in a closed circle as in the above infographic.

6.1. Role of Family, Society and Educational Institutions in inculcating values

Inculcation of values basically means teaching ethical standards to child or developing moral system with respect to different domains of his life. Moral system can be described here as set of internalized values. This responsibility of teaching morals has long been seen as the domain of **family** where children spent the formative years being taught basic issues of conduct along with what family believed was right and wrong. However, there is overwhelming external influence that childhood is subjected to which parents finds difficult to stop. Thus the

responsibility of ethical teaching has subtly **shifted from parents to social institutions like education institutes and media.**

Student Notes:

Socialization- Process by which an individual is indoctrinated into his culture- transfer of culture from one generation to other. It's a lifelong process to shape an individual- such that the person is useful and productive member of society. Observation, Conditioning, Role playing, Trial and Error are some of the techniques of socialization.

Family, society and educational institutions are three most important factors affecting the values of a person. Large part of this process of inculcating values happens consciously in a deliberate manner by socializing agents.

6.1.1. Role of Family in inculcating values:

- The **family**, the basic unit of society is also the first school of value learning through examples set by the members, ethical teachings imparted by elderly. These can be through stories, life lessons etc.
- The cultural values of harmony, equity, cooperation, democracy, peace are passed on to by the family to child. It is family which imparts in an individual the value of sacrifice, love, feelings, high morals and others thereby, shaping a child's attitude towards other people in society.
- Family members are the immediate role models of a child who models his/her behaviour around them.
- Members of family inculcate moral values such as honesty, truthfulness, happiness, loyalty and integrity in children, which are synonymous with societal values.
- How a child is reared also impacts the values of child in future. For example – an authoritarian type of child rearing may develop greater value for authority. It is very much possible that such children may have less concern for democratic values. In nuclear families children learns more individualistic values that in the joint peaceful family. In India, children in cities living only with parents tend to be more addictive to video games than those who are living in bigger families.

Changing nature of family system and values

Family is and always the first value provider, but in **recent years, its role has changed** which can be seen in the behavior patterns of the children. In a **modern nuclear family**, the value system being imparted to a child has changed. Focus may be more on **competition** rather than cooperation, on **individualism** rather than family and collectivism, on **consumerism** rather than gratification and sacrifice. It is not necessary that the values being transmitted have degraded, but they have certainly changed. Remember, values are preferences. Earlier, sharing or delayed gratification may have been a preferred value. Now it is being replaced by consumerism and instant fame. Some values over time have gained the status of being fundamental. Some on the other hand are compromised because of human weakness.

Sometimes, family itself teaches one to be selfish in this fiercely competitive world, say by preventing the sharing of notes or information with friends to maintain an edge over them in various competitions. At times, it may be in the interest of the child, but ultimately, it inculcates the value of **self-interest** and deters him from inculcating the values of cooperation and sharing. This just **shows how a modern family value is different from a traditional family value**. May be in future, this will become a traditional value.

However, it is not necessary that a child's value system once he/she grows up will be similar to that of parents. One may actively discard certain values through **other influences such as media, education system, friends, work, etc. and above all, self-evaluation.**

6.1.2. Role of Society and Educational Institutions in inculcating values

Student Notes:

A. Role of Educational Institutions: After family, it is **educational institutes** in which a child spends most of his time. Thus, they also have an important role in shaping the personality of the child. Here child is introduced to the world away from the comfort zone of the family. As is being witnessed today, a world evolved through narrow, exclusive and intolerant thought is full of conflicts, violence, inner tensions and war. Therefore, there is a need for a world evolved through **harmony, tolerance, peace**, and concern for achieving **human sustenance**. Value education helps in achieving these goals. **School** provides a medium where the individual to communicate, acts as a bridge between family and society,

In a school, the student necessarily learns the following values:

Cooperation – sitting with his/her classmates for 6-7 hours taking everyone along for all the events etc.

Interaction with new people – Here child learns for the first time, how to make new friends with others not known to you before.

Diversity of views – Exposure to the presence of different people with varied beliefs, attitudes and values.

Role of Teachers: Teachers are great role models and their actions leave a great impact on children in their impressionable age. Teachers inculcate values in students via-

- Observational learning, conditioning to produce desired behavior.
- Exhibiting commitment, diligence, timeliness in their conduct, ensuring unbiased treatment
- Influence the self-attribution pattern of learners through the judicious use of rewards and punishments.
- Role in positive self-appraisal and creating an inclusive environment

Role of Curriculum-

- Culture-specific inputs are required to facilitate adjustment of child in the social milieu
- The content needs to be driven by scientific temper without any ideological coloration
- The focus could be given to the right to learning rather than the right to education
- Emphasizing on extracurricular Activities which helps in building cooperation, team-spirit, leadership, responsibility.

Education is a systematic attempt towards human learning. All education in essence develops all the dimensions of a human personality – intellectual, physical, social and moral. In recent years, due to crisis of values in educational system, the term 'value education' has become the buzz word in the educational institutions and academia.

B. Media as an agent of inculcating values: Media is a tool for social management, social diffusion, and social change. Children are easily influenced by the functional "parallel school" of the media. The media influence the development and transformation of values and beliefs of people in a variety of ways like social development, tolerance, positive attitude towards others culture. They also contribute to the enhancement of knowledge, language and vocabulary and influence a major part of daily life. It helps in framing new ideas, attitudes and lifestyle. Media plays role in developing the social values in terms of consumerism, urban modeling, restructuring of human relationships and the emergence of new ideas and policies

In contemporary times, the **social media** has emerged as a powerful tool, which can influence the attitude and behavior both individually and collectively. Provides the platform to express our opinion but also provides anonymity. It has the potential to promote public participation, social engagement, and democratization of public life.

Positive impact of media-

- Promoting social and gender awareness removed ignorance, led to challenging various preconceived notions,
- Community radio, Bultoo experiment, act as a linking pin between government and the common man
 - **Bultoo Radio**, launched in Chattishgarh, is basically a radio program that is shareable through Bluetooth, which is available on the most basic mobile sets – thus bringing an end to the need for internet and mobile signals
- Strengthening democracy by ensuring people's participation, etc.

Negative impact of media- Commodification and objectification of women, consumerism, relative deprivation, radicalization, given rise to various anti-social behavior, etc.

At last we can say that there is a strong relationship between the media and the common man which further contributed for the development of values only if the media sources are wisely used. The media has played an important role in positive developments like the fight against racism, gender bias, unemployment, poverty, and spreading awareness about the need for world peace.

7. Glossary of terms:

Morality	The state or quality of being moral with particular application. It exists as social fact. When particular tends to become universal, it may come in conflict with ethics
Ethics	The state or quality of being moral with primacy of reason. It exists more as cultural ideal. Both particular can be universalized and universal can be particularized
Reason	Human faculty to be used for right decisions. Process of synthesizing using logic to draw inferences/conclusions. It can work in harmony or opposition to desire
Belief	Our brain is the 'belief engine' and believing is a natural process of development of mind. Our mind constantly needs beliefs to come in terms with reality. Beliefs are cognitive constructs which exist in the form of statements/propositions which are assumed to be true but could be true/false
Faith	It is the state of unchanging belief towards something
Trust	It is the state of developing beliefs towards something based on evidence
Knowledge	It is the end product of process of testing beliefs based on scientific evidences
Values	Values denote preference – for good or bad. Values are important and lasting beliefs or ideas about what is good or bad and desirable or undesirable
Virtue	They are the values that are part of human character and are universally believed to have some goodness in it e.g. honesty, trust, gratitude etc
Principles	Principles are the abstract concepts to guide the behaviour according to a particular value e.g. impartiality as a principle to follow the value of 'equality'
Norms	As an established social practice in particular context which is considered as normal. Norms as standards of behaviour that regulates individual actions
Freedom	Is a political value and the state of being capable of making decisions without external control. It is the basis of moral agency
Rights	They are normative rules or claims to realize freedom in certain respect. e.g. right to education, life, liberty
Duty	It is the obligation tied to certain roles to behave in a certain way
Probity	It is the condition in which prescribed ethical standards are upheld by governance system. This condition is consisting of process and procedures
Rules	They are set of instructions/ prescription which tells us the way things are to be done. They are in conformity with laws or tradition to be followed voluntarily or non-voluntarily for particular purpose

Rule of Law	Legal and political systems, structures and practices that condition a government's actions to protect citizens' rights and liberties, maintain law and order, and encourage the effective functioning of the country
Action	It is a part of behaviour which are conscious, goal oriented leading to change in existing behaviour
Behaviour	It is range of human response to the environment, it includes conscious action and unconscious reaction, thinking and feeling
Character	It is the mental and moral qualities in totality that underlies the personality. Character traits are revealed themselves only in specific and often uncommon situations. They are based on beliefs. A person is said to have strong character if her behavioural qualities are consistent across different situations. In cinema, literature, comics, roles are also called characters as behavioural qualities of a person are clearly distinguishable

Student Notes:

8. Previous Years Questions of UPSC

2013

1. What do you understand by 'Values' and 'Ethics'? In what way is it important to be ethical along with being professionally competent?
2. Some people feel that values keep changing with time and situation, while others strongly believe that there are certain universal and eternal human values. Give your perception in this regard with due justification.
3. "The good of an individual is contained in the good of all." what do you understand by this statement? How can this principle be implemented in public life?

2014

1. All human beings aspire for happiness. Do you agree? What does happiness mean to you? Explain with examples.
2. What does ethics seek to promote in human life? Why is it all the more important in public administration?
3. In the context of defense services, 'patriotism' demands readiness to even lay down one's life in protecting the nation. According to you, what does patriotism imply in everyday civil life? Explain with illustrations and justify your answer.
4. "Human beings should always be treated as 'ends' in themselves and never as merely 'means'." Explain the meaning and significance of this statement, giving its implications in the modern techno-economic society.
5. Which eminent personality has inspired you the most in the context of ethical conduct in life? Give the gist of his/her teachings. Giving specific examples, describe how you have been able to apply these teachings for your own ethical development.
6. The current society is plagued with widespread trust-deficit. What are the consequences of this situation for personal well-being and for societal well-being? What can you do at the personal level to make yourself trustworthy?

2015

1. What is meant by 'environmental ethics'? Why is it important to study? Discuss any one environmental issue from the viewpoint of environmental ethics.
2. Differentiate between the following
 - (a) Law and ethics
 - (b) Ethical management and management of ethics
 - (c) Discrimination and preferential treatment
 - (d) Personal Ethics and Professional Ethics
3. Social values are more important than economic values. Discuss the above statement with examples in the context of inclusive growth of a nation.

2016

1. Explain how ethics contributes social and human well-being.

2. Law and ethics are considered to be the two tools of controlling human conduct so as to make it conducive to civilized social existence.
 - (a) Discuss how they achieve this objective.
 - (b) Giving examples, show how the two differ in their approaches.

2017

1. The crisis of ethical values in modern times is traced to a narrow perception of the good life. Discuss
2. Without commonly shared and widely entrenched moral values and obligations, neither the law, nor democratic government, nor even the market economy will function properly. What do you understand by this statement? Explain with illustration in the contemporary times.

2018

1. "In doing a good thing, everything is permitted which is not prohibited expressly or by clear implication." Examine the statement with suitable examples in the context of a public servant discharging his/her duties.
2. With regard to morality of actions, one view is that means are of paramount importance and the other view is that the ends justify the means. Which view do you think is more appropriate? Justify your answer.
3. Suppose the Government of India is thinking of constructing a dam in a mountain valley bound by forests and inhabited by ethnic communities. What rational policy should it resort to in dealing with unforeseen contingencies?

9. Previous Years Case Studies of UPSC

1. Sivakasi in Tamil Nadu is known for its manufacturing clusters on firecrackers and matches. The local economy of the area is largely dependent on firecrackers industry. It has led to tangible economic development and improved standard of living in the area. So far as child labour norms for hazardous industries like firecrackers industry are concerned, International Labour Organization (ILO) has set the minimum age as 18 years. In India, however, this age is 14 years.

The units in industrial clusters of firecrackers can be classified into registered and non-registered entities. One typical unit is household-based work. Though the law is clear on the use of child labour employment norms in registered/non-registered units, it does not include household-based works. Household-based work means children working under the supervision of their parents/relatives. To evade child labour norms, several units project themselves as household-based works but employ children from outside. Needless to say that employing children saves the costs for these units leading to higher profits to the owners.

On your visit to one of the units at Sivakasi, the owner takes you around the unit which has about 10-15 children below 14 years of age. The owner tells you that in his household-based unit, the children are all his relatives. You notice that several children smirk, when the owner tells you this. On deeper enquiry, you figure out that neither the owner nor the children are able to satisfactorily establish their relationship with each other. (25 marks | 300 words)

- (1) Bring out and discuss the ethical issues involved in the above case.
 - (2) What would be your reaction after your above visit?
2. You are working as an Executive Engineer in the construction cell of a Municipal Corporation and are presently in-charge of the construction of a flyover. There are two Junior Engineers under you who have the responsibility of day-to-day inspection of the site and are reporting to you, while you are finally reporting to the Chief Engineer who heads the cell. While the construction is heading towards completion, the Junior Engineer have been regularly reporting that all construction is taking place as per design specifications.

However, in one of your surprise inspections, you have noticed some serious deviations and lacuna which, in your opinion, are likely to affect the safety of the flyover. Rectification of these lacunae at this stage would require a substantial amount of demolition and rework which will cause a tangible loss to the contractor and will also delay completion. There is a lot of public pressure on the Corporation to get this construction completed because of heavy traffic congestion in the area. When you brought this matter to the notice of the Chief Engineer, he advised you that in his opinion it is not a very serious lapse and may be ignored. He advised for further expediting the project for completion in time. However, you are convinced that this was a serious matter which might affect public safety and should not be left unaddressed. What will you do in such a situation? Some of the options are given below. Evaluate the merits and demerits of each of these options and finally suggest what course of action you would like to take, giving reasons.

- (1) Follow the advice of the Chief Engineer and go ahead.
- (2) Make an exhaustive report of the situation bringing out all facts and analysis along with your own viewpoints stated clearly and seek for written orders from the chief Engineer.
- (3) Call for explanation from the Junior Engineers and issue orders to the contractor for necessary correction within targeted time.
- (4) Highlight the issue so that it reaches superiors above the Chief Engineer.
- (5) Considering the rigid attitude of the Chief Engineer, seek transfer from the project or report sick.

10. Previous Years Questions of Vision IAS Test Series

1. *Do you think that ethical principles are universal in nature? Justify your answer with relevant examples.*

Approach:

- Introduce by writing about the concept of ethical universalism.
- Discuss the concept of ethical relativism.
- Provide relevant examples for both – universalism and relativism.
- Conclude based on the arguments written in the answer.

Answer:

Ethical principles are used to decide the rightness or wrongness of an action. But what is ethical under a given circumstance may itself be a subject of debate. In this respect, there are two schools of thought regarding mutability of ethical principles:

Ethical Universalism

- It believes in **universal and immutable ethical values** i.e. there are some ethical principles that are always true, that these principles can be discovered and that these principles apply to everyone.
- Certain universal ethical principles are – love, universal declaration of human rights etc. Similarly, principles of honesty, integrity, justice, accountability etc. are central to the functioning of a democratic administrative system. These principles cannot be traded for any kind of just or unjust objectives.
- However, this school overlooks the need to respect diversity and also the view that consequence of an act is also a factor in deciding the ethicality of that act.

Ethical Relativism

- It believes that ethical principles keep changing depending on the circumstances and socio-cultural factors. **Ethicality of an act depends on the different cultures or different periods in history.** For example, homosexuality has been de-criminalized recently in our country.

- Ethical relativism was on display when India, irrespective of its commitment towards non-violence, conducted surgical strikes across the border inside Pakistan to destroy terrorists' launch pads. Another example showing mutability of ethics is of Bihar, which recently prohibited sale and consumption of liquor in the state.
- Similarly, while the principle of equality is an accepted principle, there can be exceptions towards the betterment of marginal communities on the basis of compassion and equity such as- mid day meals, various subsidies etc.
- However, this school seems to reduce ethical principles to the level of just being **"general agreement of a group of people"**. It gives priority to a majoritarian view even if the act in question is bad in morality, for example, moral sanction of honour killing of couples opting for inter-caste marriage in certain pockets of India.
- Further, in this school, the only moral standards against which a society's practices can be judged are its own. So, if ethical relativism is correct, there can be no common framework for resolving moral disputes or for reaching agreement on ethical matters among members of different societies.

Thus, though there are certain principles which remain immutable under all circumstances, there are other principles which keep changing with time and situation with socio-cultural practices playing a significant role in deciding the ethicality of an act.

2. ***What do you understand by global ethics in today's world? Highlight the role that global ethics can play in achieving universally accepted goals.***

Approach:

- Start by explaining global ethics in today's world.
- Discuss the role of global ethics in achieving universally accepted goals.
- Conclude accordingly.

Answer:

Global ethics is an area of critical ethical enquiry into the nature and justification of values and norms that are global in kind and into the various issues that arise such as world poverty and international aid, environmental problems, food security, disaster mitigation, peace and security, and human rights.

Without the acceptance of global ethics, a large number of these common global problems cannot be resolved effectively. Here, global ethics can contribute in following ways:

- **Draws parallels between self-interest of nations and the universality of these interests so a shared understanding of global problems** such as disaster management, biodiversity conservation can be developed.
- **Creates moral pressure for countries** to come forward and provide assistance when conditions in other countries are such that governments either will not or cannot address natural and human-made evils effectively. For instance, Common but Differentiated Responsibilities and Respective Capacities (CBDR-RC) acknowledges the different capabilities and differing responsibilities of individual countries in addressing climate change.
- **Establishes checks and balances** to avoid unilateral actions such as exporting environmental problems, economic aggression etc that may involve violation of the interests of another country. For instance, Missile Technology Control Regime (MTCR) adopts these principles to limit the proliferation of missiles and missile technology.
- **Provide space to countries to discuss and generate consensus** on issues of global importance such as fighting against terrorism or money laundering such as FATF that sets international standards to prevent terror financing.

- **Holding governments responsible** for domestic action which leads to violation of human rights. For example, UNHCR visiting countries alleged rights violations.
- **Developing an international institutional framework** so that collective efforts can be directed towards achievements of common goals for e.g. sustainable development goals.
- **Checking rise and growth of rogue nations and non-state actors** by taking collective actions against them for activities such as nuclear armament, terrorism, human trafficking, organ trafficking etc.

None of the aforementioned responses to global problems can occur without a commitment to global goals as an ethical requirement or acceptance of global responsibilities. Considering the uncertain world scenario and differences among nations, global ethics can mobilize the nations; channelize their efforts in the right direction to deal with the emerging challenges and enable states to rise above the narrow self-interest and move towards enlightened self-interest.

3. What do you understand by utilitarianism? Illustrate with examples the grounds on which it has been criticized.

Approach:

- Write a brief explanatory note on Utilitarianism and give examples.
- Discuss its types and explain each of them briefly.
- Make use of examples to discuss various grounds on which Utilitarianism can be criticized.

Answer:

Utilitarianism is fundamentally driven by the **principle of utility** i.e. that action is morally right which produces the best overall consequences with regard to the utility or welfare of all the affected parties. Utilitarian theories propound “**greatest happiness of the greatest number**”. It suggests that the only reason for performing action X over alternative action Y is that doing X will make mankind happier than doing Y. Jeremy Bentham (1748–1832), John Stuart Mill (1806–73), and Henry Sidgwick (1838– 1900) are some utilitarianism theorists.

OBJECTION TO UTILITARIAN THEORIES

- In some situations, Utilitarian theories might require us to do morally problematic or doubtful things in order to bring about a good result. For instance:
 - If a judge can prevent riots that will cause many deaths only by convicting an innocent person of a crime, utilitarianism implies that the judge should convict and punish the innocent person.
 - If a doctor can save five people from death by killing one healthy person and using that person's organs for life-saving transplants, then utilitarianism implies that the doctor should kill the one person to save five.
- In a utilitarian society, people's behaviour would **lack the kind of predictability and consistency** that is required to sustain **trust and social stability**. For instance, in the previous examples, if judges and doctors can do anything to maximize well-being, then no one will be able to trust that judges will act according to the law or that doctors will not use the organs of one patient to benefit others.
- By propounding happiness of the maximum number, Utilitarianism **overlooks the interests / needs / happiness of the groups that are numerically inferior**. E.g. Restrictions on consumption of beef to appeal to majoritarian voices, is inconsiderate to the dietary preferences of minority.

- Happiness in many cases cannot be quantified as is not measurable thus it is often very difficult to apply the test of happiness.
- Predicting consequences is impossible that utilitarianism requires because consequences are inherently unknowable. For example, people celebrate extra-judicial killings, however, it disregards due process of law and may lead to lawlessness.

Thus, there are various concerns associated with utilitarian ethics and it cannot be the sole guiding light for human actions, societal goals and government's programmes.

4. *As interactive technologies such as Artificial Intelligence penetrate peoples' lives, the lack of understanding of their social influence carries a risk of them doing more harm than good. Discuss.*

Approach:

- Define and establish the increasing use of interactive technologies in today's world.
- Highlight how that has made social influence inevitable.
- Discuss the underlying importance of social influence and principles governing the same, especially amongst the creators and regulators of these technologies.
- Briefly conclude on the basis of aforementioned arguments.

Answer:

Interactive technology allows for a two-way flow of information through an interface between the user and the **technology**. The user usually communicates a request for data or action to the **technology** with the **technology** returning the requested data or result of the action back to the user. These technologies work on real time basis and are available in the form of software applications, games, internet of things including social media sites such as facebook and twitter, etc.

Interactive and transformative technologies, such as artificial intelligence, augmented reality, autonomous vehicles etc. are designed to make our lives better. They are of immense potential in learning, entertainment, interpersonal communications, etc. However, such technologies work along various principles of social influence, an inadequate understanding of which causes more harm than good. This can be demonstrated as under:

- **In terms of Conformity:** i.e. change in behaviour or attitude brought about by a desire to follow beliefs and standards of other people.
 - Some interactive technologies like Instagram, facebook, tiktok, etc. have the capacity to create social comparisons i.e. people start using information about others to evaluate themselves.
 - The public and social leader boards in online games create unnecessary competition among players and negatively affect those who are at the lower ranking. They also generate unwanted peer pressure especially upon youth with impressionable minds.
- **In terms of Compliance:** i.e. a social influence where an individual does what someone else wants them to do following his/her request or suggestions.
 - The ultimate goal of interactive technology is to capture and analyze the different ways humans interact with each other, their environments, and objects around them. Nefarious elements use this to fulfill their own agendas; for e.g. ISIS used this technology to brainwash and recruit several Asian muslims.

- Several applications require access to personal data such as fingerprints, contacts, videos, photos, etc. Scammers use this information to commit financial and other data fraud.
- Inadequate importance is given towards privacy controls. People easily upload their pictures, addresses, last locations, etc. This has resulted in several criminal cases such as stalking and harassment.
- **In terms of Obedience:** i.e. giving in to the commands of others.
 - Several online games such as the Blue Whale Challenge, Choking game etc. instructed the participants to complete several tasks, which included self harm, watching scary videos, and waking up at odd hours. This brings physical and psychological harms to the participants especially teenagers.
 - Fake news and videos on platforms trusted by people has resulted into mass hysteria, panic and lynching as well.

Social influence is a complex area of behavioural science. While there can be no doubt regarding the positive outcomes of interactive technologies, the rapid rate of their acceptance in our daily lives has squeezed the amount of time required to assess their negative outcomes. Adoption of any such new technologies must be well informed by correctly assessing the amount of imbalance these can cause.

5. *The nature of a business's operations has a major influence on the ethical issues with which it must contend. Giving examples, discuss how business ethics is crucial in today's world.*

Approach:

- Briefly explain the term business ethics.
- With the help of appropriate examples, explain how the nature of a business' operations influence the ethical issues of an organization.
- Highlight how business ethics is crucial in the present-day world.
- Conclude on the basis of the above points.

Answer:

Business ethics is the system of moral and ethical beliefs that guides the **values, behaviors, and decisions of a business organization** and the **individuals** within that organization. It is the overarching framework that **puts moral regulations** on an organization based on its business operations. The nature of a business' operations has a major influence on the ethical issues, which need to be dealt by an organization. As a result, the **ethical issues also differ from industry to industry**, which can be **understood from the following examples:**

- An **energy company** produces energy by utilizing various natural resources like fossil fuels, nuclear fuel etc. The nature of their operation may include **price risks** in exploration, **environmental concerns** like oil spills as well as **risks to human life** in the form of nuclear disaster. Here, business ethics would demand a company to be transparent in its accounts as well as follow a clearly defined system of environmental ethics.
- An **e-commerce company** like Amazon, Flipkart etc., which is involved in online operations of goods and services must be prepared for ethical issues like protection of data, customers' privacy and security.
- A **pharmaceutical company** is engaged in development and manufacturing of life saving drugs. Such a business would require that the organization does not indulge in unethical actions like improper clinical trials, misleading advertisements, nexus with doctors, patent claims for non-innovations etc. They must follow business

ethics like optimum pricing and quality of drugs, accurate information sharing and informed consent during clinical trials.

Student Notes:

Business ethics not only help an organization tackle the ethical issues, but it is also **crucial in today's world as it helps:**

- **Builds trust among people:** Ethical standards of operations followed by the company helps in building a positive reputation of the company within the community.
- **Provides stability to the company:** Running a business in an ethical manner from top to bottom builds a stronger bond between employees and the management.
- **Improves performance of organization:** A high standard of business ethics in all facets of operations makes people in an organization perform their job duties at a higher level and also to stay loyal to that organization.
- **Increase formal investment in the economy:** A company with a foundation of ethical behavior increases its potential of attracting more investors and shareholders. With increasing number of investments, the company as well as the economy develops potential to generate further employment opportunities in a country.

In an era of increased ethical awareness of the people, adhering to business ethics has not just remained a moral responsibility but also a legal obligation. In this direction, many countries, including India have formulated many civil and criminal laws that a business must follow to operate in an ethical manner.

6. *Environmental ethics is about the moral relationship of human beings to, and also the value and moral status of, the environment and its non-human contents. Elaborate.*

Approach:

- Briefly explain environmental ethics.
- State how its domain goes beyond humans and encompasses non-human components.
- Conclude appropriately.

Answer:

Environmental ethics is the branch of ethics that **studies the moral and ethical aspects of the relationship between humans and the natural environment**. It focuses on the environmental values and societal attitudes related to protecting and sustaining biodiversity and ecological systems for the present as well as future generations.

The environmental ethics include both human and non-human content:

- Unlike traditional ethics, which is mainly concerned with human duties, **environmental ethics is all-encompassing and extends the scope of ethical concerns to include non-living natural resources** like rivers, grasslands, mountains etc. For instance, the Whanganui River in New Zealand was given the status of a 'legal person' with its own rights and values as it has special and spiritual importance for the Maori tribe.
- Environmental ethics moves ahead of the instrumental value of the natural environment to further include the **intrinsic value** that is the value of things as ends in themselves regardless of whether they are also useful as means to other ends. For example, a certain wild plant may have instrumental value because it provides the ingredients for some medicine or as an aesthetic object for human observers. But the plant also has some value in itself independently of its prospects for furthering some other ends such as human health, or the pleasure from aesthetic experience.

- Environmental ethics **questions the assumed moral superiority of human beings** to members of other species on earth. It questions the dictum that nature has made all things specifically for the sake of man.
- Environmental ethics is global as **environmental issues transcend individual identities and national boundaries** and there must be value consensus and cooperation among nations to cope with them. These include concerns such as climate change and associated problems that have led to increase in environmental refugees, melting glaciers, increasing marine pollution, sinking islands etc. In this context, islands in the Maldives and Tuvalu are rapidly shrinking and it is the responsibility of the global community to prevent them from disappearing.
- This branch of ethics **critiques consumerism accompanying modern capitalism and anthropocentrism** (human-centered point of view). It calls for a **'green lifestyle'** that is harmonious with nature and espouses an economic arrangement that is sustainable and sensitive to nature's limits.

Environmental ethics has been an integral part of the Indian tradition where nature has been revered for centuries for its services to mankind. Various environmentalists such as Baba Amte and Anna Hazare, movements such as the Chipko movement, Narmada Bachao Andolan etc. have also spread awareness about ecological balance and preservation of nature. It is important for humans to live in harmony with nature, and adopt a model of sustainable development that would be beneficial for both mankind and nature. In this context, Gandhiji has rightly said, 'the world has enough for everyone's needs but not for everyone's greed'.

7. What do you mean by the term "Conflict of Interest". Identify some situations that may fall within its definition and analyze each one of them.

Approach:

Straight forward question. Explain the meaning of the term and identify some situations that fall within its ambit.

Answer:

Conflict of interest may be defined as a situation in which a public employee has a private or personal interest sufficient to influence or appear to influence the objective exercise of his official duties. Here personal interest includes more than economic matters. It is considered an indicator, a precursor, and a result of corruption.

Transparency International understands a conflict of interest as a situation where an individual or an entity for which they work, whether a government, business, media outlet or civil society organization, is confronted with choosing between the duties and demands of their position and their own private interests.

The OECD guidelines distinguish between:

- Actual conflict of interest: a direct conflict between a public official's current duties and responsibilities and his/her private interests.
- Apparent conflict of interest: where it appears that a public official's private interests could improperly influence the performance of their duties but this is not in fact the case.
- Potential conflict of interest: where a public official has private interests which are such that a conflict of interest would arise if the official were to become involved in the relevant official responsibilities in the future.

The following situations can be said to fall within the definition of conflict of interest.

Student Notes:

1. Bribery

Bribery is the illegal acceptance of money or other valuable considerations in exchange for special favours from public servants having to do with their official duties. The critical condition here is that the bribe giver clearly intends to distort the objective, even-handed conduct of the official, and the receiver intends to willingly comply. Thus the official, faced with personal interests, pecuniary or otherwise, in conflict with the laws, policies, and procedures for the conduct of his office, is induced to resolve the conflict in favour of himself. Although bribery usually involves money, it may include other rewards, such as sexual favours, promises of favourable publicity, or offers of access to exclusive social circles.

2. Influence Peddling

Influence peddling occurs when a public employee attempts to influence a government decision so that it favours a third party in which the employee has an interest. Understood in typical terms, this might include such cases as policy decisions regulating a business in which the employee holds shares or developing a general plan affecting the value of land owned by the employee. This becomes an actual conflict of interest situation whenever the employee stands a high chance of significant gain.

3. Information Peddling

Officials who are privy to information not available to the general public and who use that information to their own advantage, monetary or otherwise, are guilty of information peddling. The key factors are the power of the information and privileged access to it. Actual conflict of interest is present when the information is highly confidential and the official in question is responsible for maintaining the confidence.

4. Financial Transactions

Financial transactions become conflicts when a public servant has direct or indirect financial interests that directly conflict with the responsible performance of the job. Actual conflict of interest is present to the extent that an official is in direct personal control over a decision that will produce significant personal gain. This differs from influence peddling in that the official in question effectively controls the outcome – as for example a secretary does when he can influence the location of a new airport near undeveloped land that he owns.

5. Gifts and Entertainment

Seeking or accepting gifts and hospitality creates a conflict if these items influence a public employee's impartial discharge of his or her duties. This category of conflict of interest amounts to a broadening of understanding of bribery. It includes such things as discounts on purchases, offers of theater tickets, sex, or vacation trips, use of vehicles, and gifts of lavish meals, recreational equipment, and liquor. Typically gifts of this kind differ from other bribery in that they are given with no specific favours requested, but they are nevertheless intended to create a generally positive predisposition towards the donor.

6. Outside Employment

Part-time employment, consulting, retainers, and self-employment may cause a conflict of interest with official duties. Conflict situations include the use of public employment status to enhance a private employer (or oneself), the draining away of effort and energy required for official duties, and the use of government services and equipment in outside work.

7. Future Employment

If a public employee intends to seek employment in the future with a firm he now transacts official business with, the tendency may be to give favoured treatment to this prospective employer in hopes of encouraging a job offer. Also, the government employee may present her inside contacts and knowledge of agency procedure as an attractive package for a firm that does regular business with his public organization. As people move back and forth between public and private sector service, intertwined interests resulting from past work and future employment expectations can become extremely complex.

8. Dealing with Relatives

Situations in which a public administrator may be in a position to do favours for a relative can also create conflict. We might think of this form of conflict of interest, sometimes called nepotism, as a special class of influence peddling because the motivation is similar to other such cases. Essentially it involves using influence to gain preferential treatment for a relative in hiring, promoting, awarding contracts, or any other business practice. The public administrator who engages in such practices gains not directly, but indirectly, by reinforcing family bonds and mutual support.

8. *What do you understand by Administrative Ethics? Why is it needed for efficient functioning of the administrative machinery?*

Answer:

There are many definitions of administrative ethics.

- Administrative ethics are considered as 'a set of moral norms and requirements for those in public administration to aim their professional activity at attainment of common wealth and effective use of moral values'.
- Administrative ethics are based upon moral norms. These norms are approved by society, in its role as an important regulator of collective activities and existence as well as upon professional values, which are closely connected to public administration.
- Its tasks are to regulate employee relations by means of norms, behaviour and actions, and to form an ethical component in the consciousness of public administration employees.
- Normally, it is stressed that governmental employees set up ethical standards for managerial decisions, analyze these standards and bear personal and professional responsibility for the decisions made.

Administrative ethics studies all moral aspects of public administration employees' and senior managers' activities. It includes three basic components.

- **Values:** individual, group and social statements, opinions and attitudes towards concepts like freedom, justice, honesty, loyalty, neutrality, responsibility, etc.
- **Standards and norms:** the principles that guide the actions of people and employees and help lead and control their behaviour (laws, codes, rules).
- **Behaviour:** different forms of employee activity limited by certain standards and norms corresponding with social values.

Importance of administrative ethics:

- They reflect the concept and goals of the civil service as well as special tasks of different governmental institutions.

- These principles are influenced by a conception of an ideal or target public administration model adopted in society.
- They aid in defining the ethical requirements for civil servants, to understand clearly the aim of the civil service and the mission of the civil servant.
- To participate in the regulation of the relationship between government and citizens.
- To promote public and state concerns in government activities as much as possible.
- To provide public administration staff with certain behavioral standards based on morality.

The main task of administrative ethics is participation in regulation of the relationship between the government and people. A system of ethical standards and requirements would assist:

1. in putting into practice social constitutional values, such as freedom, social justice, equal opportunities, essential civil rights;
2. in overcoming differences between public groups by means of development and performing reasonable and constructive policies, compromising ethics and social integration; ethical aspects of working out and making decisions in the area of public administration are of primary importance in this case;
3. in distributing public wealth, goods, benefits and compensations made by governmental bodies; furthermore, in the course of governmental institutions performing these tasks, the problems of justice, equality, etc. arise;
4. in increasing authority and prestige, since any state and regional government institution employee represents power in general, and ordinary people considers his/her activities as actions of the state; this imposes a special responsibility for those employed in the area of public administration.

Why administrative ethics are needed for efficient functioning of the administrative machinery:

- An increasing need to define ethical criteria for every public servant, and to impose responsibility for his/her professional activities.
- Developing a unified approach to set up easily interpreted moral principles and standards and to work out a unified system of values and ideals.
- Administrative ethics require professional groups and specialists working for these groups to serve social, professional, group and single customer concerns.
- Special ethical requirements for administrators are necessary in order to realize in society such constitutional values as freedom, social justice, equal opportunities and essential human rights. Therefore, there is a strong relationship between ethical requirements and constitutional values. Special requirements for administrators should cover the following standards: requirements (how professional morality directs civil servant behaviour in certain conditions); prohibitions (what is prohibited in professional behaviour); recommendations (how civil servants should behave in certain moral conditions).
- It is extremely important to develop high moral responsibility for public administration employees who are dealing with individuals representing different social groups. It should be mentioned that from the citizen, professional group or institution point of view it is public administration employee who represents the state and acts on behalf or according to the order of the government body. His/her behaviour, style of work, ways to resolve problems and to talk to ordinary people finally forms the impression upon government machinery.
- All mentioned above oblige to develop measures to improve style of ministries and departments work as well as to control the performance of government

administrative machinery. It is necessary to pay attention to high responsibility for one's duties in the employee education, to inculcate in servant the features like efficiency, orderliness, irreproachable and honest duty performance as well as ability to foresee and to work prospectively.

Student Notes:

9. ***Colleges and schools are a microcosm of the real world. Elaborate as to how these are instrumental in character-building. Also suggest certain measures through which these institutions can play a greater role in the current scenario.***

Approach:

Establish how colleges and school represents the real world. Then discuss the ways in which they play a role in character formation, the way they influence an individual and the degree of influence. Finally suggest some measure to enhance the quality, impact and form of the values imparted by these institutions. These measures should be mainly focused upon enhancing the efficiency, role and scope of these institutions in character building.

Answer:

Family acts as a primary teacher in child's life but it is school, which broadens his horizon and allows others (teachers, staff, peers, etc.) to help him develop into the smart, confident and respectful adult. Schools and colleges represent a small sample of real world to the child in a way that there are individuals senior to him (teachers, staff) whom he is supposed to obey, there are colleagues from different class, caste and race, religion, sex, nationalities, cultures and traditions with whom he interacts and it provides him the first experience of future life in which he has to be among such persons belonging to various groups. It also helps them to shape their viewpoint of the world around them. Schools provide a world view in a sense that there are deadlines to complete the tasks, examination are manifestation of performance oriented life, gradation/marking signifies that in real life one will be evaluated and rewarded based upon his performance. Thus in schools/colleges different kinds of processes and interactions come to a child for the first time and thus it makes them very important institutions for character building and inculcating values.

Role of Schools and Colleges:

School is primarily an educational institution, which fosters systematic learning in a more or less prescribed manner. School's role is to bring each student to his individual, maximum academic potential. A significant amount of schoolwork throughout the grades is dedicated to helping children become expert problem solvers and solution seekers, skills that will come in just about every personal and professional aspect of child's adult life. Therefore, in addition to academic skills, problem solving is an essential life skill.

The school plays an important role in helping children learn to interact positively with their peers and teachers. They learn about healthy relationship skills and develop them further through interactions, both in classroom and on the playgrounds. Thus schools provide them an opportunity to connect with other children and adults in a caring and emphatic manner. Schools not only provide lessons on reading, writing and arithmetic rather from the very beginning it also focuses on helping kids learn about compassion, respect, empathy and integrity. At first it begins with basic lessons like "raise your hand to speak" and "keep your hands to yourself".

Later it develops into argumentative debates about moral and social issues. By the time one graduates high school he should have a fairly firm grasp on his own beliefs, values and how he see himself. All this helps him to be a responsible and confident human

being. Team spirit, leadership, obedience and discipline are some other important personality traits, which are imparted by schools through various activities.

Student Notes:

Measures, which can improve role of Schools/Colleges:

- The way in which teachers interact with children and encourage interaction between children, affects each child's development in important ways. So it is very important to ensure quality interaction at each level. For this it is expected that schools publish policies for building the character of their pupils and regularly assessing pupils' strength of character. This can also include general behavioural expectation from the teachers and staff.
- Moreover, there should be a part of curriculum dedicated to education of values. Lectures and events based upon lives of great leaders, social reformers and noble personalities should be promoted and rather than keeping them superficial in nature they should be so designed that it can create maximum impact on students' life.
- Students with good character should be rewarded and appreciated; this will promote others to behave like that.
- Teachers should present themselves as a role model to students and stay completely honest and dedicated in their responsibility.
- Students should be taught about emerging ethical dilemmas in the times of growing use of technology with respect to social media, internet, mobile phones etc.
- Cordial and constructive relation between seniors and juniors is an important element for strong and swift character building process of an individual while lack of this results in many problems like clashes (in form of ragging etc.), stress and exploitation.

10. *Is the morality of an action dependent upon the circumstances of the act or is it independent of it? Examine. Can an action be unethical yet moral?*

Answer:

Morality is individual's own sense of right or wrong which is subject to change according to their changing social milieu and associated social, cultural, religious and political conditionings. Besides this there is an existence of transcendental, objective moral truths which functions regardless of geographic location, place in history or form of culture. Humans have historically recognized some objective moral absolutes; these principles transcend culture, location and history. The doctrine that says that morality is depended on circumstance sees morality in relative terms and it has important implications for how we conduct our lives, organize our societies, and deal with others.

Suppose you have a moral disagreement with someone, for example, a disagreement about whether it is okay to live in a society where the amount of money you are born with is the primary determinant of how wealthy you will end up. In pursuing this debate, you assume that you are correct about the issue and that your conversation partner is mistaken. Your conversation partner assumes that you are making the blunder. In other words, you both assume that only one of you can be correct. However, both conflicting moral beliefs can be true.

However some moral actions are often dependent upon the circumstances in which they are made. For e.g. moral actions (such as killing) are sometimes justified under certain circumstances (i.e. when protecting the life of an innocent child) . Similar is the case with attitudes towards violence which is paralleled by variation in attitudes

towards sex and marriage. When studying culturally independent societies, anthropologists have found that over 80% permit polygamy. Some cultures marry off girls while they are still pubescent or even younger. In parts of Ethiopia, half the girls are married before their 15th birthday.

Some scholars say moral variation is greatly exaggerated – people really agree about values but have different factual beliefs or life circumstances that lead them to behave differently.

With morals, unlike science, there is no well-recognized standard that can be used to test, confirm, or correct when disagreements arise.

Therefore what we require is to address the multifariousness of moral considerations that arise in particular cases and the need and possibility for employing moral principles in sound moral reasoning. We require moral judgment, not simply a deductive application of principles or a particularist bottom-line intuition about what we should do. Our moral judgment is greatly aided if it is able to rest on the sort of heuristic support that casuistry offers.

Our principal interest is in ways that we need to structure or think about conflicting considerations in order to negotiate well our reasoning involving them. Some influential building-block for thinking about moral conflicts can be W. D. Ross's notion of a "prima facie duty" (if there is a conflict between prima facie duties, the one that is strongest in the circumstances should be taken) etc.

But relativism has been widely criticized as well. It is attacked as being sophomoric, pernicious, and even incoherent. Moral philosophers, theologians, and social scientists try to identify objective values so as to forestall the relativist menace.

ii) Morals and ethics are two sides of the same coin. Morals are 'rules' (if you will) that individuals are personally bound by through our experiences, knowledge, upbringing, environment, etc. Ethics on the other hand are 'rules' that we subscribe to based on any particular social group with which we associate ourselves. For the better part of the population, morals and ethics are in line with each other. Simply put, most people choose to associate themselves in groups with which they can 'see themselves' in.

Telling lies is unethical, but to do so to save a life is certainly moral. For example, there are numerous examples of very ethical people who lied to the Nazi's in order to save the lives of Jews. Many professions are put in ethical dilemmas all the time, for example police officers. If their higher purpose is to save lives, then their action is moral even if sometimes the means is unethical. Many times those same police officers are willing to delude themselves into thinking the action is moral when it is not.

A dilemma arises when a group's 'morals' (i.e. ethics) are not in line with an individual's morals. Whether you choose to analyze such a dilemma from a psychiatric, physiological or sociological stance is a matter of personal preference. However, any act, belief, behavior, thought, etc. can be moral but unethical. That is, if you are personally bound to believing that a particular act is moral, it does not necessarily have to be ethical. Take any 'hot political topic', such as war, abortion or human rights, or if you prefer more personal acts/behaviors such as monogamy or suicide.

Essentially, any act that an individual chooses to pursue, but is frowned on by the social group serves as an example. The only pre-requisite is that the individual who performs the act believes it to be moral. Extreme examples; Hitler and Napoleon. They each (most likely) believed their respective actions were morally justified, but the world marginalized them as unethical leaders.

11. Should circumstances be the sole criterion for judging the morality of human action or the nature of the action and its purpose must also be considered? Justify your stand with examples.

Approach:

The answer should contain the following parts:

- Identify the elements of human action (nature/object, circumstances, and purpose) that are analyzed for judging the morality of human action.
- Further, explain that though circumstances are a criterion but they are not the sole criterion since the object, as well as, purpose of human action should also be considered in deciding the morality of human action.
- To justify your point, give examples/illustrations to show that circumstances can't make an action, whose object is bad, ethical.

Answer:

Some philosophers (teleologists or interpretivists) subscribe to the view that circumstances are the sole criterion for judging the morality of human action. Joseph Fletcher maintained that action becomes specific through circumstances. Without specificity ethical elements in action can't be examined. Circumstances make an abstract action to be specific based on time, place, agent, and manner. For example, to strike in self defence is one thing and to strike without any provocation is another matter. Thus, circumstances decide the morality of human action.

However, there are two other elements to every action that decides the morality of human action - nature/object and purpose/end of human action- not just the circumstances.

An action whose object is bad by its very nature will remain bad and nothing can improve it- neither circumstances nor purpose. For example, a lie remains a lie despite the purpose or circumstances. Circumstances can only make it less bad but never good. Here another issue with circumstances as the sole criterion becomes apparent - that it makes morality subjective and relative (telling lie can be bad or less bad depending on circumstances).

Similarly, an action whose purpose/intention is bad is unethical and nothing can improve it- neither object nor circumstances. For example, giving donation to a poor helpless person is good because of its object and the circumstances but can be termed as unethical if you give donation with an intention to lure a homeless person into doing something evil.

Thus, circumstances are not the sole criterion rather object, circumstances, and purpose together decide the morality of human action.

12. The legal framework in modern society has both anomalous and complementary relationship with its ethical framework. Discuss with examples.

Approach:

The answer should contain the following part:

- A brief introduction discussing the relationship between law and ethics.
- How law and ethics complement each other, with the help of examples.
- When do both stand in contradiction to each other, again with the help of appropriate examples.

- The answer should also address why such a variation in relationship is seen in the modern society.

Student Notes:

Answer:

The old adage “If it isn’t illegal, it must be ethical” is deeply flawed in the context of modern society. Ethics and law are as different as the unenforceable from the enforceable, and as complementary to each other in the ultimate aim of creating a citizenry, which does the ‘right’ thing when confronted with dilemmas.

Law are codified norms of the society, backed by the legitimacy of the state. It reflects areas of moral agreement so broad that the society comes together and says, “This ethical behaviour shall be mandated”. To a broad extent, when ethics collapses, the law rushes in to fill the void.

An example helps here. Earlier you didn’t throw litter on the road simply because “people don’t do those things”—because it was the “wrong” thing to do. Now you don’t toss litter because there are fines for doing so. What was once a second-domain issue of ethics has shifted to a first-domain issue of law. In such examples, legal framework and ethics play a complementary role.

But there’s another side to it too, when legal framework can possibly have an anomalous relationship with the ethical framework. A case in point is the “Ethics of civil disobedience”. The standard of civil disobedience urges that unjust laws be disobeyed. Mahatma Gandhi effectively used it in the 1920s against an unjust but lawful government. Later on, civil rights movement in the United States in 1960s and anti-apartheid movement in South Africa also were directed against unjust laws present in those times. Civil disobedience demands moral reasons to disobey the law.

Such an anomaly is striking in the modern society because of the growing acceptance of importance of delivering human rights to everyone, which many a times come in conflict with the prevailing conservative laws. Gay rights movement is a relevant example.

13. ***"Morality is based neither on the principle of utility, nor on a law of nature, but on human reason. But human reason can be fallible." Comment. What does morality mean to you?***

Approach:

- Explain the statement giving examples where human reason cannot decisively judge between what is good or bad.
- Give definition of morality, explain what it means to you by giving examples.

Answer:

It is through reasoning and logical thinking that man has been able to separate unjust from just and ethical from unethical; not on the basis of utility or law of nature. Human actions are based on reason, which guides us what we ought to do. The source from where we derive our reasoning can be religion, law, internal beliefs and values, etc.

As such, human reason is conditioned by a number of factors, such as existing political and social order. This leads to an act being decided as immoral by some while moral by others. For example, today, capital punishment is held as immoral by many countries and activists while there are many who reason for it as a retributive justice to some heinous crimes. Thus, depending upon the reasoning an act can be moral or immoral. We face number of dilemmas daily where reasoning creates conflict with the societal norms and ethics. Depending on new information, reasoning can thus change, making it

fallible. Hence, it is true that morality if left to pure reason can be susceptible to fault.

Morality may be termed as principles concerning the distinction between right and wrong or good and bad behavior. It is a particular system of values and principles of conduct. Generally these principles are accepted by society at large, yet, they may be personal standards of an individual that he thinks are virtuous.

To me also, morality means taking a reasoned stand to differentiate good from bad. However, it should be open to new facts and alternate viewpoints which broaden the horizon of human reason. For example, speaking truth is considered moral universally. It may also be considered moral by an individual. However, for somebody who considers helping someone in need as greater moral principle may do so even if he needs to tell a lie for same.

14. What are the various sources through which humans can judge the correctness of their actions? In the context of public life discuss how these sources are important in offering a clear and practical guidance.

Approach:

- Discuss rules, regulations and conscience as sources by which humans can judge the correctness of their actions.
- Discuss their role in public life.
- Conclude by emphasizing the desirability of these sources in ethical decision making.

Answer:

Laws and conscience are the two sources of guidance by which human beings can judge the morality of their actions. These sources are particularly important to public administrators in offering a clear and practical guidance.

1) Law, rules and regulations

Laws have a moral connotation. It induces people to act or restrains them from acting and imposes an obligation. It must not only be just, but also burdens equally. Also, it is for common, not private good. Regulations often help clarify laws. Unlike laws, rules need not be for the common good and can be for the private good. For example, rules made within an organization for efficient utilization of resources etc.

2) Conscience

It is a person's moral sense of right and wrong, viewed as acting as a guide to one's behavior. Law states a general rule concerning actions; conscience lays down a practical rule for specific action. Conscience applies the law or rule to specific actions; therefore it is wider than law.

Importance in offering a clear and practical guidance

In considering right and wrong, public administrators have at their disposal information on the nature of the action performed or about to be performed, the circumstances surrounding the action and the purpose of the action. Laws, rules and regulations provide additional guidance to these.

Sometimes rules circumvent what the civil law clearly states. While a superior can punish a subordinate for violating such rules, if the rule is contrary to civil or natural law, the violator may have acted ethically. Hence, rules violating natural or civil laws should be avoided.

It is often recognized that rules and regulations alone are insufficient for public administrators. Without a conscience to apply those laws and rules to particular actions, public administrators miss a critical element. Conscience helps in applying the laws, rules and other criteria of morality to specific actions.

All public administrators have to make discretionary decisions where conscience plays an important role.

15. What do you understand by 'civic virtue' in public life? What are the challenges in practicing it in today's time? How can these challenges be overcome?

Approach:

- Define the civic virtue and discuss different dimensions of civic virtue.
- Discuss the challenges faced by public while practicing it.
- Also list some solutions.

Answer:

Civic virtue is morality or a standard of righteous behavior in relation to a citizen's involvement in a society. It is an underpinning of how a citizen relates to the society. As such, civic virtue has different notions in different societies. A liberal society makes minimum demands on its citizens, whereas a republican tradition demands that citizens be active, on the assumption that high levels of civic engagement is necessary to protect against government excesses or to create shared public goods. Conservatism emphasized family values and obedience to the father and the state. Nationalism carried by masses of people made patriotism an important civic virtue.

A citizen may exhibit it simply by voting, by paying taxes, volunteering for social cause, maintaining cleanliness, etc. Civic virtue lays stress on communitarianism rather than individualism. Robert Putnam has defined three civic virtues: active participation in public life, trustworthiness and reciprocity that is required through social connectedness.

Challenges in practicing

- Growing individualism due to changes in society and its organization. Most importantly, with conflict between traditional and modern values, the notions of civic virtues are changing leaving a void in its actual practice.
- Competition for limited resources, with everyone trying to extract maximum for self. In such an environment, people tend to forget their obligations towards society and commitment to values. For example, people evade taxes to save money for personal expenses.
- Lack of trust between public organizations and people and subordination of public interest over personal interest.
- Difficulties in bringing about changes in behaviour and attitude, which stand in the way of practicing desirable civic behaviour.

Solutions

- **Promote civic education:** School education is necessary for the upbringing of a child. But it is not sufficient to generate a sense of responsibility towards society. Hence we need to promote civility through value education.
- **Lead by Example:** Presently, people have cynical views regarding their leaders. The public justify their action by assuming that leaders preach the ideas but not follow them. So leaders need to be torchbearers. For example, many political leaders came forward and tried to set an example for the society to promote cleanliness in India.

- **Influential People:** People have blind following for actors, entrepreneurs, speakers etc. These people can easily generate sense of a responsibility towards the society. For example, the government makes use of actors to fight against the problem of open defecation and to encourage tax payments.
- **Awareness about rights and duties:** It is high time that people also give due importance to their duties. For instance, recently SC has held that if a person does not cast his vote, then he has no right to question the government.

16. *The lives of great leaders inspire us in many ways. Which leader has had a lasting impact on you and in what way? Mention one outstanding value that you have imbibed from him/her and its importance to being a civil servant.*

Approach:

- Describe which leader had a lasting impact on you and why.
- Mention the outstanding value of the leader that you have imbibed.
- Also explain the importance of those values in civil services.

Answer:

Dr. APJ Abdul Kalam is known to the world as the first scientist who went on to become the President of India. But he was so much more than the labels that can describe. **He inspired others to dream big, and led through example.** He did not limit his thinking only to individual growth but expanded it to his country, and the world.

Dr. APJ Abdul Kalam embraced his unique traits, and strengths. He dared us to think differently, innovate, and experiment. **He reminded us again and again, not be afraid of failures or what people think.** Because without failed experiments, there will not be new learning.

He displayed the qualities of devotion, dedication and determination towards his works. He had a vision of developed and progressive India and inspired us all around his vision. He had remarkable qualities of leadership. As a leader of his team, he used to be the first to accept failures but gives first credit to his team on success.

The most outstanding value of Dr. Kalam which had lasting impact on our minds is **His unparalleled humility came with deep compassion. Such quality should also be imbibed by the civil servants.**

He wanted each and every Indian to realize their full potential, and contribute to the well-being of the country and the world. He said - "Look at the sky. We are not alone. The whole universe is friendly to us and conspires only to give the best to those who dream and work."

Humility is important in civil servants. It means the quality of having a modest or low view of one's importance. A humble civil servant seek input from others to ensure they have all the facts and are making decisions that are in the best interest of the different sections of society. It becomes more significant in Indian context where owing to colonial legacy and the miniscule proportion of its elite cadre, civil servants often display ivory tower mentality, supremacy, individualism and disdain for public participation in decision making.

A great way to show humility is accepting and admitting to past mistakes and using these mistakes as teachable moments for constituents. When institutions and leaders admit their mistakes, they make it acceptable for others to make their own mistakes and learn from them.

Each civil servant has to place the people at the centre, be responsive to their needs, respectful of their wishes and accountable to them. This requires civil servants to be selfless in their contribution, inclusive in their decisions, humble in their behaviour and inspiring in their actions.

17. What is the relationship between Ethics and Law? Explain with examples.

Student Notes:

Approach:

- Briefly, define Ethics and Law.
- Discuss the various aspects of Ethics and Laws to explain the relationship between both.
- Provide an appropriate conclusion.

Answer:

Ethics is a reasoned framework of moral principles, which is concerned with what is good for individuals and society. However, law is structured system of rules and regulations enforced through certain authority to govern individual's behavior, actions and social relations.

Relationship between Law and Ethics

Similarities:

- Both laws and ethics are systems which maintain a set of moral values and prevent people from violating them. They both provide guidelines to people of what they may or may not do in certain situations. Most laws represent the minimum standards of ethical human behavior.
- It is when certain ethical principles become widely accepted, they are codified into laws. For example, 'motherhood' in our society is considered to be sacrosanct and does not trade for monetary value. Therefore, the law regulating surrogacy in India allows only altruistic surrogacy.

Dissimilarities:

- Foremost, law provides for punishment for violation- a legally enforceable action by the competent authority. Ethics on the other hand may invite social sanction, but no legally enforceable punishment in a court of law.
- There may be many areas where law does not exist or is silent. But ethics and morals have a wider scope. For example, the law will not bind a businessman to tell his competitor about their new client that has a reputation of not paying dues, but ethics will still guide judgment here.
- Ethics may vary from people to people because different people may have different opinions on a certain issue, but laws describe clearly what is illegal no matter what individual opinions people have of them.
- To some extent, ethics is not well defined but laws are defined and precise.
- Ethics as a code of conduct may evolve as a society matures, but laws need to be changed through specific action of the legislature.

The relationship between law and ethics is dynamic and a function of its time. Ethics guide laws. Changing ethical and moral standards lead to amendment or invalidation of existing laws. For example, The Right to Information was enacted to codify the ethics of transparency in government functioning. Similarly, earlier homosexuality was widely perceived as unnatural and immoral. But with the social progression, Section 377 has been declared unconstitutional in so far as it criminalized "consensual sexual conduct between adults of the same sex".

11. Previous Year Case Studies of Vision IAS Test Series

Student Notes:

1. *The global toll of the COVID-19 pandemic is enormous: more than a half-million lives lost, hundreds of millions out of work, and trillions of dollars of wealth destroyed. And the disease has by no means run its course. There is tremendous interest in the development of a vaccine, with more than a hundred initiatives under way around the world. Even if one or more vaccines emerge that promise to make people less susceptible to COVID-19, the public-health problem will not be eliminated. But policymakers can avert some foreseeable problems by starting to address key questions about financing and distribution now. In view of the above scenario, answer the following questions: (a) Identify the different stakeholders involved in this scenario. (b) Identify some of the ethical questions and issues that are likely to emerge as the vaccine becomes available. (c) Who, in your opinion, should be amongst the first recipients of the vaccine? Give reasons for your answer.*

Approach:

- Introduce by providing the gist of the given case study.
- Enlist the various stakeholders involved in the given case study.
- Bring out some of the ethical issues that are likely to emerge as the vaccine becomes available.
- Discuss who should receive the vaccine first. Support your argument with valid reasons.

Answer:

COVID-19 emerged in China and quickly became a worldwide problem. Just within the first few months, the pandemic has adversely affected the lives of hundreds of millions and more than a half-million have lost their lives. In light of this, various efforts are underway for developing a suitable vaccine.

- a) Following are the **different stakeholders** involved in this scenario:
- **Common public at large:** Their lives and livelihood depend upon the availability of vaccines, especially of those who cannot afford masks, sanitisers and other precautionary measures.
 - **Health-care workers and other essential workers** involved in providing services to people: They are in direct contact with the virus and are overworked due to large number of cases coming. Every day they are putting themselves, as well as their families at risks. Therefore, they would be willing to have a cure as early as possible.
 - **Health organizations** around the world like the World Health Organisation etc.: They are responsible for research, collaboration, providing accurate information, etc. Their efficacy as well as reputation is at stake.
 - **Governments around the world:** It is their moral responsibility to control the pandemic, provide adequate fund for the research and production of vaccine and work towards its equitable access.
 - **Non-governmental institutions** like Bill & Melinda Gates Foundation: They invest in the research and also work with the governments in distributing the vaccines and making them available to the vulnerable sections.
- b) As the vaccine becomes available then following are some of the ethical issues that are likely to emerge:
- **Concern about safety of the developed vaccine:** In a hurry to develop a vaccine, various organizations are rushing through trial phase raising concerns about efficacy and side-effects of the vaccine. In the process, they are neglecting one of the principles of medical ethics- 'to do no harm'.

- **Issues related to vaccine producing companies:** Here the related question is of how the companies that develop a vaccine will be compensated if they are required to license the patents and know-how to producers elsewhere.
 - **Issues with capacity of vaccine production and distribution:** There are nearly eight billion people on the earth. Manufacturing eight billion doses (or multiples of that if more than one dose is needed) of one or more vaccines and distributing them around the globe could require years, not months.
 - **Political concerns:** These include questions like who should receive the initial doses of any vaccine, who should pay for the cost of vaccine production and distribution, which authority will determine with regard to the above questions, should a vaccine be given for free to some or all etc.
 - **International concerns:** At the international level, the questions are even more complex like what special advantages should be accrued to the country where a vaccine is developed, to what extent the wealthier countries should help the poorer countries.
- c) Considering the large population and limited capacity of production and distribution of vaccine, it will not be possible to provide everyone around the world with the vaccine at the same time. There is need to develop a strategy for the same which will guide us in deciding who should receive the vaccine first.
- One idea in this regard would be to administer the initial doses of vaccine **first to health-care workers, followed by police, firefighters, the military, teachers, and other essential workers.** This is done by analyzing the risk one faces due to their occupation. The frontline workers who are at higher risk should be given a vaccine first. This will help them in performing their role fearlessly and efficiently. There have been several cases where frontline workers have lost their lives while performing their duty. Also, there have been instances of discrimination against them.
 - Second idea is that the governments must consider the risk of COVID-19 disease progressing into serious complications. As per this approach, **priority should be given to those who are at higher risk of developing serious complications** from COVID-19, such as the elderly and those with pre-existing medical conditions. This will not only help us in halting the progression of disease into severe form but will also help in reducing the mortality.

In this context, any effective vaccine that is developed should be treated as a global public good and should be distributed equally around the world, regardless of where it was invented or of a country's ability to pay. The WHO for this has put forward a global allocation framework that seeks to ensure priority for the most vulnerable populations and frontline workers.

2. *Various studies have found out that cases of depression and mental illness have increased exponentially in the recent past. Also, in the age group of 15-30 years, this problem is further pronounced. Furthermore, the rising trend of suicides in this age group has been attributed to depression.*

Given the situation, answer the following questions:

- (a) *Present an ethical critique of the prevalent societal attitude towards mental illness.*
- (b) *Given the magnitude of the problem among younger generation/young adults, analyse the role of the following:*
- i. *Parenting*
 - ii. *Social Media*
 - iii. *Video Games*

Approach:

- Introduce the answer with statistics around mental health problems.
- Discuss the prevalent societal attitudes toward mental health issues and highlight an ethical critique towards it.
- Briefly mention the perceptual shifts needed to tackle these issues.
- Analyse the role of parenting, social media, and video games in causing the mental health issues.
- Conclude briefly.

Answer:

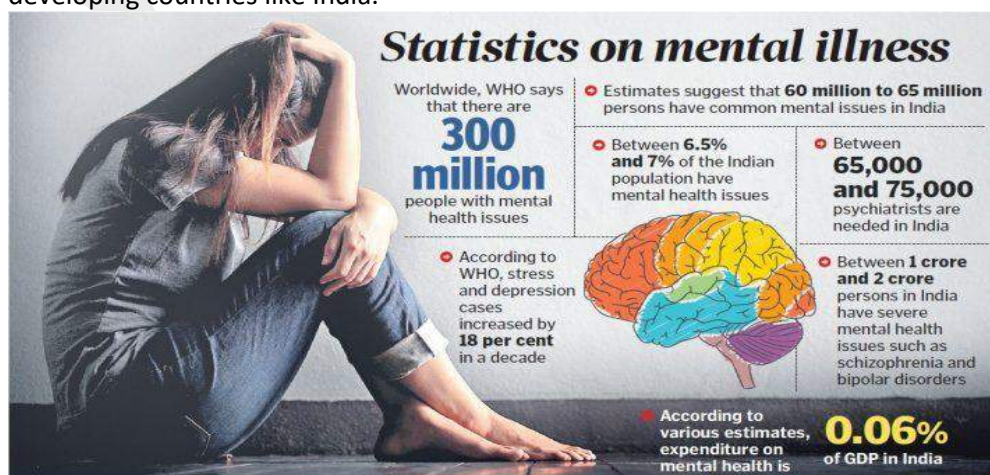
According to WHO, stress and depression cases increased by 18% in the last decade but the expenditure on mental health in India is merely 0.06% of GDP. In the age group of 15-30, increase in mental health issues and eventual suicide rates can be attributed toward cultural changes, and behavioural changes in the wake of increasing urbanisation, employment and emotional uncertainty, social media generated online bullying and peer pressure.

a) **Attitudes and beliefs about mental illness** can be shaped by multiple factors:

- Knowledge acquired through keenness
- Experience/interaction with someone living with mental illness
- Cultural stereotypes
- Media stories
- Familiarity with institutional practices and past restrictions (e.g., employment restrictions)

Hence, the prevalent societal attitudes towards mental illness vary from empathy and caring to that of neglect, pity and abhorrent treatment like a less-worthy human. **Although the societal attitude towards mental illness though has slowly been evolving, however, following ethical issues continue to remain. For instance:**

- **Trivialisation:** It is a minimising behaviour where an illness is conceptualised as being easier to acquire, suffer with, or treat. Attitudes towards mental health are still not on equal terms with those towards physical health.
- **Stigmatisation:** It is a significant barrier for the early diagnosis and treatment of various mental health conditions. People with mental health problems are less likely to seek help if they feel their condition is stigmatised.
- **Social Labelling:** In a lot of cases depression is stereotyped as a 'first world problem' or the 'problem of luxury' and not an issue in the third world – which is untrue, as large number of students, female, and farmer suicides take place in developing countries like India.



Student Notes:

- **Treatment issues and perceptual biases:** Researching the diagnosis and treatment of mental disorders also presents special ethical issues. For instance, while dementia is perceived as quite straightforwardly 'medical', other ailments like personality disorders are sometimes treated and looked at differently, with a stigma.

The society at large, beginning from the family, needs to be open about discussing mental health issues. Consulting psychiatrist or medications should not be considered taboo and immediate assistance and familial support must be provided, for which district administrations can play a big role by creating sensitisation campaigns. Interventions like happiness curriculum as introduced by the Delhi government that included meditation; sports activities; reconnecting with nature should be undertaken so as to hone young minds.

- b) Mental health problem is a scientifically treatable disease. A disease has a cause, an aggravating condition, and finally a treatment. Excessive pressure and competition is a common cause of occurrence and its ignorance, a cause of aggravation. **The role of parenting, social media and video games for the younger generation vis-a-vis mental health problems is as under:**

- **Parenting:** Parental support and a nurturing family are key to addressing mental health issues. The first step begins with a liberal environment in the family where young adults, teenagers, can have free discussions with their parents. Moreover, parents need to also understand that peer pressure, and creating pressure over exam results, performance in competitive exams may impact young minds and increase student suicide rates. Thus, a conducive environment where the younger generation is encouraged to discuss issues should be promoted, over and above dismissing beliefs related to mental health treatments.
- **Social Media:** Social media addiction is one of the key factors responsible in changing our behaviour towards others and alienating ourselves. While social media is a good platform towards connecting with people, and gather information, over-dependence and over-consumption of it amount to addiction, which influences the cognitive ability of adults, teenagers. Moreover, things such as trolling, cyber bullying, perceptions about others, the need to constantly post or upload – further isolate minds, while also limiting good habits like reading, playing, or spending time with nature.
 - Social media behaviour should be restricted and sensitisation campaigns on limiting their usage must be undertaken by all schools, colleges, and work environments.
- **Video Games:** According to the WHO, **video-gaming disorder** is a "pattern of persistent or recurrent gaming behaviour" in which people lose control over their gaming behaviour, resulting in impairments in their family relationships and social lives and has recommended to classify gaming disorder as a separate addiction. The Blue Whale Challenge game posed serious mental health risks in the form of self-harm and attempted suicides.

It is therefore important to not dismiss mental health issues based on ill-conceived notions and understand that stigmatisation will only worsen the silent epidemic of depression. Additionally, ensuring proper implementation of the National Mental Health Policy 2014, which puts renewed focus on depression, suicides and attitudes towards mental health, shall also help in addressing these challenges.

3. *You, a reporter currently working as an intern, accompanied a small group of reporters to a political event organized by the ruling party's state unit. The party was followed by dinner where you were also asked to join. Here, you noticed that alcohol was being served to some members of the ruling party. Consumption of alcohol had been declared illegal in the state a few months ago and the ban is being enforced strictly across the state. The other reporters in your group ignored the issue and asked you to ignore it as well. However, it was clear to you that the law was not being followed.*

- (a) *Identify the issues involved in this scenario.*
 (b) *What are your duties in such a scenario?*
 (c) *What course of action would you follow and why?*

Approach:

- Discuss issues such as political apathy, insensitivity and lack of values.
- Highlight the duties as an ethical journalist and a responsible citizen.
- Discuss the action which you would take.

Answer:

a) Facts of the case:

I as a reporter have witnessed a clear violation of law regarding prohibition of alcohol by the same party who is in power and being asked to keep quiet about it by my colleagues.

The issues related to the party members involved include:

- Breach of the law banning alcohol consumption.
- Political apathy.
- Dishonest and inappropriate behaviour.
- Double standards while implementing the laws v/s following them in letter and spirit.
- Possible misuse of authority and influence to gain access to banned substance.

The issues related to reporters who turned a blind eye towards the incidence are:

- Breach of journalistic ethics.
- Indirect collusion with law breakers.
- Possible vested interests.

b) My duty as a journalist is to uphold the core values and cardinal principles of journalism - truth, accuracy, fairness, impartiality and accountability.

As a responsible citizen, it is my duty to abide by the law of the land and to help the authorities in its implementation. I should report any visible breach of law which may help the authorities to implement the rule of law in letter and spirit.

c) I have two alternatives, either to keep quiet or report the incident to concerned authority. By choosing the former I will not only be violating journalistic ethics, it also shows lack of courage and an attitude of indifference towards illegality.

- Thus, I will report the issue to the police as it is a blatant violation of the law. As a journalist I would collect relevant evidence (photograph/video etc.) which may be useful in reporting this issue and aiding the police in filing a case.
- The fact that other group members want me to ignore the issue may be due to fear or due to some vested interest. I would also try to convince the other members in my group to come forward and bring the law breakers to justice.

- I will use the journalistic platform and social media to bring the issue to the notice of the general public so that true picture of those involved may be brought to fore.

Student Notes:

Reason behind the course of action:

Reporting the illegal consumption of banned substances will help the administration curb smuggling and in better implementation of the law. The **journalistic principles of truth and fairness** and **duty as a citizen** of not remaining merely a spectator after witnessing an illegal act but raising my voice against it will be upheld. Consumption of alcohol by party members shows a clear case of hypocrisy. Such hypocrisy must be checked to have a government with integrity.

4. *Ramesh, a very hardworking person, is the sole bread earner in his family. He has worked with an oil company's local affiliate for several years, and has established a strong, trustworthy relationship with Suresh, manager of the local facility. Suresh has recently recommended Ramesh to be recruited as the corporate consulting engineer for the company, which would be a position of greater responsibility along with a stable income. During a casual conversation, Suresh mentions an incident in the 1960s wherein 10,000 gallons of a petrochemical was leaked into the local environment by the company due to negligence, though at the time no damage was found, and no mention of this leak was made to the press. When Ramesh mentions that the state law requires him to report all spills, Suresh reminds him that no harm had been done and reminds him that the company can't have a consulting engineer who does not value loyalty and respect confidentiality.*
- (a) *Identify the ethical issues involved in the given case.*
- (b) *What are the options available to Ramesh in this situation? Evaluate each of them.*
- (c) *Had you been at Ramesh's place, what would have been your course of action? Give reasons for the same.*

Approach:

- Analyse the case and identify the key ethical issues involved.
- List the options available to Ramesh in a given situation and bring out the positives and negatives of each available option.
- Give the course of action and give arguments to justify your course of action.

Answer:

Involved Stake holders

- Ramesh, Suresh, the oil company, the government and the general public.

(a) Ethical Issue involved

1. Self-interest vs public interest

Provided that Ramesh is the only earning person in his family and his source of income is not stable; he is not in position to lose his job. But, if he considers his job, he is showing apathy towards public interest which lies in reporting the incident.

2. Moral values vs organisational ethics

Ramesh will be having the conflict between his belief in personal values and the organisational ethics. Even if, he follows any one of them he will be doing injustice with the other.

3. Negligence to state laws vs responsible citizen

Being a responsible citizen of the country, it is his duty to show respect for the public laws by reporting the issue. But, to save his job he will neglect the state laws.

(b) Options Available**1. Remain silent on the issue****Merits**

- Since it happened long back and nobody was affected, it may be argued that raising the issue now would be pointless.
- Following the advice of Suresh would mean that Ramesh's relationship with him, both personal & professional, would not be affected.
- It may also pave the way for further promotions.

Demerits

- Such inaction shows lack of respect for state laws which require reporting all such incidents.
- Also such action may pave the way for future where such leaks are not reported.

2. Convince Suresh to report to the Government**Merits**

- Reporting such incidents shows respect for state laws.
- Ramesh's personal relationship with Suresh will remain unaffected.
- It would lead to detailed investigation for assessing the impact of the leakage.

Demerits

- It may jeopardize the professional career of both Ramesh and Suresh.

3. Talk to his senior or director**Merits**

- It will also give a chance to senior or director to take suitable actions to correct the earlier wrong happenings.
- It shows that Ramesh is trying to exhaust all available avenues where he can justify his own values and responsibilities as a citizen.

Demerits

- He may face resistance in the company against him as the company has not reported this incident till now.

4. To become whistle blower and reveal the incident**Merits**

- He will ensure his actions towards abiding by the state laws as responsible citizen.
- He will be able to save environment and risks to people's lives, if there were any adverse effects later.

Demerits

- He may lose his job and destroy his relationship with Suresh permanently.

(c) Best Course of Action

Considering the gravity of the situation, I would have tried to convince the seniors for reporting the incident to the government which then can assess the damages done to the environment and public. This would also mean that wrongdoers would be punished for their actions. This will also set an example for others to work following the rule of law. However, it may mean that I might lose my job. At the same time, it must be noted that in such cases public interest is more important which cannot be compromised at any cost.

5. *Regulation and procedure of human clinical trials vary from nation to nation. Stem cell research, as an emerging biomedical field, requires approval for human trials and encounters multiple challenges. You are the head of a team of scientists who developed a new Tissue Engineering system, which appears to be a promising means of regenerating heart tissue. Trials of the system have already been conducted on animals and yielded good results. Millions of people suffering from critical heart diseases would benefit immensely if this medication is immediately made available to them. However, you need to conduct human clinical trials before it could be commercialized. It is also known that the stringent regulatory environment in the country will mean that human trials and final approval will take many years before it is made commercially available. On the other hand, regulation of clinical trials in many poor countries is weak and quick approval is possible. Many of your competitors also resort to human trials in these countries, often bribing the officials for getting quick approvals. Given this situation, answer the following questions:*
- Identify the ethical issues which arise during clinical trials.*
 - Given the above situation, would you prefer to shift human trials to a third country where regulations are lax? Give reasons in support of your choice.*
 - Suggest a framework of standard procedure to minimize ethical conflicts and speed-up the approval process of new medicines.*

Approach:

- Give a brief introduction about human clinical trials and identify the ethical issues in clinical trials.
- Discuss the merits and demerits of shifting lab location and state your final stand on shifting the lab from the home country.
- Give a framework of standard procedure to minimise ethical conflicts and speed-up the approval process of new medicines.

Answer:

Case Summary: I am the head of a team, which developed a new system which will help people suffering from heart diseases. Before being made available commercially, it has to undergo clinical trials on humans, for which strict regulations have to be adhered. Alternatively, weak regulation in poor countries will result in quick human trials and approval there and many competitors are doing the same including use of bribes.

- Clinical trials are the tests on human volunteers to see whether new medical treatments should be approved for wider use in the general population. Various ethical issues associated are:
 - **Moral duty** to perform honest clinical trials for welfare of a large population.
 - Humanity is an end in itself (Gandhiji). Using people from the bottom strata of society for undertaking considerable risks in lieu of minor payments degrades humanity. The end result may improve general population's health, but the costs in form of exploitation, which may even cause death is wrong.
 - Ethical concerns regarding **informed consent** in poor countries.
 - Medicine is governed by certain ethos, which includes that first consideration of physician should be health and life of patient. She should not do anything, which impairs patient's health. Clinical trials may weaken the normative foundations of doctor-patient relationship in the long run.
- In the current case, the scientists have developed a new technology to regenerate heart tissues, which will provide new lives to millions of people who are suffering from critical heart disease. However, fewer regulations and corrupt governance in

poor and developing countries pull scientists to open their labs and conduct trials in these countries. The merits and demerits of such practice are as follows:

Student Notes:

Merits

- The costs are lower in poor countries. So, the developed medical treatment would be cheaper. For example, clinical trials in India could cost one-tenth of that in US.
- Availability of "**treatment-naive**" patients i.e. drug-free bodies in third world countries. They are much less likely to have been previously exposed to drugs or trials.
- The developing countries get benefits of advanced medical science and access to the latest medications.
- The process of clinical trials is quicker in developing countries because getting regulatory approvals is easier. It shortens the development time of medical treatments.
- It would make this cure quickly available to people suffering from critical heart diseases.

Demerits

- **Consent:** Most of the time, people in poor countries give their consent without understanding the contracts as they are written in foreign languages, without understanding the risks.
- **Economic Compulsion:** Sometimes poverty is responsible for the poor selling their body for clinical trials. The blind faith for western medicine also plays a role in their decision-making.
- **Poor healthcare system:** The risks are too high in clinical trials. However, poor healthcare system in the third world increases their vulnerability in cases of complications and side effects arising out of experiments on their bodies.
- The reliability of data obtained in third world countries is also questionable because of lax monitoring.
- Fewer regulatory safeguards, high levels of poverty and illiteracy encourage misconducts and substandard approach by foreign drugs companies.
- Bypassing professional ethics and an established procedure raises doubts on integrity. Competition may tempt to opt for unfair means like bribes to get approval.

As can be seen, there are a number of advantages of shifting the trials to countries where costs are cheaper and regulations less stringent. However, laxity in procedures should not be the motive for shifting trials. It would save lives of millions of people and improve accessibility of cure through cheaper cost. So, it is prudent to shift laboratory to country with easier regulations.

However, I will use the same safeguards and precautions which are used in developed countries, encompassing every aspect from informed consent, side-effects' treatment, compensation in cases of errors, etc. I would make sure that no illegal practice is done and ensure strict action for any breach.

Thus, I would be able to ensure greater benefits to people at large without compromising with the safety and well being of people who have put trust in me.

(c) Framework of standard procedure

- **Social Value:** Study should help researchers determine how to improve people's health or well-being.
- **Scientific Validity:** Research should be expected to produce useful results and increase knowledge. Researchers should design their experiments to be as good as possible.

- **Fair Subject selection:** Researchers should be fair in both recruiting and deciding which people can be in the study.
- **Favourable risk benefit ratio:** For research to be ethical, any risks must be balanced by the benefits to subjects, and/or the important new knowledge society will gain.
- **Independent review:** Researchers sometimes overlook ways they could improve their research results. To avoid such problems, a group of people who are not connected to the research are required to give it an independent review
- **Informed Consent:** Subjects must be told about the details of the study. They should voluntarily agree to participate and give informed consent.
- **Respect for subjects:** Regular health monitoring along with maintaining confidentiality of information would impart trust.

Data Sharing: Data from past researches should be made available to others. It would exclude the need for new trials for similar drugs thus speeding the process of drug approval. This clause must be ensured in WTO negotiations on data exclusivity.

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ATTITUDE

Student Notes:

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1. Attitude –Definition and overview

1.1. Meaning of Attitude

Attitude is the learned and **enduring predisposition** to behave, either favourably or unfavourably, towards something. This something can be an event, a person, an object or classes of such events, persons, or objects, respectively.

Few examples - Explanation of “half-full glass” i.e. a person’s attitude determines whether it is half-full or half-empty. Another example when population of India was exploding, one set of people looked at it as burden, while another set of people looked it as expansion of human resource that can be capitalized for development.

Two different individuals make two opposite senses of the same target object. This is because of the differences in their attitude.

Characteristics of attitude

- Attitudes are **abstract constructs**, not something we can directly observe. We are only able to infer them from behaviour.
- It is **lasting evaluation** with respect to various social significant issue and events. It is always serving some purpose.
- Attitude is **acquired through the socialisation** process. It may involve individual or groups.
- Attitude can be expressed both verbally and non-verbally.
- Attitude is important **because it shapes people’s perceptions of the social and physical world and influence overt behaviour**. For example, attitude influences friendship and animosity towards others, giving and receiving help, hiring of ethnic minority job candidates, etc. More dramatically, attitudes are at the heart of many violent attacks, including crimes against humanity.
- Attitudes change with **experiences and knowledge** as man is a ‘rational’ animal.
- **A rigid or dogmatic attitude** is not the same as a strong attitude. A strong attitude may have been formed with knowledge and experience and be grounded in rationality, hitherto oblivious to others

Difference between Value and Attitude	
 VALUES	ATTITUDES 
Moral principles or moral ethics standards of behaviour	Opinions or stances about a certain subject matter or a person
A part of person’s character	A part of person’s personality
Showcase a particular person’s moral ethics and his/her overall character	Highlight a person’s behaviour through the personality
Directly influenced by family, friends, culture, religion, and social interactions	Directly influenced by a person’s values
Moral ethics	Can be negative and positive

Attitude is ambivalent

- People can also be conflicted **or ambivalent toward an object by simultaneously** holding both positive and negative attitudes toward the same object.
- There is no **guarantee that attitude will be the same for similar objects or events**.
For someone who likes chocolates, he may at times eat them to satisfy the craving and at other times choose not to eat for health concerns.

1.2. Structure of Attitude

The structure of attitude has primarily been understood through two models i.e. **CAB/ABC** and **MODE** model, which can be seen as-

ABC MODEL	③ Cognitive component (C component): It refers to the beliefs, thoughts, and attributes that we would associate with an object. Many times a person's attitude might be based on the negative and positive attributes they associate with an object. In other words, this component includes the belief part of attitude. For example, the belief that members of X community have Y kind of features. ③ Affective (or Affection) component (A component): It refers to feelings or emotions linked to an attitude object, i.e. the positive or negative feelings towards the object for which we are holding our attitude. Affective responses influence attitudes in a number of ways. For example, many people are afraid/scared of spiders. So this negative affective response is likely to cause one to have a negative attitude towards spiders. ③ Behavioural component (B component): It refers to the past behaviours or experiences regarding an attitude object. It is the tendency to behave in a certain way (behavioural intentions) towards the attitude object. For example, if we do not like a person, then we are likely to ignore him in a gathering. This helps people infer attitudes from the previous actions of the attitude holder.
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Criticism of CAB/ABC Model

- This model is **not validated by empirical research**. Clear distinctions between thoughts, emotions, and behavioural intentions associated with a particular attitude cannot be established.
- A criticism of this ABC view of attitudes is that **it requires cognitive, affective, and behavioural associations of an attitude to be consistent**, but this may be implausible. For example, despite having negative attitude towards people from some caste, our behaviour is mostly driven by the situation.

Importance of CAB /ABC Model

- It reflects something more than just negative and positive evaluation of a particular object. Thus, this ABC structure of attitude acts as a good basic model to understand attitude.
- Importantly, it helps to identify **the source from where attitude is originating**.
- This will be helpful in persuading **someone to change attitude towards something**.

MODE MODEL	This is the theory of attitude evaluation (Motivation and Opportunity as Determinants of the attitude - behavior relation). When both motivation and opportunity are present, behavior will be deliberate. When one of them is absent, impact on behavior will be spontaneous. Hence this model talks about two different types of attitude: ③ Explicit: Explicit attitude is at the conscious level- those that are deliberately formed and easy to self-report. ③ Implicit: Implicit attitudes are at an unconscious level- those that are involuntarily formed and are typically unknown to us. Implicit attitudes are generally unacknowledged or are outside one's awareness. They are generally measured by a spontaneous reaction towards something. Both explicit and implicit attitudes can shape individual's behaviour. Implicit attitudes however, are most likely to affect behaviour when an individual feels stressed or distracted and chances for an impulsive reaction are more.
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1.3. Functions of Attitude

Attitudes serve various functions for the individual. These are broadly classified as:

Function	Definition	Explanation	Example
Instrumental function	The individual uses the attitude to obtain satisfaction from the object	The individual thus aims to maximize external reward while minimizing external punishment	An individual might develop an attitude towards a particular restaurant because his friends go there and the food is excellent
Ego-defensive function	Protects against internal conflicts and external dangers	Here the attitude shields the individual from his own failings	Someone who is unable to understand how to use the product might have an attitude that manufacturers make products too complex
Value-expressive function	Opposite of ego defensive; the drive for self-expression	The attitudes expressed often go against the flow of opinion	Most radical political viewpoints fit this mould. Think about the Gulabi women in Uttar Pradesh.
Knowledge function	The drive to seek clarity and order	Related to the need to understand what the object is all about. Comes from the belief that if you know what you like or dislike, decision-making is easy	Someone who has an interest in latest car models is likely to read magazines about them, go the autoshow and watch programmes about cars such as top gear

1.4. Broad Classification of Attitude

When we talk of attitude, it is broadly in two manners- 'attitude of' and 'attitude towards'. Attitude of is the **attitude of the subject** in question- individual, society, institution, organisation, etc. **Attitude towards is the subject's attitude towards any object**- a person, thing, institution, environment, etc. Hence, there can be many combinations of such types of attitudes. For e.g.:

Civil Services as an institution may have **democratic or bureaucratic attitude**. Democratic attitude is characterized by focus on goals/ends and treating citizens as stakeholders in the governance process.

Bureaucratic attitude is characterized by focus on rules and processes rather than goals (because elaborate and multiple rules make achievement of goals difficult, if not impossible). Also, **it is based on strict adherence to rules and hierarchy of the institution**. As such, it treats citizens as recipients of government services rather than as stakeholders. Environment, Corporate and Political attitude can be other examples

As can be seen, attitude itself is broadly of three types: **Positive, Negative and Neutral**. These are detailed in the infographic below-

TYPES OF ATTITUDE AND THERE MANIFESTATION		
Positive attitude – optimistic frame of mind	Negative attitude – it brings pessimism	Neutral attitude – It simply means detached
Positive attitude manifests in the following ways: - Positive and constructive thinking. - This frame of mind is conducive to creative thinking – it encourages to take calculated risks, necessary for innovation. - Motivation and energy to do things and accomplish goals. - An attitude of happiness.	Manifests in the following ways: - Negative and destructive thinking and hampers creative thinking. - It kills motivation and energy to do things, take risks and accomplish goals. - A person wielding this attitude remains sad and unhappy.	Manifestations of a neutral attitude are: - Ignorance; someone might have a neutral attitude towards political issues. Whatever the general societal or political problem be, they are content that it is not theirs' to solve. - Indifference - Detachment - Unemotional - Balanced (a positive trait)
		

2. Some Other Specific Types of Attitudes

2.1. Attitude Towards Weaker Sections

A man's character is most evident by how he treats those who are not in a position either to retaliate or reciprocate. The way we treat people who are disadvantaged, poor or marginalised is determined by the attitude we have towards poverty, deprivation, discrimination and other factors that perpetuate such conditions.

A positive attitude towards such factors, counter-intuitively, implies empathy and caring nature of the person. It signifies compassion towards weaker and marginalised sections. **This attitude is utmost desirable for public servants because of the immense powers they exercise for the inclusion or exclusion of the marginalised.**

Significance for Civil servant

- A civil servant is duty bound to enforce laws and implement policies, rules and regulations in a manner **which is not only 'just and fair'** but also seen to be so by **maintaining transparency and acting without fear and favour**. This should be done in the true spirit of 'rule of law' on which rests the democratic polity.

- He must be aware of the fundamental rights of the citizens enshrined in the constitution and develop a proactive attitude of empathy to promote all round upliftment and **development of the weaker and downtrodden in the true spirit of 'Sarvodaya through Antyodaya'.**
- **Tolerance and compassion make** a civil servant to lead with not only head but also heart. They are the fundamental components of one's character and of a positive relationship which will be essential to meet the needs of weaker sections (who are most dependent on public services).

For example, if a grievance redressal meeting was to be held for the differently abled in a collectorate, an officer who has an empathetic attitude will ensure that proper arrangements are made for accessibility such as having a ramp/elevator, etc.

Otherwise, there is no purpose of having such a meeting. Lack of this essential understanding that develops through a positive attitude towards the weaker and marginalised sections leads to inefficient and exclusionary public administration and service delivery, which may ultimately lead to chaos and collapse.

2.2. Moral Attitude

Attitude, as defined earlier, is the **enduring predisposition** to behave, either favourably or unfavourably, towards something. However, not every attitude is concerned with questions or situations involving morality.

For e.g. a person's liking or disliking towards apples or oranges has no question of morality involved. But **one may have moral considerations as far as being a vegetarian** or a non-vegetarian is concerned.

Similarly, a person may have a favourable attitude towards, say, transacting in cash rather than electronically. There is nothing moral or immoral about it. However, if his motive to transact in cash arises from his desire to hide his income from the government, then it has moral connotation. Similarly, attitude towards democracy or say towards weaker sections will have moral undertones.

Moral attitudes can, thus, be defined as **those which are based on moral convictions of what is "right" and what is "wrong". It implies one's reasoning about morality, his attitude toward moral lapses (both on his part and by others too), and his behaviour when faced with moral issues. Family, society, religion and education play important role in framing those moral convictions.**

How are moral attitudes shaped?

The determinants of the attitude are the same- Cognitive, emotional (affective) and behavioural:

- **Cognitive:** It is the knowledge of ethical rules and judgments of what is good and what is bad.
- **Behavioural:** It is the person's actual behaviour, his response to situations involving ethical considerations.
- **Emotional:** it involves the person's feelings and conduct in reaction to situations that need moral and ethical decisions.

Moral attitudes are strongly influenced by the society and culture. Religious beliefs, traditions, folklore, myths, legends – all have an implicit messaging in them- about what is good and what is bad. As such, they shape moral attitudes of people.

As such, **moral attitudes vary over time and space.** Similarly, **they can also vary with gender. Men, for example, may have a less negative attitude towards bribery than women.** Similarly, women may have more open attitude towards freedom to wear clothes of choice.

There are **four qualities** that are generally associated with having a moral attitude:

1. **Reverence:** It means deep respect. Having respect for others, their opinions and behaviour is considered as a hallmark of a moral person.
2. **Faithfulness:** It means remaining loyal and upholding trust that someone poses in a person.
3. **Veracity or truthfulness:** Being truthful and honest is another quality associated with being moral.
4. **Goodness:** It is a broadly encompassing character of a person consisting of qualities like generosity, love, care, empathy, etc.

Significance or impacts of Moral attitudes

Human **beings have a desire to be right and a desire to be liked**. As such, attitudes towards moral issues tend to be strong and are also expressed strongly. For example, a person may have a very strongly negative attitude towards dishonesty or telling lies, so much so that he/she is ready to risk personal relations for sake of being truthful.

Moral attitudes **can be both facilitative and prohibitive**. They facilitate actions such as helping someone in need (altruism), social service, etc. Also, actions that are considered immoral are discouraged such as adultery, stalking, cheating, etc.

As attitudes are closely linked to a person's behaviour, **moral attitudes help in facilitation of moral behaviour** as they help in arriving at morally correct decisions.

2.3. Political Attitude

Political attitude is the predisposition or liking/disliking towards a political issue. The way in which we define an issue to be political can be diverse.

- 1) In a simpler sense, **political attitude refers to attitude of people towards the political system, parties or their ideology**. A person may identify himself to be conservative, liberal, centrist, or so on. Similarly, a political party may identify itself as such. However, these attitudes are too vague to be analysed. Having a positive or negative attitude towards, say presidential system or parliamentary system or dictatorship is too broad a category, and thus vague.

- 2) In a wider sense, **political attitude means attitude towards specific issues of public life**. It is better to delineate attitudes towards specific issues such as economy, employment, women, inequality, caste system, voting pattern, etc. rather than combining them into one broad category.

For example, a person associating himself/herself with a so called conservative party may well have a tolerant attitude towards people of differing ideology. In fact, political parties, especially in India, cannot be compartmentalised into right or left based on western construct. No political party in India can take the position which is, even perceptibly, anti-farmer or anti-labour. Hence, it is better to study political attitudes with regards to specific issues rather than broad categories.

Various ways through which political attitudes **are manifested**— voting, social media posts, newspapers articles, sloganeering.

Significance of Political Attitude

- It is political attitudes that determine how people participate in the political process, whom they vote for, and what political parties they support. Many factors including - **family, religion, caste, ethnicity, and region** – all contribute to the political attitudes and behaviour.
- It has been argued that the **development of political judgment represents a part of moral development** and that political and moral education is largely identical, especially when seen from wider perspective.
- From this perspective, **political culture determines the system of values in the society**. Whereas, from narrow connotation, political culture is a subjective psychological

phenomenon that appears in the process of interaction between individuals and the political system.

Student Notes:

2.4 Prejudice

Prejudice is a baseless and often negative preconception or Attitude toward members of a group. it involves prejudgments that are usually negative about members of a group. Prejudice can have a strong influence on how people behave and interact with others, particularly with those who are different from them, even unconsciously or without the person realizing they are under the influence of their internalized prejudices.

When people hold prejudicial attitudes toward others, they **tend to view everyone who fits into a certain group as being "all the same."** They paint every individual who holds particular characteristics or beliefs with a very broad brush and fail to really look at each person as a unique individual.

Prejudice can translate into discrimination which has behavioral component –discrimination in context of race caste class Gender are the most prevalent.

Some of prejudicial attitude and examples

Gender-Prejudicial attitude against women India

- The **social stigma around working women**, especially when the family does not desperately need the money.
- Another area **where discrimination and prejudice against women is evident is during meals.** Generally, women eat at last or in rural areas they eat whatever is left. This discrimination results into problem of malnutrition. Which again is root cause of many other social evils
- Third kind of prejudicial attitude with respect to **women is the practice of ghunghat, or a Hindu woman** covering her head and face when in public or in the presence of men.

Racism –Many incidents of violence **against the North eastern citizen and the Black especially from the African countries are reported.** Which is manifestation of Racial discrimination.

Caste discrimination –

- Many Incidents of Dalit students eating mid-day meals separately from other students at a primary school.
- A Dalit groom in Rajasthan's Madhopura village was prevented by members of the Jat community from sitting on the mare, citing religious sentiments.
- Two Dalit men in the southern state of Tamil Nadu were killed by upper-caste Hindus after a Dalit man sat cross-legged in front of them during a temple ritual

How the discriminatory behavior be curbed?

- Discriminatory behavior can be curbed by the law, but the cognitive and emotional component are difficult to change. Hence, specific strategies required
- **Knowing the cause and the source of the prejudice is important** to curb the discriminatory nature of prejudice
- Strategies will be effective if they aim at **minimizing opportunities for learning prejudices** change such attitudes.
- **De-emphasizing narrow social identity.** Individuals rather than considering themselves as part of one social group must consider them as part of greater social identity like an Indian.
- **Discouraging the tendency towards negative behavior** among the victims of prejudice which reinforces the Prejudice.

Way Forward

- **Education and information dissemination** for correcting stereotypes related to specific target group.
- **Increasing the inter group contact**, which allows for direct communication.

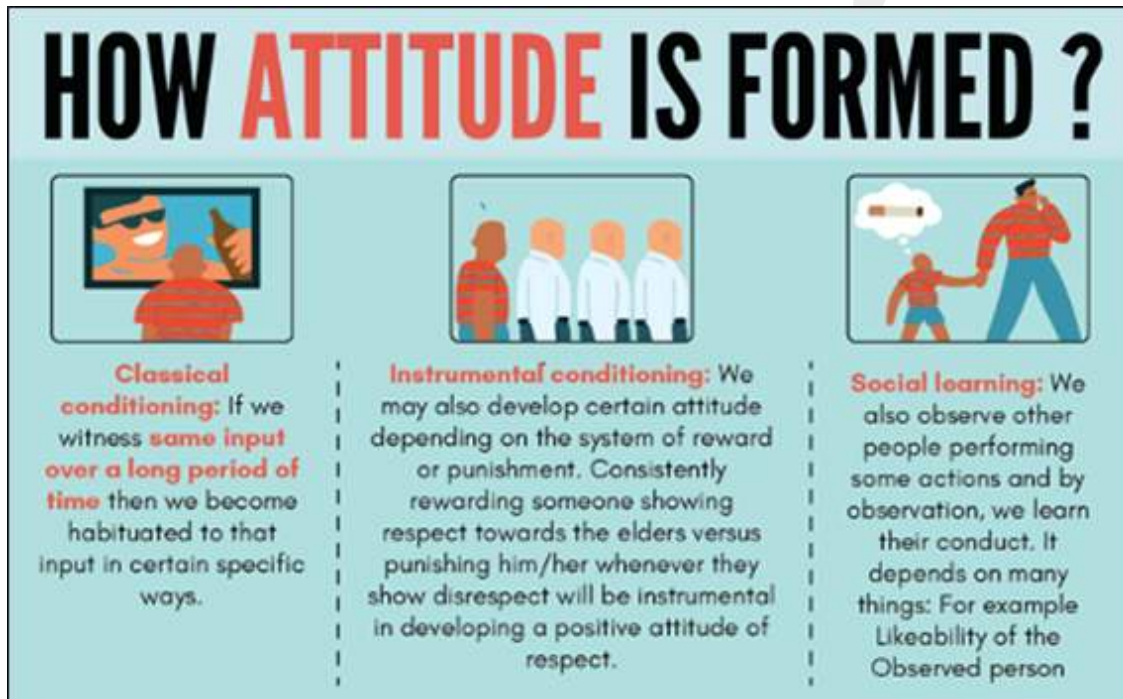
- **Removal of mistrust** that might lead to discovering positive qualities of the group.
- **Highlighting the individual identity rather than group identity**, thus, weakening the importance of the Group as the basis of evaluating an individual.

Student Notes:

3. Attitude Formation

Attitude is **learned, formed, can be changed, and be reformed**. Learning can account for most of the attitudes we hold. The study of attitude formation is the study of how people form evaluations of persons, places, things, objects, matters and issues.

Unlike personality, attitudes are expected to change as a function of experience. In addition, exposure to the 'attitude' objects may have an effect on how a person forms his or her attitude. This concept was seen as the "**Mere-Exposure Effect**" (The mere-exposure effect means that people prefer things that they are most familiar with).



According to some experts, people are more likely to have a positive attitude on '**attitude objects**' when they were exposed to it frequently than if they were not. Mere repeated exposure of the individual to a stimulus is a sufficient condition for the enhancement of his attitude toward it.

Attitude formation or learning is a **lifelong process**, as it is based on experiences we gather or the lessons we learn from people around us. These people are the agencies of attitude formation-

AGENCIES OF ATTITUDE FORMATION



Family: From family we learn important lessons of our life. Family is also instrumental in imparting and developing values, which are nothing but generalized attitudes. For example, we learn discipline and build foundation of time management, a crucial aspect of attitude from home.



Peer Group: It comprises our friends and persons of our age group. These people are important in inculcating the values competition, etc. Peers are important in delineating the path of career development. Moreover, we develop attitude consistent with those held by our friends for adaptation in the group.



School or education institutions: These are important agencies for inculcation of attitude of excellence, competition, punctuality, and overall attitude towards life.



Role models: These are those persons whom we like and identify positively. Different persons have different role models, like one person may have his father as his role model, for some it may be someone prominent in the liked field, etc.

4. Attitude Change

It refers to the process of modifying the undesirable attitude into a desired one. Here it must be clear that desirable and undesirable are not value judgements about right or wrong. Desirable for someone is good for them but may be considered bad by others.

Attitudinal change means changing someone else's perception of what is right or wrong according to our will. For example, Person X likes Windows operating system in laptop more than Linux. Person Y wants to change the attitude of X because Y himself prefers Linux. This does not say anything about Linux being better than Windows (i.e. a value judgement). This is only a desire of Y. For him preference to Windows is undesirable, and therefore he desires to change the attitude of X to his own liking. Since attitudes are learned, they can be unlearned, relearned or changed too. Attitudes can be changed through **persuasion** or **social influence**.

4.1. Persuasion

It means the action or process of persuading someone or of being persuaded to do or believe something. Persuasion is an umbrella term of influence, which can influence a person's beliefs, attitudes, intentions, motivations, or behaviours.

It is a process aimed at **changing a person's (or a group's) attitude or behaviour towards some event, idea, object, or other person(s)**, by using written or spoken words to convey information, feelings, or reasoning, or a combination thereof.

It is also an often used tool **in the pursuit of personal gain**, such as election campaigning, giving a sales pitch, or in trial advocacy. It can also be interpreted as using one's personal or positional resources to change people's behaviours or attitudes.

Persuasion can be classified as-

- **Systematic persuasion** is the process through which attitudes or beliefs are leveraged by appeals to logic and reason.
- **Heuristic persuasion** on the other hand is the process through which attitudes or beliefs are leveraged by appeals to habit or emotion.

Formation and change of attitude are not two separate things - they are interwoven. People are always adopting, modifying or relinquishing attitudes to fit their ever changing needs and interests.

Acceptance of new attitudes depends on who is the communicator, how the communication is presented, how the communication is perceived by the message receiver, the credibility of the communicator, and the conditions under which the knowledge was received.

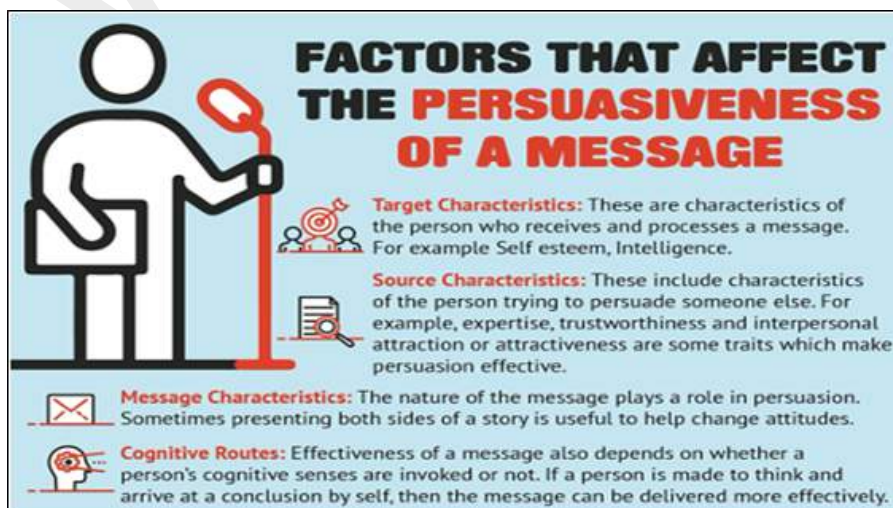
Attitudes change can manifest itself as:

- A person receiving new information from others or media - Cognitive change
- Through direct experience with the attitude object - Affective change
- Force a person to behave in a way different than normal - Behavioural change

4.1.1. Functions that can be performed with Persuasion

The persuader needs to select a purpose that is realistic for his/her audience. Five general purposes of persuasion are listed below.

1. **Create uncertainty:** When an audience is **strongly opposed to the persuader's view**, the best that may be possible for the persuader is to make the audience a little less certain they are right, a little less comfortable with their current attitude.
2. **Reduce resistance:** If the audience is **moderately opposed to the persuader's position** but not closed-minded, the persuader may be able to reduce opposition to his/her view and move the audience toward neutrality. While not expecting a reversal of views this goal asks the audience to recognize the validity of opinions different from their own.
3. **Change attitude:** If the **audience is not committed**, especially strongly, to any attitude on the topic this goal is appropriate.
4. **Amplify attitude:** If the audience is **already moderately favorable to the persuader's view**, he/she can design a message which will reinforce current attitudes in the audience, help the audience resist appeals from opponents, and motivate the members of the audience to become strongly committed to his/her position.
5. **Gain behavior:** When **an audience strongly favors the persuader's position**, the logical goal is to get them to act on their convictions.



We can further see the importance of **message characteristics** in the following way-

The success of any programme depends upon the level of involvement of all the relevant stakeholders. Use of socially and culturally identifiable names gives a clear message of the objectives of the programme – one of the principles of behavioural economics is that the messaging needs to be clear and simple and aligned to a mental model.

This message is also manifested by appropriately using the **power of name**, as follows-

POWER OF NAME		
Name of the Scheme	Literal Meaning of the Name	Objective of the Scheme Cultural/Societal aspect used
Namami Gange	Namami Gange means "I pray to Ganga" as the river Ganga is revered in our culture.	To arrest the pollution of Ganga River and revive the river.
POSHAN Abhiyan	Poshan means holistic nutrition	Multi-ministerial convergence mission to ensure a malnutrition free India by 2022.
Ujjwala	Means 'bright, clear'	To safeguard the health of women by providing them with clean cooking fuel-LPG.
PM Mudra Yojana	Mudra means "currency, coins"	Provides loans upto 10 lakh to the non-corporate, non-farm small/ micro enterprises.
Jan Dhan Yojana	Jan Dhan implies "money of the people"	Financial inclusion program to expand access to financial services.

4.1.2. Steps in Persuasion Process

1. **Establish credibility:** Credibility grows out of expertise and relationships. A persuader needs strong emotional characteristics and integrity. The need to listen carefully to other people's suggestions and establish an atmosphere where their opinions are valued.
2. **Framing common goal with colleagues:** Effective persuader must be **adept at describing the position in terms that illuminate the person's point advantages** that he/ she is trying to persuade. It is a process of identifying shared benefits. This requires conversations to collect essential information by asking thoughtful questions. This process will often prompt to alter the initial argument or include compromises.
3. **Reinforce positions with vivid language and compelling evidence:** Persuasion requires presentation of evidence — strong data in multiple forms (stories, graphs, images, metaphors and examples). Persuaders need to make positions come alive by using vivid language that complements graphics.
4. **Connecting emotionally with audiences:** Good persuaders are aware of primacy of emotions and are responsive to them. They know how to maintain a balance between professionalism and their own emotional commitment to the position they are advocating.

Their connection to their audience **demonstrates both intellectual and emotional commitment** to their position. Successful persuaders cultivate an accurate sense of their audience's emotional state, and they adjust their arguments accordingly. Whatever their position, they must match their emotional fervor to their audience's ability to receive their message.

4.1.3. Effective Persuasion

Everyone is susceptible to being persuaded; **persuasion is a process whose objective is to change a person's attitude and/or behaviour towards an idea, event, person or an object.** Broadly speaking effective persuasion should have desirable source (having credibility),

desirable message characteristics (having fear, rational, and emotional appeals). In more detail, persuasion to be effective must have following things:

Student Notes:

1. **Establish a common ground:** The persuader should establish positive rapport with target people. **For example**-Sabka Sath Sabka Vikas. Slogan used by Honorable prime minister to Unite and establish Common ground
2. **Point out the benefits:** Persuader should highlight the major benefits of changed behavior or attitude. However, the persuader should avoid trying to push for the change, as it will make him look desperate.
3. **Turn objections into strengths:** Objections to change are natural but the persuader should turn them into opportunities. For this he may agree with the prospect's objection and then illustrate how it is easily overcome by the proposed change.
4. **Commitment and consistency:** Persuader should try to get the target section (prospect) to believe in something small or take a small action first. Once committed, the prospect will most likely agree to a larger idea later. This technique employs the fact that people tend to behave in a consistent manner, once they take a stand, they will act in ways consistent to the decision as a means of defending and justifying it. Rationality commands an innate appeal to the human mind.
5. **Use the reciprocity principle:** The principle implies that when someone does something for us, we feel obliged to return the favour. This may include appropriately rewarding the target population for the changed behaviour/attitude. This helps in strengthening and sustaining the change. **For example** –Just before election many political parties Before the end of tenure release a lot of vacancy thus inciting the principle of reciprocity. Believing that youth will vote for another tenure. Banning of liquor in several states to collect women votes.
6. **Social proof technique:** People tend to follow others (bandwagon effect) more so when they don't have sufficient information to make the decision on their own. This technique will involve you telling the target population that other people are getting benefits from the suggested change, with empirical evidence. For this the persuader may invoke the examples of some well-known personality. **For example**, in campaigning against female feticide in Haryana we may invoke the examples of some female sportspersons who have won laurels, S. Nehwal in Badminton, or Kangana Ranaut in Bollywood etc.
7. **Scarcity:** This involves letting people know that they stand to lose on a chance to get the benefits out of the proposed change. **For example** we often see end of season or hoardings like Hurry!! Limited offer.



4.2. Social Influence

Social influence occurs when one's emotions, opinions, or behaviours are affected by others. Social influence takes many forms and can be seen in conformity, socialization, peer pressure, obedience, leadership, persuasion.

Social influence can be defined as a change in behaviour caused by real or imagined influence from others. The most effective social influence attempts to succeed in changing a person's attitudes and behaviour. But changing someone's attitude is not necessary for social influence to occur; all that's required is behaviour change. Following are the three broad varieties of social influence.

- **Compliance** is when people appear to agree with others, but actually keep their dissenting opinions private. It is a change in behaviour but not necessarily attitude.
- **Identification** is when people are influenced by someone who is liked and respected, such as a politician, guru, celebrity.
- **Internalization** is when people accept a belief or behaviour and agree both publicly and privately.

Conformation

Why do we conform or attempt to conform to the expectation of others? There are two psychological needs of human at play – our need to be right and our need to be liked. The former is also called informational social influence and the latter is referred to as normative social influence.

Informational influence (or social proof)-

- When a person is in a situation where they are unsure of the correct way to behave, they will often look to others for clues concerning the correct behaviour.
- We conform because we believe that others' **interpretation of an ambiguous situation is more accurate than ours** and will help us choose an appropriate course of action. It is an influence to accept information from another as evidence about reality.

Social proof often leads not only to public compliance (conforming to the behaviour of others publicly without necessarily believing it is correct) but also private acceptance (conforming out of a genuine belief that others are correct).

Social proof is more powerful when being accurate is more important and when others are perceived as especially knowledgeable. For example The Swachh Bharat Mission (SBM) and the Beti Bachao, Beti Padhao (BBBP) scheme are cases in point..People are more likely to stop defecating in the open if their neighbours stop or are more likely to value their girl children if that is touted as the social norm.

Normative influence

- **Normative Influence** is related with the need of an individual to be liked by others. Human beings, being inherently social, desire companionship or associations. A group or an association consists of people with some common interest. For a successful and healthy atmosphere in the group, people try to blend in.
- **They change their behaviour somewhat so that they are liked.** This is a normative social influence- normative meaning that how things 'should be', for e.g. Parents desire that children should stay away from mobile phones. Hence, it is an influence to conform to the positive expectations of others.

4.2.1. Summary of goals of social influence

To Choose Correctly

People often rely on two principles to help them choose correctly: authority and social validation. Thus, they are more willing to be influenced by authority figures, on the one hand, and similar peers on the other.

- **Authority** -One reason authorities are influential is that they are often experts, and, by following an authority's directives, people can usually choose correctly without having to think hard about the issue themselves.

Social Validation

- Just as following an authority is **normally a shortcut to choosing correctly**, so is following the lead of most of one's peers. The choices of these others provide social validation for the correctness of that choice.

- People are most likely to **allow themselves to be influenced by others when they are uncertain about how to respond in the situation**—because when uncertainty and ambiguity reign, people lose confidence in their own ability to choose well.
- When others share a consensus about the correct way to act, they are especially influential to observers.
- In addition, observers are more likely to be influenced by others **who are similar to them** and who, therefore, provide better **evidence about what the observers should do**.
- When choosing accurately is important, only uncertain individuals are more likely to follow the crowd; those who are already sure of the validity of their judgments are less willing to conform.

To Gain Social Approval

- People change in order to be **more accepted and approved by their groups** and to avoid the social rejection that often comes from resisting group pressure for change.
- **Injunctive standards of a group or culture inform people** as to the behaviours that are likely to get them accepted or rejected there.
- One such norm is that for reciprocity, which obligates people to give back to those who have given first. Anyone who violates this norm risks social disapproval and rejection, which makes people more willing to comply with requests of those who have provided an initial favour or concession.
- The desire for social approval and a collective self-definition both increase one's willingness to submit to social influence in order to gain acceptance. But a tendency to go against conventional norms of behaviour or even rebelliousness decreases one's susceptibility to social influence, especially when the influence is seen as threatening one's freedom to decide.
- Two features of a person's social situation increase the motivation to go along to get along: **the appeal of the group or individual pressing for change and the public observability of the person's actions**.
- Even strong group norms can be resisted when members feel that they have the ability to withstand group influence or when members don't feel highly identified with the group.



CONFORMATION-WHEN DO YOU CONFORM ?

- **Lack of accountability, overwrites your conscience:** Doctor is the authoritarian figure. Individual participant's conscience is overpowered, when participant thinks "it's not my responsibility, I'm only following orders".
- **Authoritarian figure can overwrite your conscience:** Hitler was a great orator; he could sway the crowd in his favor just by a speech.
- **Peer-pressure is stronger than obedience:** If there are two participants, second participants refuses to give shock to the subject and storms out of the room, then first participant may also walk away.
- **Thus, Strength wise:** peer-pressure (Conformity) is stronger than authority (Obedience) which is greater than conscience of the individual.

To Manage Self Image

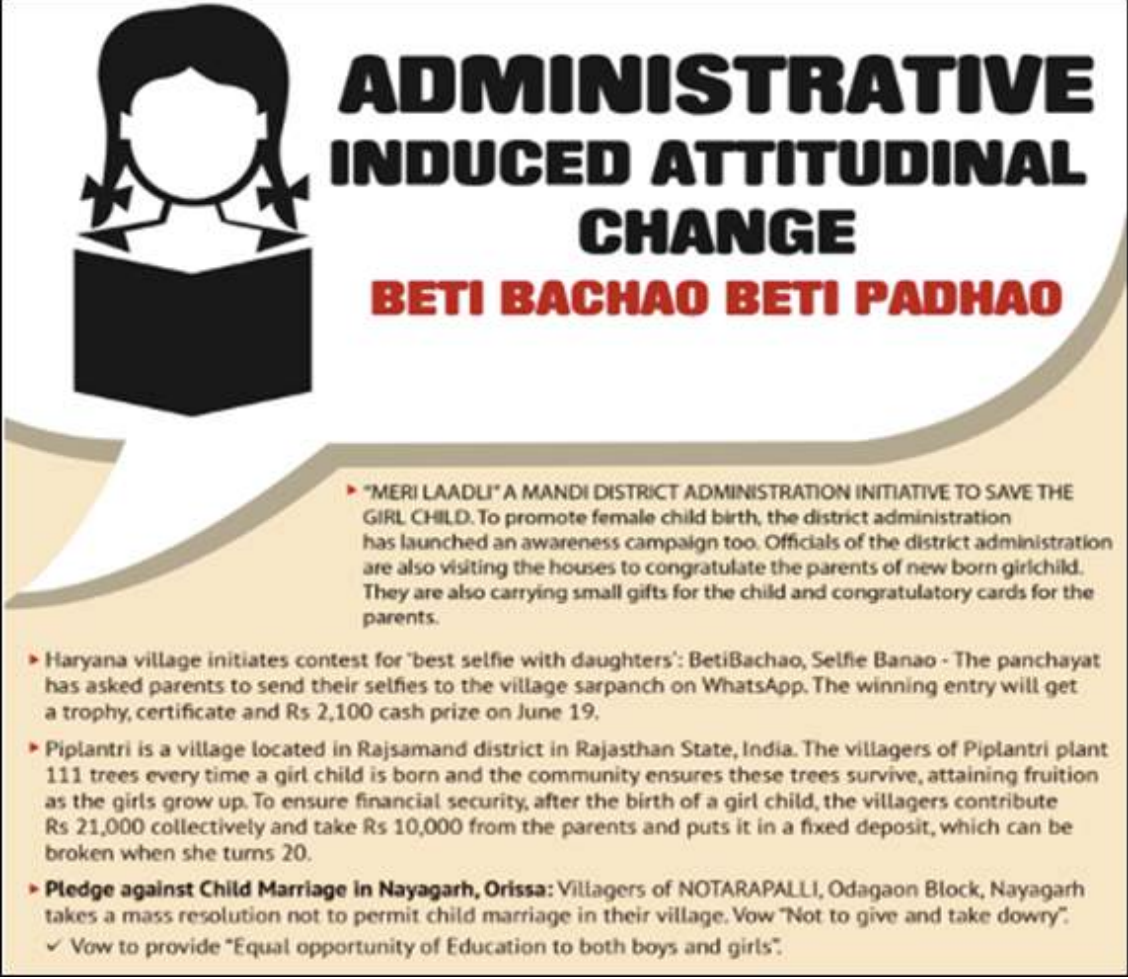
- People can manage their self-images by yielding to requests for action that fits or enhances their identities.
- Influence professionals can increase compliance by linking their requests to the values to which people feel committed, especially when these values are prominent in consciousness.

4.2.2 Successful case of the Beti Bachao Beti Padhao Scheme

The success of the BBBP Scheme demonstrates a powerful use of the insight on 'social norm' in its 'Selfie with Daughter' initiative. This scheme was launched to address a highly imbalanced child sex ratio in India. **People's attitude towards the girl child needed to change – people needed to stop viewing girls as burdens and start celebrating them instead.**

#SelfieWithDaughter- The selfie campaign showcased examples of parents around the country who were doing exactly that. The celebration of the girl child quickly became the norm. **Most people wanted to conform, and more and more parents posted selfies with their girls.** Started by one proud father in a village in Haryana, the campaign went viral and #SelfieWithDaughter became a worldwide hit.

Two elements enabled the campaign's success: First, telling people what the norm is and second, showcasing the thousands of other people who were acting in line with that norm.



ADMINISTRATIVE INDUCED ATTITUDINAL CHANGE
BETI BACHAO BETI PADHAO

- ▶ **"MERI LAADLI"** A MANDI DISTRICT ADMINISTRATION INITIATIVE TO SAVE THE GIRL CHILD. To promote female child birth, the district administration has launched an awareness campaign too. Officials of the district administration are also visiting the houses to congratulate the parents of new born girl child. They are also carrying small gifts for the child and congratulatory cards for the parents.
- ▶ Haryana village initiates contest for 'best selfie with daughters': BetiBachao, Selfie Banao - The panchayat has asked parents to send their selfies to the village sarpanch on WhatsApp. The winning entry will get a trophy, certificate and Rs 2,100 cash prize on June 19.
- ▶ Piplantri is a village located in Rajsamand district in Rajasthan State, India. The villagers of Piplantri plant 111 trees every time a girl child is born and the community ensures these trees survive, attaining fruition as the girls grow up. To ensure financial security, after the birth of a girl child, the villagers contribute Rs 21,000 collectively and take Rs 10,000 from the parents and puts it in a fixed deposit, which can be broken when she turns 20.
- ▶ **Pledge against Child Marriage in Nayagarh, Orissa:** Villagers of NOTARAPALLI, Odagaon Block, Nayagarh takes a mass resolution not to permit child marriage in their village. Vow "Not to give and take dowry".
✓ Vow to provide "Equal opportunity of Education to both boys and girls".

The **strategy addresses a cognitive bias called 'failure bias'**. The failure bias is the tendency to focus on failures rather than successes, mostly because failures have greater visibility.

Because failures get the spotlight, people tend to think that failing is the norm, or at least that failing is more prevalent than it really is. Therefore, in the context of BBBP, focus must be on

people who treat their girls fairly; this corrects the failure bias and makes the social norm of fair treatment of girls unequivocally clear.

BBBP's work is far from over, of course, as posting a selfie is not tantamount to subverting entrenched orthodox mind-sets overnight, but its leverage of social norms is certainly a step in the right direction

4.3. Emotions and Attitude Change

Appeal to emotional aspect of person is also used as a tool for attitudinal change. In fact, emotion is a common component in persuasion and social influence. Research on attitude has also highlighted the importance of affective or emotive components of the message.

The ABC model of attitude emphasises the three components- cognitive (i.e. what we perceive), affective (how we connect emotionally) and behavioural (how we act). Emotion works hand-in-hand with the cognitive process, or the way we think, about an issue or situation. Emotional appeals are commonly found in advertising, health campaigns and political messages.

Recent examples include No-smoking health campaigns and political campaign advertising emphasizing the fear of terrorism. By activating an affective or emotion node, attitude change may be possible, though affective and cognitive components tend to be intertwined.

Please note that emotional attitude is different from appealing to emotion for attitudinal change. Emotional attitude is merely an attitude developed primarily by emotion, for e.g. attitude of parents towards children.

Appeal to emotion is the method to develop a desirable attitude. Emotions such as fear, joy, anger, empathy, ridicule, etc. Instead of facts, persuasive language is used to develop the foundation of an appeal to emotion-based argument.

For example, to motivate someone to stay fit or to quit smoking, one should not only cite scientific evidence to prove the point but can also convince using the fear of deadly diseases or the joy of a healthy life.

However, if appeal to emotion is made using wishful thinking (i.e. something that is pleasing to imagine but not based on evidence or fact), then it becomes a logical fallacy. Only a temporary change in attitude can be achieved with wishful thinking or appealing to flattery or to hatred.

In future this can also lead to development of attitudes counter to what was desired. **Hence, appeal to emotion alone cannot be a sustainable basis for attitudinal change.** Appreciation of facts gives legitimacy to message and thus is a more enduring way to change attitude.

4.3.1. Successful case of Swachh Bharat Mission

The main elements of Swachh Bharat Mission which led to attitude change are-

Choice of date and symbol

- SBM, as a nation-wide cleanliness drive, was launched on 2nd October, 2014, the birthday of India's most revered 'role model' Mahatma Gandhi.
- The **day was chosen to leverage the values propagated by him** and thereby create a mass movement on the lines of 'satyagraha' for a cleaner India.
- The symbol used for SBM invokes Gandhiji's ideas. Behavioural Science emphasises the **role of context in influencing choices and decisions**, which has been effectively adopted by the SBM campaign.

Local Swachagrahi

- To initiate behavioral change in usage of toilets, more than five lakh swachhagrahis, foot soldiers of the SBM, were recruited; the similarity with satyagrahis is intentional to

reinforce the message. As each village has at least one swachhagrahi, who is a local, these swachhagrahis were able to leverage their social ties within their villages to effect change.

- People are **more likely to listen to and emulate someone they know**, which is why local ambassadors of change are more effective in getting through to people than mass media campaigns.

Community Based approach

- SBM **relies on community-based approaches to sanitation**. Behavior change techniques such as Participatory Rural Appraisal and Community-led Total Sanitation induce people to come together, appraise their community's open defecation situation and plan the next course of action.
- This makes **sanitation a community-level concern rather than an obscure campaign of a distant government**. Non-conformers, therefore, find their act more visible to their community. The fear of community scorn, or a desire to fit in, or both, have led many to renounce open defecation.



Appealing to the Emotions

- SBM used yet another behavioural insight – **that people internalize messages better when these messages make them feel a certain way**. Arcane concerns about hygiene and disease appeal to few; it is natural that those who have defecated in the open all their lives without consequence would fail to absorb the message that open defecation can have deleterious effects.
- On the other hand, **appealing to people's emotions**, for example by attaching a sense of disgust to open defecation, has a better chance of moving people to change.



4.4. Consequences of Social Influence or Persuasion

The outcomes of persuasion or social influence could be good, bad or ugly depending on the modes of tactics, motives, and contexts in which they are employed. These are discussed below:

4.4.1. Ugly Face of Persuasion

Ugly influencers Push and shove others into decisions. **Their style leaves others feeling powerless and resistant to innovation or change.** It refers to situation where the motive of persuasion may be utterly selfish. **For example, the miss-selling of financial instruments, or duping the customers by making false claims.**

4.4.2. Bad Persuasion

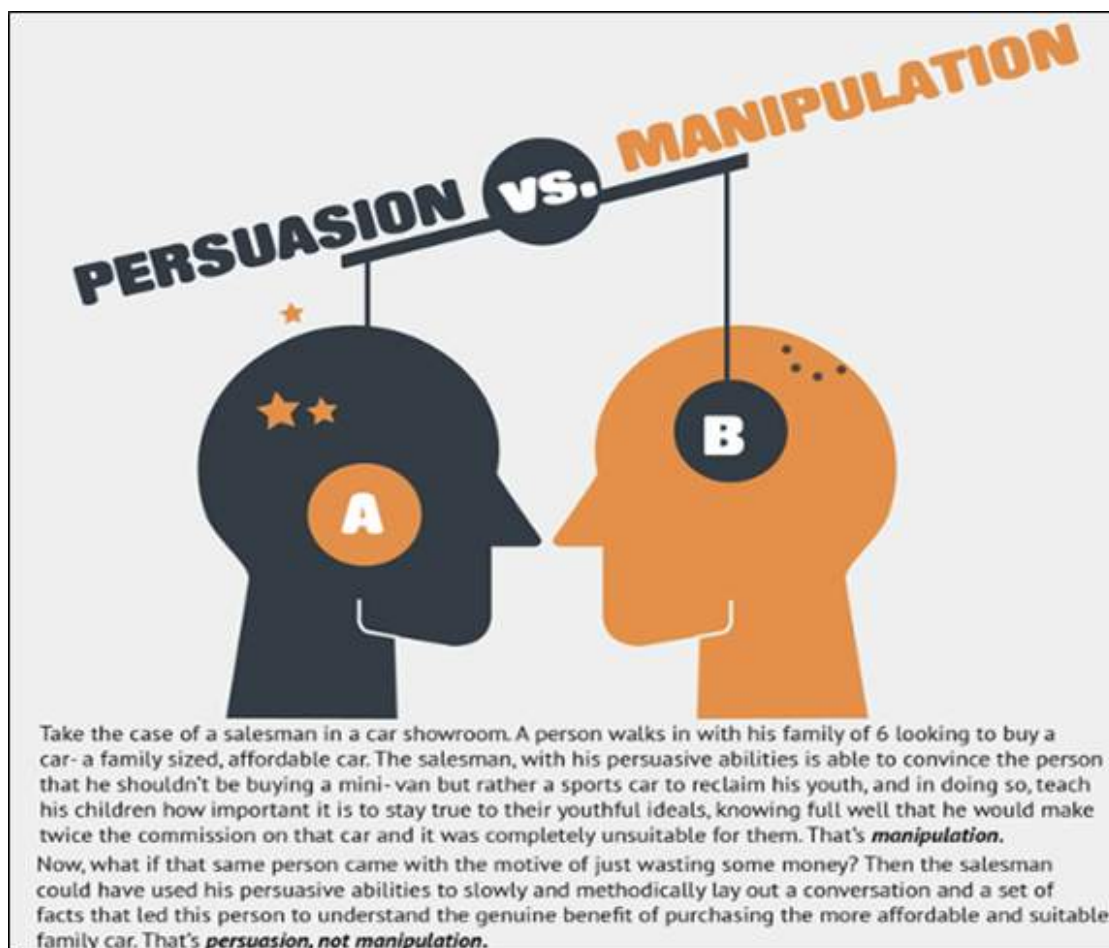
Bad influencers might work hard to achieve legitimate and desirable goals, but lack the skills to influence effectively. Their style causes people to feel they are being punished or cutting through red tape, all to please someone who appears ineffective. In this case the motive is genuine but the means are ineffective. **For example, promoting family planning with forced sterilisation, as happened during emergency period.**

4.4.3. Good Persuasion

Good influencers get people to focus on an issue that is clearly and simply stated, **finds out what the emotional value of the issue is to the people involved**, and seeks solutions that satisfy the people who are needed to make the solution work.

Good influencers are effective because they create trust, which enables others to take risks. Their habit of communicating, informing and including others builds loyalty among the target population. They effectively use various kinds of appeal- rational, emotional, and fear.

For example, changing attitude against Untouchability should include invoking reason, emotional appeal and fear of law.



4.4.4. Persuasion vs. Manipulation

The difference between persuasion and manipulation lies largely in underlying intent and desire to create genuine benefit. The difference between Persuasion and Manipulation lies in:

- The Intent behind your desire to persuade that person,
- The Truthfulness and transparency of the process, and
- The Net benefit or impact on that person

Manipulation has negative connotation. It implies Persuasion with the intent to fool, control or contrives the person on the other side of the conversation into doing something, believing something, or buying into something that leaves them either harmed or without benefit.

It may also imply that you are concealing a desire to move them to your point of view in a way that will benefit only you. And if this benefit were disclosed, that revelation would make the other person far less receptive to your message.

5. Attitude's Relation with Thought and Behaviour

5.1. How does Attitude Influence our Thought and Behaviour?

An attitude is "a relatively enduring organization of beliefs, feelings, and behavioural tendencies towards socially significant objects, groups, events or symbols". Since, **attitude also includes pre-disposition to behave in certain ways, therefore our attitude can be regarded as the predictor of our behaviour in relation to the attitude object.**

This kind of enquiry includes to what extent, and under what conditions, do attitudes drive our outward actions? What is the relationship between what we are (on the inside) and what we do (on the outside)?

In the early days of attitude research, most investigators accepted as a given that human behaviour is guided by social attitudes. **It was assumed that attitude was the key to understanding human behaviour.** Moreover, early work with the attitude gave no reason to doubt this assumption. Yet some researchers challenged this view. They argued that the attitude-behaviour relation works the other way around, with our behaviour as the horse and our attitudes as the cart and that people's expressed attitudes hardly predicted their varying behaviour.

Key Study: La-Pierre (1934)

Aim: To investigate the relationship between attitudes and behavior.

Method: La-Pierre travelled round American hotels with a Chinese couple, expecting to meet discriminatory behavior, because of anti-Chinese feeling prevailing at that time. At the time prejudice against Asians was widespread and there were no laws against racial discrimination. They visited 67 hotels and 184 restaurants. Six months later, after their return, all the establishments they had visited were sent a letter, asking whether they would accept Chinese guests.

Results: They were only refused at one of the establishments they visited, and were generally treated very politely. Of the 128 establishments which responded to the letter, 91% said they were not willing to accept Chinese guests.

Conclusion: Attitudes do not always predict behavior. Cognitive and affective components of attitudes are not necessarily expressed in behavior. Thus, the La-Pierre's study shows that the cognitive and affective components of attitudes (e.g. disliking Chinese people) do not necessarily reflect in their actual behavior (e.g. serving them).

Thus, it is not true that attitude will always predict the behavior. According to some experts, it depends on the strength of the attitude held.

Attitude Strength

The strength with which an attitude is held is often a good predictor of behavior. The stronger the attitude the more likely it should affect behavior. Attitude strength involves:

Importance / personal relevance refers to how significant the attitude is for the person and relates to self-interest, social identification and value. If an attitude has a high self-interest for a person (i.e. it is held by a group the person is a member of or would like to be a member of, and is related to a person's values), it is going to be extremely important. As a consequence, **the attitude will have a very strong influence upon a person's behavior. By contrast, an attitude will not be important to a person if it does not relate significantly to their life.**

The **knowledge** aspect of attitude strength covers how much a person knows about the attitude object. People are generally more knowledgeable about topics that interest them and are likely to hold strong attitudes (positive or negative) as a consequence.

Attitudes based on direct experience are more strongly held and influence behavior more than attitudes formed indirectly (for example, through hear-say, reading or watching television).

However, **even strength of attitude alone can't be the accurate predictor of our behavior**, therefore some experts have suggested the following factors responsible for determining the attitude-behavior link. These are:

Accessibility:

It refers to **the easy availability of the attitude to the mind of the attitude holder**. It means that the attitude holder is conscious of the "ACB" components (Affection|Cognitive|Behavioural) of the attitude and therefore they immediately come to the mind of the attitude holder.

Specificity:

Most people are not sure about **their likings/dislikings about many things. If we do not have a specific attitude towards something**, it is prone to change, i.e. it is as yet weakly formed and can be changed with little effort such as availability of new knowledge. **Specificity here means how specific an attitude do we have towards something**. Having hazy or multiple attitudes towards the something reduces their specificity. For example, political attitude towards an issue can be fuzzy and change according to the group that we are in. This leads to a somewhat confused behavior in that situation.

Congruence:

Continuing from specificity, congruence refers to the consistency among different components of our attitude. If the knowledge component and affective component are inconsistent then our behaviour would depend more on the situation than on attitude per se. The Mahabharata talks about '**Manasa, vacha, karmana**'. The word manasa refers to the mind, vaachaa refers to speech, and karmanaa refers to actions. These are used to describe the state of consistency in behaviour of an individual. The motto '**Manasa, Vaacha, Karmana**' is usually invoked to imply that one should strive to achieve the state where one's thoughts, speech and the actions coincide.

5.2. When Does Attitude Predict Behaviour?

In the earlier section we looked at how attitude influences our behaviour. Here we look at how does attitude predict behaviour, i.e. what are the situations where we can predict a person's behaviour having the knowledge about his/her attitude. Researchers have discovered that people are more likely to behave according to their attitudes under certain conditions. This is particularly so when:

- Attitudes are a result of personal experience
- when one expects a favorable outcome
- when the attitudes are repeatedly expressed
- when one stands to win or lose something due to the issue under consideration
- when situational factors that contradict our attitudes are weak
- when we are aware of them, and
- When they are strongly held.

Our behaviour and our expressed attitudes differ because both are subject to other influences. But if we could just neutralize the other influences on behaviour—make all other things equal—then attitudes can predict behaviour fairly accurately. The following points explain in detail the conditions under which people are more likely to behave according to their attitudes.

5.2.1. Strength of Attitude

One important condition for high attitude-behaviour consistency is that the attitude be strong and clear. Strength of attitudes depends upon: personal implications; formed through direct experience; highly embedded attitudes, that is, they are tied to other beliefs that people hold.

5.2.2. Stability of the Attitude

Stable attitudes that are easily remembered are more likely to predict behaviour than attitudes that are less stable and not accessible in memory.

5.2.3. Accessibility of the Attitude

Attitudes that are more accessible to memory influence behaviour more strongly. A primary factor that determines whether an attitude is accessible in memory is how frequently it is expressed. Attitudes also become more **extreme when they are expressed more frequently**. That is, the more opportunities you have to express an attitude, the more you come to regard that attitude as important to you.

5.2.4. Salience of the attitude

Salience is the quality of being particularly noticeable or important, i.e. prominent. In most situations, several different attitudes may be relevant to behaviour. Salience is particularly crucial when the **attitude is not a very strong one**.

Saliency refers to the fact that not all of a person's beliefs stand out with equal prominence in his cognitive field. He may be more acutely aware of certain of his beliefs than others, they may enter his thoughts more readily, they may be **more frequently verbalized--they are, in a word, salient**.

Suppose a person is asked to name the things that "come to mind when you think about buying...". The order in which a person names those things reflects the salience. Please note that salience is not perfectly synonymous with importance. But salience of attitude towards a particular object is a considered a decent predictor of behaviour.

5.2.5. Affective vs. Cognitive Aspects of an Attitude

Some attitudes depend heavily on cognitions to back them up, that is, beliefs about the attitude object. Other attitudes are more affectively based, dependent on the **positive or negative feelings or emotions** that a person associates with an attitude object.

Making the affective component of the attitude more salient increases the influence of the affective component over behaviour, whereas making the cognitive component more salient makes the cognitive component the stronger determinant of behaviour.

However, when the **cognitive and affective components of an attitude** are consistent with each other, it does not matter which is made more salient: both will be highly correlated with the behaviour when either is made salient.

5.3 Why it is difficult to change behaviour in Indian society

- India has one of the oldest cultural traditions in the world. Over centuries, **Indians have developed many strong beliefs and practices**. For Example, due to a deep-rooted affinity for cleanliness, Indians are largely uncomfortable about having a place of defecation close to the kitchen.
- Hierarchy is an integral facet of Indian society. Age-old caste systems to present-day factors, such as income and education levels, have reinforced the hierarchical structure.
- In many cases, **wrong behavior is now the social norm**. The normal human tendency is to follow the behavior of the majority. So, most behavioral change initiatives in India, which will involve establishing a minority behavior as a social norm, is not going to be an easy task.
- The biggest barrier to behavioral changes in India is that **the common citizen does not have an emotional connection with the chief change agent—the government**. Governments are considered corrupt and inefficient. Many citizens do not consider cheating the government a mistake because in their minds, cheating a corrupt person is justified.

5.4. Future applications of behaviour change

5.4.1. Transforming Gender Equations: From BBBP to BADLAV (Beti Aapki Dhan Lakshmi Aur Vijay Lakshmi)

- While the BBBP campaign has helped, gender inequality needs a revolutionary campaign. **Our scriptures worship women as the embodiment of Shakti and exhort, that societies where women are respected prosper.**
- Campaign must draw on cultural and social norms because they affect behaviour so crucially in India.
- Therefore, this campaign can be labeled BADLAV (Beti Aapki Dhan Lakshmi Aur Vijay Lakshmi) to represent the 'change' towards gender equality. By drawing on the imagery of the forms of Goddess Lakshmi that symbolises wealth (Dhan Lakshmi) and victory (Vijay Lakshmi), the message of treating women as the forms of Lakshmi needs to be emphasized

5.4.2. From Swachh and Ayushman Bharat to Sundar Bharath

A strong way to reinforce behaviour is by getting people to pre-commit to a certain course of action.

Reflection session

- SBM swachhagrahis may use this strategy to make people pre-commit to sanitation goals. Further, the swachhagrahis may also assist people in assessing themselves periodically, say once a month.
- An assisted Reflection session in the community or on a one-on-one basis with the local swachhagrahi can prompt people to think about whether they acted as planned and how many times they detracted. These reflection sessions should culminate in a commitment about how people plan to act in the near-term future – whether they will refrain from open defecation next month or not.

Making people to realize Tangible outcome

- A swachhagrahi may disseminate information about the incidence of sanitation-related illness in her village and how this rate has improved after the adoption of sanitation practices.
- When people realize the tangible outcomes of their actions, they are more likely to sustain their behaviour. This is of tremendous importance for SBM because it relies on a sustained change in behaviour, not a one-time change. To drive the point home, swachhagrahis may also help individual households reflect on the incidence of illness in their own families in, say, the last six months or since the time they quit open defecation.
- If people find that their health outcomes are better after adopting the new practice, they are likely to persist in that practice.

5.5. Let's apply what we have learnt!!!!!!!!!!!!

5.5.1. Case 1

You are the engineering manager for the Road Commission with a primary responsibility for district road safety. At least 1 person has died along a given stretch of road each of the last 7 years by crashing into a roadside tree. Many other accidents have occurred. Two law suits were filed regarding the unsafe segment of the road, but were dismissed because the drivers were exceeding the 45 mph speed limit. You recommend that the road be widened, resulting in cutting down ~30 old trees. Environmental groups protest, and file a petition signed to 150 people to save the trees. Public debate falls on both sides of the issue.

"Discuss how you will proceed at this point."

Societal values: A variety of societal values pertain to this situation. Society values human life, so this would favour widening the road and sacrificing the trees. Society also values following the law. Since it can be argued that people in the accidents were speeding, and therefore violating the law, perhaps leaving the road is fine.

Steps that I will follow

1. First, I would hold a public meeting to inform public. It should be noted that minimum no of people on the petition is a small fraction of persons affected (up to 60,000 in town, so there could be a silent majority in favor of widening the road). Explain why technically the best solution is to widen the road.
2. The district should widen the road and remove trees from the right-of-way for optimal safety.
3. The district should consider relocation of the displaced trees to other public property (a park, etc).if possible and plant double the number of trees.

This solution accommodates both public safety which is a human ethics and environmental preservation, part of environmental ethics.

5.5.2. Case 2

In the past month one of your employees has shown a major decline in performance when dealing with citizen redressal. Though this decline has been on-going for the past six months it was particularly sharp during the course of the last month and you receive a lot of complaints. In addition, she started coming in late, seeming very frustrated with her work. Her frustration is influencing the atmosphere in the office as she is a popular employee and has been working for the company for the past two years.

The following are the course of Action that will be taken by anyone depends on his personality/character and values he holds and organisational Values. What will you choose and justify the answer.

1. I call her for a talk and try to get down to the source of the problem. I explain that this behavior is bad for all who are involved, including her. I express my true will to help her with this rough patch in the condition that she works with me and not against me.
2. Demotion is the most appropriate solution. I replace her and assign her with back office tasks. Employees are being measured by accomplishments and if she doesn't make the requirements then I don't have a choice. In addition she is a respected worker in the staff and I have to stop her from deteriorating all the other employees.
3. I call for a staff meeting to talk about the negative atmosphere and make sure that the employee is not there so that there won't be any rejections.
4. She has been working for the past two years. Everyone has periods that are not the best and part of my job is to be sensitive when it is called for and "cut her some slack" on this one.

6. UPSC Previous Years Questions

1. What factors affect the formation of a person's attitude towards social problems? In our society, contrasting attitudes are prevalent about many social problems. What contrasting attitudes do you notice about the caste system in our society? How do you explain the existence of these contrasting attitudes? (2014)
2. Two different kinds of attitudes exhibited by public servants towards their work have been identified as bureaucratic attitude and the democratic attitude. (2015)
3. Distinguish between these two terms and write their merits and demerits. (2015)
4. Is it possible to balance the two too create a better administration for the faster development of our country? (2015)

5. How could social influence and persuasion contribute to the success of Swachh Bharat Abhiyan? (2016)
6. Our attitudes towards life, work, other people and society are generally shaped unconsciously by the family and the social surroundings in which we grow up. Some of these unconsciously acquired attitudes and values are often undesirable in the citizens of a modern democratic and egalitarian society. (a) Discuss such undesirable values prevalent in today's educated Indians. (b) How can such undesirable attitudes be changed and socio-ethical values considered necessary in public services be cultivated in the aspiring and serving civil servants? (2016)
7. Young people with ethical conduct are not willing to come forward to join active politics. Suggest steps to motivate them to come forward. (2017)

7. UPSC Previous Years Question Paper: Case Studies

1. You are aspiring to become an IAS officer and you have cleared various stages and now you have been selected for the personal interview. On the day of the interview, on the way to the venue you saw an accident where a mother and child who happen to be your relatives were badly injured. They needed immediate help. What would you have done in such a situation? Justify your action.
2. In our country, the migration of rural people to towns and cities is increasing drastically. This is causing serious problems both in the rural as well as in the urban areas. In fact, things are becoming really unmanageable. Can you analyze this problem in detail and indicate not only the socio-economic but also the emotional and attitudinal factors responsible for this problem? Also, distinctly bring out why— Educated rural youth are trying to shift to urban areas; Landless poor people are migrating to urban slums; Even some farmers are selling off their land and trying to settle in urban areas taking up petty jobs. What feasible steps can you suggest which will be effective in controlling this serious problem of our country?
3. You are the Sarpanch of a Panchayat. There is a primary school run by the government in your area. Midday meals are provided to children attending the school. The headmaster has now appointed a new cook in the school to prepare the meals. However, when it is found that cook is from Dalit community, almost half of the children belonging to higher castes are not allowed to take meals by their parents. Consequently, the attendance in the schools falls sharply. This could result in the possibility of discontinuation of midday meal scheme, thereafter of teaching staff and subsequent closing down the school. (20 Marks) (250 Words) (a) Discuss some feasible strategies to overcome the conflict and to create right ambiance. (b) What should be the responsibilities of different social segments and agencies to create positive social ambiance for accepting such changes?
4. You are recently posted as district development officer of a district. Shortly thereafter you found that there is considerable tension in the rural areas of your district on the issue of sending girls to schools. The elders of the village feel that many problems have come up because girls are being educated and they are stepping out of the safe environment of the household. They are the view that the girls should be quickly married off with minimum education. The girls are also competing for jobs after education, which have traditionally remained in boys' exclusive domain, adding to unemployment amongst male population. The younger generation feels that in the present era, girls should have equal opportunities for education and employment, and other means of livelihood. The entire locality is divided between sexes in both generations. You come to know that in Panchayat or in other local bodies or even in busy crossroads, the issue is being acrimoniously debated. One day you are informed that an unpleasant incident has taken place. Some girls were molested, when

they were en route to schools. The incident led to clashes between several groups and a law and order problem has arisen. The elder after heated discussion have taken a joint decision not to allow girls to go to school and to socially boycott all such families, which do not follow their dictate. (250 words) (25 Marks)

(a) What steps would you take to ensure girls' safety without disrupting their education?

(b) How would you manage and mould patriarchic attitude of the village elders to ensure harmony in the inter- generational relations?

5. You are the heading the rescue operations in a area affected by severe natural calamity, thousands of people are rendered homeless and deprived of food, drinking water and other basic amenities. Rescue work has been disrupted by heavy rainfall and damaged to supply routes. The local people are seeding with anger against the delayed limited rescue operations. When your team reaches the affected area, the people there heckle and even assault some of the team members. One of your team member is even severely injured. Faced with this crisis some team member plead with you to call off the operations freeing threats to their life.

In such trying circumstances, what will be your response? Examine the qualities of a public servant which will be required to manage the situations.

Suppose the Government of India is thinking of constructing a dam in a mountain valley bond by forests and inhabited by ethnic communities. What rational policy should it resort to in dealing with unforeseen contingencies?

6. It is a State where prohibition is in force. You are recently appointed as the Superintendent of Police of a district notorious for illicit distillation of liquor. The illicit liquor leads to many deaths, reported and unreported, and causes a major problem for the district authorities. The approach till now had been to view it as a law and order problem and tackle it accordingly. Raids, arrest, police cases, and criminal trials – all these had only limited impact. The problem remains as serious as ever.

Your inspections show that the parts of the district where the distillation flourishes are economically, industrially and educationally backward. Agriculture is badly affected by poor irrigation facilities. Frequent clashes among communities gave boost to illicit distillation. No major initiatives had taken place in the past either from the government's side or from social organizations to improve the lot of the people.

Which new approach will you adopt to bring the problem under control?

8. Vision IAS Test Series Questions

1. *Explore the reasons behind morality having little effect in regulating the attitude of nations towards one another?*

Answer:

Ethical decision-making can be more challenging for international relations than local operations. It means morality has little effect in regulating the attitude of nations. Some of the reasons are:

- Formulating foreign policies is the responsibility of governments. Thus moral consideration in the foreign policy depends on the government, not on an individual or the citizenry at large (though in well functioning democracies the will of the people is usually expressed by the government).
- The government is an agent, not a principal. Its primary obligation is to ensure the interests of the society it represents, not to the moral impulses that individual elements of that society may experience.
- Nation states are usually concerned with their military security, territorial unity and integrity, and the well-being of their people. With these and other priorities, morality usually takes a backseat.

- The unavoidable necessities of national existence are rarely subject to classification in terms of "good" or "bad".
- There are no internationally accepted standards of morality to which any government could appeal if it wished to act in the name of moral principles.
- Culture-driven ethics vary between nations, making it difficult for policy makers of one nation to adhere to a strict code of ethics for itself, while dealing in the international arena.
- Ethical dilemma occurs when foreign policy makers must decide whether to commit an act that is ethically unacceptable in the home country, but expected and necessary in the other country.
- If the ethics behind foreign policies will have diminishing or no resonance in the societies they are applied, in or to, their effect will be perverse.

2. "Those who say religion has nothing to do with politics do not know what religion is". Explain. Further examine the role of religion in formation of political attitude in the Indian context.

Approach:

This is the quote given by Mahatma Gandhi, which underlines the importance of religion in shaping political and moral attitude of people. The answer can be framed in the following manner:

- Elaborate the statement and its assumptions in detail.
- Discuss how religion played an important role in shaping political attitude in India.

Answer:

Partition of India on communal lines and existence of political parties adhering to a particular religious ideology are examples and validation of the above quote by Mahatma Gandhi. In a developing society, like India, where tradition coexists with modern practices, religion still plays a very important role in the distribution of power in society. Hence, the idea that politics is immune from religious ideas is tantamount to ignorance about the powerful role religion plays in the socio-political life of Indian society. It can be said that religion still fundamentally shapes political attitude of a large section of people in India.

Though there are various factors like family, caste, ethnicity, region, occupation which determine general political attitude of people, in the Indian context religion has historically played a very fundamental role. Various underlying causes for this condition are:

- In spite of diverse social composition, numerical dominance of one religion with respect to various minority religious communities made religious identity important in socio-political life.
- During colonial times religious identities were reinforced to divide the society on religious-political lines, since then religion has become important social force in political landscape of India.
- Religion provides the ethical framework of the society which also shapes the political actions e.g. banning of beef, role of women in society.
- Religious identities are easier to mobilize for political ends as they are primordial and resonates with masses.

3. ***"Persuasion makes society work smoothly while physical coercion grinds it to a halt". Giving examples, compare the effectiveness of persuasion as an influence tactic vis-a-vis coercion in bringing change in society. In what ways persuasion can be used by civil servants to remove social evils existing in society?***

Student Notes:

Approach:

The basic theme of the question is to compare the importance of persuasion vis-à-vis coercion to influence others and bring change in society. The answer can be framed in the following manner:

- In brief define persuasion and coercion.
- Citing examples examine the conditions under which persuasion proves to be better tactic vs coercion.
- Thirdly, suggest some ways/measures through which civil servants can use persuasion to remove certain social evils.

Answer:

Our thoughts and actions are influenced by other people, whether we are passively observing their behavior or actively complying with their requests. In everyday life we use persuasion to convince people to either fulfill our needs or to alter their thoughts and beliefs. Thus, Persuasion is a conscious attempt to change the attitude/belief of others. It attempts to win 'the heart and mind' of the target and influences a person's attitude, intention, motivation or behavior. Coercion on the other hand is the action or practice of persuading someone to do something by using force or threats. It implies that the act is committed against the will of the person.

Effectiveness of Persuasion over Coercion:

- **Persuasion relies on understanding and changing the hearts and mind.** It focuses on the need voluntarily change peoples' belief or action. Coercion on the other hand, employs threat power, punishment so that a person feel compelled to act accordingly/involuntarily.
- **Persuasive tactics include inspirational appeals, consultation and collaboration** which are democratic ways to bring change in society. Those being persuaded feel involved and intrinsically motivated to take a particular action. Whereas, Coercion makes a person accept change in a forced, imposed and undemocratic way.
- Although the process of **persuasion may take more time**, it is less likely to lead to a cycle of retaliation or revenge. Persuasive means are likely to remain more durable and result in greater productivity. Whereas, when bullied into submission, it is human nature to fight back and break away at the earliest opportunity.

Example: To change peoples' mind to adopt family planning measures in order to control population, persuasion is a more effective technique than coercion because adopting family planning methods affects socio-cultural and religious sentiments of different communities in the society. If coercion is used, many would retaliate (as was evident in 1976-77, when Family control measures were forced onto people, ignoring their socio-cultural and religious sentiments).

Ways in which Persuasion can be used by Civil Servants:

- The civil servants at all levels of government exercise substantial discretion and authority, and often have a significant impact on the lives of individuals. They influence how policies are developed, taxes are spent and services are delivered.
- If **Rational/Logical Persuasion** is used by presenting the facts and laying out an argument which generally includes emphasizing the positive benefits of a course of action by providing data, facts, etc., then it would serve a better strategy to bring

change in a person's attitude- **Example-'Swachh Bharat Abhiyan'**- use of awareness to bring about a collective community behavioural change. Also, to increase sensitivity towards dwindling sex ratio, if its implications on society overall is shown through facts, data and reports and its effect on future prospects of marriage and security of girls per se then it would have a more long lasting effect than coercive tactics.

- If all the stakeholders of society are consulted like Civil Society, NGOs, Religious groups, Youth, elderly, women organisations, etc in a district/state, the civil servants can reach to a more mutually consented decision on a particular course of action to bring change in society- eg. Promoting innovative techniques like "Selfie with daughter" to change peoples'/ family's attitude whenever a girl child is born.

4. Social media has played a key role in influencing political opinions and social attitudes in India. Comment.

Approach:

- Briefly define the term 'social media' and its current relevance in day to day lives.
- Highlight the positive/negative role played by social media in influencing political opinions and social attitudes in India.
- Way forward.

Answer:

- Social media denotes a group of Internet-based applications which allow people to create, share or exchange information, career interests, ideas, and pictures/videos in virtual communities and networks. Social media platforms such as Facebook, Twitter, WhatsApp and Instagram are being accepted as the fifth pillar of media after print, TV, digital and radio and tend to provide news faster than most news channels today.

Role of social media in influencing political opinions

- **Outreach:** Social media allows politicians and political parties a method to connect directly with people at a reduced cost and greater reach than traditional media. For instance, during 2014 Delhi Legislative Assembly elections, Delhi had 13 million registered voters this election, out of whom 12.15 million were online, making digital platforms the most effective engagement tool for party workers.
- **Communication:** It helps politicians interact with citizens, seek feedback and weigh public opinion. Example, Twitter gives political organisations the ability to broadcast information on a worldwide stream, join any ongoing debates and discussions and have a two-way interaction with the public during political processes and campaigns.
- **Campaign management:** Political campaigns leverage a wealth of information or analytics about the people who are following them on social media, and customize their messages based on selected demographics to manage the image of the candidate. According to Internet and Mobile Association of India (IAMAI) report, Facebook had a tremendous impact over the results of the polls in 160 of India's 543 constituencies in the last General elections.
- **Polarisation:** Social media has also become a new battleground, where political parties leverage the pervasive nature of these platforms for their own advantage. Many anti-social elements turn to social media for spreading hate campaigns and support communal events, thus polarising the elections.

- **Opinion building-** It has eliminated the spatial difference between people & allowed faster & more equitable flow of information about different socio-economic topics. For instance, the role played by 'Facebook reporters'- living in the enclaves of India in Bangladesh fighting for their cause.
- **Social Reforms-** Eminent personalities taking to social media platforms to broadcast the importance of Swachh Bharat, kick started a new revolution for achieving Clean India. Various online surveys, audio-visual campaigns and ideas infused new energy among the masses and moulded their attitudes.
- **Humanitarian campaigns-** Twitter and Facebook proved an invaluable tool for those involved in disaster relief efforts, posting up to the minute reports on tsunami alerts, altered train schedules, emergency numbers and shelters. This changed the attitudes of people in positive way and created a bandwagon effect among people who wanted to reach out to the survivors.
- **Misuse of Social Media-** On the other hand, social media has also been used a means to achieve wrong gains. The increased instances of misinformation (mass exodus of people in Bengaluru hailing from North East), false opinion building, virtual information wars among countries, hate and bully campaigns etc. depict the narrow mindedness of some of the social media users.

Social media is here to stay. Given the reach, frequency, interactivity, usability, immediacy, and permanence of social media, it becomes imperative to check its use for malicious activity & ensure it serves the purpose of equitable access to correct information.

5. ***It does not take long for conflict to turn violent when deep seeded prejudices and discriminatory attitudes are not addressed. Discuss in the context of communal and caste-based violence in India. What role should the state play in this context?***

Approach:

- Briefly discuss about the caste and communal based violence and discrimination in society and explain the meaning of prejudice.
- Highlight how it develops and its role in such violence and discrimination.
- Discuss the steps that must be taken to reduce prejudices.

Answer:

The very strength of Indian society which lies in its diversity, sometimes become its main fault line dividing the society, ultimately leading to discrimination and even violence. Though it was expected that with the urbanisation and increasing technological and economic development, communal and caste identities would be diluted, but this does not seem to be the case. Evidence can be provided for both dilution of such ascriptive identities as well as their strengthening.

The instances of caste and communal violence are generally based on strong prejudice, irrational beliefs and preconceived notion about other group. As a result, members of one community perceive threat, harassment, fear and danger from the members of the other community. Consequently, the response to the threat is mostly ignorance of the other and sometimes hatred leading to violence.

In India these prejudices get strengthened because of the following factors:

- Legitimising discrimination through history, folklore and perception. For e.g. the event of partition still incites deep emotions among many people; discrimination of people from lower castes has many references in historical texts and thus derives some sort of sanction.

- Separatesettlements result in lack of inter-group contact and communication,that strengthens in-group and out-group classification.
- Fomenting of insecurities and fear by vested interests by providing misinformation about the aims of other group.
- As multiple groups compete for same resources, so in order to maintain legitimacy and their dominance, socio-economically powerful group brandishes other as incompetent.
- To prevent ascendancy of other groups, opportunists try to incite the negative emotions in the people so as to serve their narrow motives by orchestrating communal incidents, thus ultimately strengthening the prejudices.

Although the constitution of India explicitly bars discrimination by the state on grounds such as race, religion, caste, place of birth and sex, as well as prohibits untouchability, still discrimination is practiced at a personal and community level. The state should thus take appropriate steps to minimise conflicts that may arise due to cultural separation by bridging the cultural divide. These include:

- At the preventive level, the state should mitigate long held prejudices by promoting meeting of members of different sections in a free environment. For example, cultural meets and community dinners on the occasions of different festivals. This corrects the misinformation that one group holds towards the other group.
- In cases of discrimination or violence, state should not only do justice but ensure that justice has been done.
- Caste and communal based politics must be checked through strict enforcement of section 123 of RPA, 1951 and strengthening Model Code of Conduct.
- Motivating people to fight against their common enemy like poverty, illiteracy, unemployment and pollution etc.
- Education system should be oriented towards inculcation of constitutional and human values amongst children.
- Review of the training programs for the police forces with a view to inculcating in them, the attitudes of secularism and communal harmony.

Yet, state alone can't ensure social harmony; the responsibility lies with the public and their individual conscience. It is the duty of every citizen to inculcate the feeling of bonhomie towards other sections and rise above narrow interests and short term goals and build a strong and united country.

6. ***While on the one hand, some state governments have implemented alcohol consumption prohibition laws, it is permitted in other states. Debates around this issue often involves aspects such as individual rights, cultural attitudes and social welfare. As a teacher you need to explain the key issues involved to a young audience. What are these? How would you conclude the lecture?***

Approach:

- Discuss reasons for introduction of alcohol prohibition.
- The question mentions three aspects i.e. individual rights, cultural attitudes and social welfare. Build on these while explaining the key issues associated with alcohol prohibition.
- Conclude persuasively to emphasize on the points made above. One's stand may differ from that presented in this model answer.

The ill effects of consumption of alcohol are well documented. Deterioration in health of the person concerned is just one aspect. It is well established through studies that incidents of domestic violence, road rage and accidents, gambling, indebtedness and theft are more common in an inebriated state. This has led various state governments in India to prohibit alcohol from time to time with varied level of success. However owing to vast socio-economic differences across states and federal nature of our polity, a pan India ban on alcohol seems difficult to implement. Moreover, with people ascertaining consumption of alcohol as a right when we are moving towards a rights based framework governing individual-state relationship, it becomes even more difficult to convince people for a complete ban on alcohol.

A teacher, being a strong agent of influence, should present various dimensions of alcohol prohibition in a structured way, which may help the young audience to form a well informed opinion about the subject. The key issues include:

A. Individual rights

Prohibition restricts dietary habits of citizens and their right to choose. Prohibition should not be justified citing its possibility of being misused alone. In the times when authority to make decisions is being decentralised, it becomes natural to question the logic behind government prescribing a blanket ban. To a certain extent, it does undermine the citizen's ability to make a well-informed decision.

B. Cultural attitudes

In some cultures, alcohol is a means to socialize and celebrate. For example, alcohol drink made from rice is popular in certain parts of Assam as is palm based drinks in various parts of the country. Tribes in central India also use alcohol brewed from locally available grains in their celebrations. Blanket prohibition overlooks these societal aspects. However even a wide acceptance alone cannot be the reason to legitimize something and overlook some of its associated fallouts.

C. Social welfare

A developing country like India needs interventionist policies for the social and economic well-being of its citizens. Article 47 of Indian Constitution directs State to prohibit consumption of intoxicating substances, except for medicinal reasons. Mahatma Gandhi was also one of the vocal votaries of prohibition. Restrictions/bans become easy and preferable tool to implement such Constitutional directives though their effectiveness is debatable. Given these arguments, it is difficult to find a black and white answer to this debate. As a teacher, it is reasonable to conclude with certain ingredients which any solution to this debate must essentially incorporate:

- **Sustainability-** It depends on administrative capacity to implement effective ban (preventing inter-state smuggling and black-marketing), generating alternative revenue source to compensate the revenue loss due to prohibition etc. Long term solutions include- citizen awareness and a well informed policy on prohibition which takes into account the current socio-economic aspects of our society.
- **Role of various stake holders** –Family, educational institutions, media and role models have an important role in shaping the perception of youth and thus they must be a part of the solution and must act responsibly in the best interest of the society. Similarly political parties must not politicize the issue just for the sake of political gains and must frame policies in line with constitutional and global imperatives.

Speaking from a utilitarian perspective, it is clear that the overall welfare of the society is negatively hampered with alcohol consumption. A violation of right to consume of a few cannot be used as pretext to overlook the violation of human rights of many more. Moreover, from deontological perspective the right to consume alcohol can be tested universality and humanity. It turns out that even in extreme case if everyone would like to extend consumption as universally acceptable, it is unclear whether it treats humanity as an end or a means. What it definitely does it is that it neglects the rights of others at cost of rights of a miniscule minority. As such, it cannot be termed as a right rather can be better classified as a desire or a luxury- a means to achieve self-satisfaction.

7. What do you understand by cognitive dissonance? Giving examples, discuss how it influences one's behavior and attitude.

Approach:

- Define Cognitive dissonance.
- Discuss in brief what you understand by Attitude and Behaviour.
- Discuss how Cognitive dissonance influences one's behaviour and attitude.
- Give appropriate examples wherever necessary to support your arguments.

Answer:

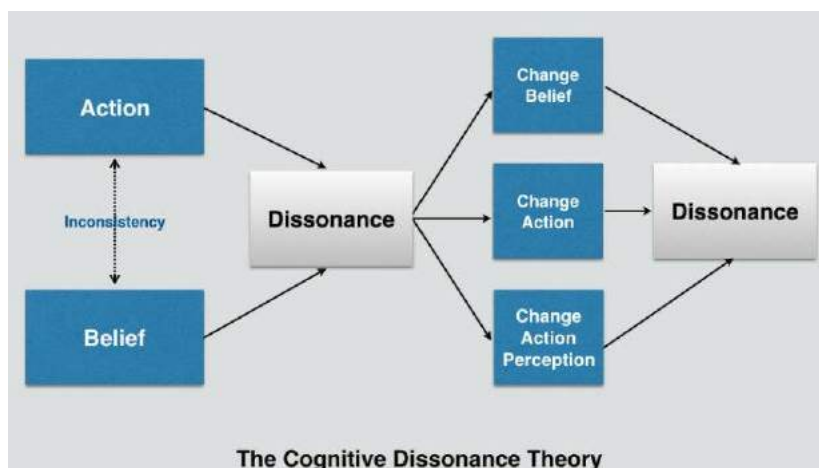
Cognitive dissonance is a phenomenon in which a person experiences psychological agony due to conflicting thoughts or beliefs. It is the feeling of inconsistency in feelings, beliefs and behaviour (the three components of attitude). For example, when people smoke (behavior) and are aware that smoking causes cancer (cognition), they are in a state of cognitive dissonance.

Attitude is a favorable or unfavorable evaluative reaction towards something or someone found in one's beliefs, feelings, or intended behavior. Behaviour is actual expression of these feelings. Attitude is internal and Behaviour is external.

The Principle of Cognitive consistency states that human beings have an inner drive to hold their attitudes and behavior in harmony and avoid disharmony. So, when there is an inconsistency between attitudes or behaviors (dissonance), something must change to eliminate the dissonance.

Change in behavior and attitude may occur by reducing the dissonance in following three ways:

- When one of the dissonant elements is a behavior, the individual can change or eliminate the behavior. For e.g.- giving up smoking.
- Acquire new information that outweighs the dissonant beliefs. For e.g. new information such as "research has not proved definitely that smoking causes lung cancer" may reduce the dissonance.
- Reduce the importance of the cognitions (i.e. beliefs, attitudes). For e.g. a person could convince himself that it is better to "live for today" than to "save for tomorrow", thus decreasing the importance of the dissonant cognition (i.e. smoking is bad for one's health).



Though it is difficult to objectively measure cognitive dissonance, it plays a major role in shaping attitudes and behaviours that influence judgments, decisions and evaluation of different people.

9. Vision IAS Test Series: Case Studies

- You are the District Magistrate in a district where a significant number of transgenders reside. While discrimination against the community is well known, commuters increasingly complain of harassment at their hands, especially at traffic junctions where transgenders are mostly involved in begging. This, at times, also leads to traffic management issues. You have received a number of complaints in this regard and have to act quickly to resolve it. However, a group of transgender associations argue that begging is their only source of livelihood. Given the situation, answer the following questions:*

(a) Describe the ethical issues involved in this case. Discuss the attitude of people towards transgenders in general and reasons for the same.

(b) What possible courses of action can be undertaken in such situations? Discuss their merits and demerits.

Approach:

- Discuss the ethical issues involved and the reasons for differential attitude of people towards transgenders.
- Discuss possible course of action with merits and demerits. You may conclude by suggesting long-term solution/elaborating on your solution.

Answer:

The given case involves the issues of vulnerable section of population as well as the comfort of the community. The issue relates to taking into consideration competing interests of discrimination, which transgender faces, be it education, employment, social participation as well as the means they use to earn their living.

(a) Ethical issues involved in this case are as follows:

- **Convenience versus livelihood:** Begging by transgenders is causing inconvenience to commuters and is leading to additional problems like traffic congestion. While, on the one hand, poor socio-economic condition of transgenders force them to make a living by begging, this at times becomes inconvenient to general public.
- **Discrimination of transgenders versus harassment of the commuters:** The society in general can't have both ways, that is, restricting the options of a section of population to earn decent income and at the same time have problem with whatever little means they are using to earn their livelihood.

- **DM's commitment to safeguard interests of the vulnerable sections versus taking action on the registered complaints by citizens:** Since a large number of complaints have been registered, it is the DM's duty to take up a call to reign in the menace while balancing the right of transgenders to earn a living.

General attitude of people towards transgenders

- **Discriminatory** - based on their class and gender. This makes the transgender community one of the most disempowered and deprived groups in the Indian society.
- **Non-inclusionary:** They are treated as unnatural and as objects of ridicule and even fear on account of superstition.
- **Inequality and that of Seclusion:** A long neglect in terms of rights (civil rights like the right to a dignified living) and development (reservation in educational institutions and public employment) has completely isolated the community.
- **Negligence and indifference:** Their numerical minority makes them politically less significant as a vote bank and paves the way for their legislative and administrative neglect.

Reasons for such attitude

- They are different from what has been considered 'normal' in the society
- Gender based discrimination has been the norm everywhere and ever since. They have been treated as objects of entertainment rather than as human beings.
- Discarded by their families and society, they turned to petty means to earn livelihoods. Now they are looked down upon for that, without realizing the root cause. Society misunderstands the changing concept of gender identity.
- Many superstitions have also built up around the community because of their closed nature, without realizing that they have been discarded, not that they chose to remain secluded.

(b) Possible course of action

- **Ignore the issue as begging is a matter of livelihood for transgenders**

Merit: Transgenders will have their way in collecting money at traffic junctions.

Demerit: This will amount to dereliction of duty and will neither help transgenders nor the general public in the long run. Also, begging is a criminal offence. Knowingly allowing begging amounts to collusion. Also, it does not solve the issue of genuine inconvenience which the commuters face.

- **Issue a stern warning to transgenders indulging in harassment of commuters. Additionally deploy squads who may check the menace at traffic junctions.**

Merit: It may rein in the menace of harassment at the hands of transgenders and may prevent traffic problems.

Demerit: It may affect the livelihood of transgenders adversely who mainly rely on begging and are discriminated by the general public. As the area has high population of transgenders, it may also create law and order problems.

- **Issue guidelines for traffic junctions along with establishing of committee for chalking out measures to sensitise public about transgender issues as well as implement skill development and vocational training schemes along with rehabilitation measures.**

Merit: It will provide alternate avenues of employment for transgenders. In fact, they would happily switch their jobs given the opportunity. It redresses grievance of citizens as well and may also lead to transgender community getting a respectable place in society in the long run.

Demerit: This is a step with a long gestational period. It may hamper the income earning source of transgenders in the short term. This may reinforce the notion that general society's rights are valued above those of the vulnerable sections.

Though it is important to provide relief to general public, the perspective of transgender community must be empathized, else the solution will not be sustainable in the long run and the status quo will rebound. Implementing the Supreme Court directions of giving them special treatment in certain matters will go a long way in integrating them in the society.

2. *You are a civil servant posted in a state where elections were recently held. The newly elected Chief Minister had promised to ban alcohol in several of his election campaigns as well as his election manifesto, which was widely praised and supported by women of the state. Fulfilling his electoral promise, the Chief Minister has ordered a blanket ban on the sale of alcohol in the state. Following the ban, concerns have been raised about the feasibility of the ban and whether the government should interfere in what is considered by many to be a matter of personal choice.*
- (a) Who are the stakeholders in this case and how are they affected by the ban?*
- (b) Is blanket ban on alcohol a feasible action?*
- (c) Identify the issues that may arise while enforcing the ban and the steps you will take to handle them, as a civil servant.*

Approach:

- Identify the stakeholders in the case and the effect of alcohol ban on them.
- Comment on whether blanket ban is a feasible action or a coercive action taken by the government.
- State the issues that will arise after the enforcement and suggest measures to handle them.

Answer:

In this scenario, blanket ban of alcohol has been imposed by the new CM in a state, which affects various sections of the society in different ways.

(a) Following are the stakeholders and the effect of the ban endured by them:

- People who consume alcohol, as they will have to face withdrawal symptoms, post ban.
- Their relatives and friends, especially women, who have faced problems like domestic violence, family disputes. However, they will have to ensure that alcoholic addicts are promptly taken to de-addiction centres.
- The government as the state exchequer will face massive revenue loss. Social expenditure may have to be cut down. Moreover, law and order situation has to be maintained.
- Alcohol suppliers and traders as they will have to find alternate means of livelihood.
- The society at large, as it is adversely affected by alcoholism.

(b) While assessing whether blanket ban is feasible, both advantages and disadvantages have to be analyzed:

Advantages:

- Fewer cases of domestic violence and relatively safe environment for children.
- Improvement in health of people leading to decreased burden on government services such as hospitals, medicine stores etc.
- Increase in household savings.

- It can lead to fewer road accidents as drivers will not drink and drive.
- It is in consonance with Article 47 of the Constitution, which emphasizes on public health.

Disadvantages:

- Total ban violates individual's freedom to choose.
- It will cause a heavy revenue loss on state exchequer. The money could have been used for welfare purposes.
- The state might see a rise in alcohol bootlegging owing to emergence of 'black markets'. Since the markets will not be regulated, spurious liquor may be sold, which can have adverse health impacts.
- Alcohol is used in certain religious functions e.g. use of wine during baptism by Christians. Hence, it can interfere with religious practice of minorities.
- Unemployment for those involved in liquor manufacturing and trade.
- Immediate rehabilitation costs for alcohol addicts.

While total ban has several positive aspects, it is not entirely feasible as adults should be given freedom of choice and decision-making. Alcohol production, sale and distribution should be regulated rather than imposing a total ban, else it might be deemed as a unilateral coercive action by the government. Alcoholism is a social issue, therefore it can't be banned merely by legislative means. Hence, we have to bring in corresponding social change as well to make the ban effective.

Note: Arguments can be given in favour of ban also with proper justification.

Alcoholism has been a menace in the society with disproportionate suffering of women in lower socio-economic strata. Just because some individual's right to choose their dietary habits is curtailed, it cannot be a pretext to prevent active intervention by the government to correct a societal ill. Bans based on sentiments are questionable, but bans based on empirical evidence of domestic violence (most of which goes unreported), traffic violations and consumption of harmful country made liquor have scientific substance to them. The government being the representative of the people has the authority to initiate a change, if it does not come from within.

(c) Issues that may arise in this case, and the ways in which a civil servant should deal with them:

- **Withdrawal symptoms of addicts:** It should be ensured that there are adequate de-addiction and rehabilitation centres with competent professionals.
- **Emergence of black markets and distribution of spurious liquor:** checking at regular intervals, especially at border check posts. Further, restaurants and bars will also be frequently monitored.
- **Livelihood of traders and alcohol producers at stake:** Policy focus should be on job creating programmes and poverty alleviation programmes.
- Further, work on organizing awareness programmes for promotion of healthy lifestyle and disseminate negative effects of alcohol consumption in collaboration with primary health care centres, NGOs, media etc., should be emphasised.

3. *You, a manager in one of the top IT firms in the country, are tasked with hiring new recruits for an upcoming project. You find that the company has given tacit instructions of not hiring female candidates in view of the new maternity law passed by the Government. You find this highly objectionable and lodge a protest with people in the higher management but they are firm as they want to cut down all the unnecessary costs. Based on this information, answer the following questions:*
- (a) *Identify the stakeholders and their interests in the situation.*
- (b) *What are the dilemmas that a recruiting manager may face in such a scenario?*
- (c) *What are the different options available to you? Which one will you pursue and why?*

Approach:

- List stakeholders like the hiring manager, the company, female candidates, Government and the society List their interests.
- Discuss the dilemma(s) you are facing.
- List the available options, analyze each in the light of given circumstances and ethical conduct. Choose the one which you may pursue.

Answer:

(a)

Stakeholder	Interest
Company/Higher Management	Company's interest is to maximize profit by lowering down cost incurred per employee. In the case of female employee the cost of maternity leave is to be borne by the company. Hence, the higher management wants to avoid hiring female candidates.
Hiring Manager(Myself)	My first interest is to hire suitable candidates for the listed positions irrespective of the gender. Avoiding confrontation with management while standing up to unjust policies is the dilemma faced in such situation.
Female Candidates	Their interest lies in seeking a fair chance to get the job in the company. In the long run, they expect equity in hiring and promotion and a safe working environment.
Government and Society	These stakeholders seek gender equality at workplace. For this it is important that issues arising out of maternity be redressed adequately via legislation(s) and social change. Though various maternity legislation may ensure assured maternity leave, flow of regular income and job security, it alone cannot bring out the societal change required for a gender vibrant culture at workplace.

(b) **Dilemma:** Accepting the higher management's dictum and avoiding any female candidate v/s being fair and appointing a suitable candidate irrespective of the gender.

Additionally, I may also face the dilemma of forgoing a better candidate just because of gender. This will lead to loss of productivity and will incur a long term cost to the company. The associated dilemma is the larger issue of gender biasness in society due to patriarchal attitude conflicting with the idea of equality and progress, which demands change. It's important to promote gender diversity at the workplace; however, the current instructions by the company go against this principle.

(c) **Different options available:**

- Rejecting female candidates: Though with this option I will avoid confrontation with the higher management, this would be contrary to basic human rights and the constitutional ethos of equality. This would filter out many genuine candidates and will constrict the candidate pool. This smacks of short-sightedness and narrow-mindedness.

- Hiring a suitable candidate objectively and without discrimination: This will ensure that the most competent and deserving candidate are hired for the job.

Option which I will pursue: Confrontation is not the way out; persuasion is. The most appropriate way to persuade will be through attitudinal change, which however, is very difficult in the immediate term. But if I can objectively demonstrate that costs associated with hiring women employees are not significantly higher as compared to men and that productivity is independent of gender, I will be able to start the process of attitudinal change. I will take the help of HR department, and if required, the governing board of the company in the matter.

Regarding recruitment, I have to be objective in my assessment of candidates, not biased w.r.t. gender. They will be assessed based on their ability as well as job requirement. If the job profile does not demand a particular gender requirement, the tacit instructions should not carry much weight and may in fact be contrary to the policies of the company. I will report such instructions to the HR as gender discrimination is not only illegal but also vitiates the organizational culture and social image of the company. Additionally I will undertake gender-sensitivity drive by involving my peers especially the working women in my organization. By doing so I would have upheld the dictum of 'Be the change you want to see'.

4. *Rapid growth of information and communication technology, with all its benefits, has associated risks and far-reaching consequences. The government has constituted a committee to frame guidelines for an inclusive and safe cyberspace in India. The committee has solicited public opinion in this regard. As a concerned citizen, you have to give your suggestions on the following themes:*

- (a) Why do you think some people or a set of people are more vulnerable to cyber threats with special emphasis on cyber-bullying.***
- (b) Do you think the experiences and exposure in cyberspace are an important influence in a person's attitude and behaviour?***
- (c) What reasonable restrictions can be applied to make cyberspace more safe and friendly to all citizens?***

Approach:

- Briefly define benefits and risks posed by ICT.
- State the groups/set of people who you think are vulnerable to cyber-threats especially cyber-bullying with reasons.
- Discuss whether experiences and exposure in cyberspace are an important influence in a person's attitude and behaviour.
- List reasonable restrictions that can be applied to make cyberspace more safe and friendly to all citizens.

Answer:

ICT has a significant impact on the economic, political and social dimensions of development. It has enhanced economic activity, empowered individuals by ensuring their participation in decision-making processes at various levels and exposed diversity of views. However global nature, speed, convenience and anonymity offered by ICT is being misused to create numerous threats such as cyber-bullying, cyber-grooming, hacking, pornography, radicalization, intimidation, breach of privacy, reputational loss, identity theft etc.

- a)** Cyber-bullying which refers to use of internet or mobile technology to intentionally harass or bully someone by sending rude, mean or hurtful messages, comments and images/videos. A cyber bully can use text messages, email, social media

platforms, web pages, chat rooms etc. to bully others. While all ICT users are at risk of facing cyber threats, there are some social groups that are more vulnerable to cyber threats like:

- **Women:** Cyber crimes against women are rooted in stereotypes about gender roles, sexuality and sexual norms for women. Women are victims of cyber bullying that includes non-consensual sharing of intimate images, unsolicited sending of sexual and pornographic images and other forms of cyber bullying entailing sexualised behaviour.
- **Children and teenagers:** Due to their experimental mind-set and limited understanding of cyber threats, they are particularly vulnerable to cyber threats like cyber bullying. Those with learning and attention issues are at a greater risk. It may have physical, emotional and psychological consequences and may lead to school dropout and depression.
- **Youth:** The youth are vulnerable to online radicalization, allurements to online high paying jobs etc. A study in the *Journal of Medical Internet Research* revealed that children and young people under the age of 25 who are victims of cyber-bullying are twice as likely to commit suicide.
- **Celebrities:** Celebrities especially female ones are targeted victims of body shaming, racial slurs, stalking, cyber-bullying for their appearance, work, social life etc. Consequences include forceful exit from social media, mental and psychological stress and even suicide in some instances.

Besides, late introduction to technology, information asymmetry and behavioural traits such as unwillingness to use complex passwords etc makes **the elderly and digitally illiterate sections of the society** are also increasingly vulnerable to cyber threats.

- b) The development of services and products such as social networks, text messengers, gaming sites etc. in the cyberspace affects attitude and behaviour by harbouring flow of both desirable and undesirable things.

Such services have the ability to exert credible influential power on their users. For instance, information provided to individuals over a group on social media is personalized, timely and usually comes from a trusted/known source. People in such a closed group may share similar worldviews and thus the information shared gains legitimacy. Thus, a form of '**Groupthink**' can develop and strongly influence the group's perception of events and opinions (social, political, economic).

The emergence of online communities/groups have led to the normal process of information verification (i.e. identifying reliable sources) being replaced by '**network wisdom**' (i.e. wisdom of the group network whose legitimacy is perceived to be higher). Radical groups and even political parties use their innate flexibility to exploit situations, misrepresent and change perceptions. For instance, circulation of morphed images related to violence against Muslims in Assam in 2014 when in fact there had been no such instance.

The concept of "**Digital bedroom**" has pervaded the mind space of children; wherein childhood is significantly mediated through the internet and social media and leads to increased isolation in real life. Online games are known to normalise violent behaviour and specifically impact behaviour of children.

- c) **Reasonable restrictions that can be applied to make cyberspace more safe and friendly**

- Providing technological options to restrict access to social media sites to vulnerable groups like children.
- Restrictions on broadcasting fake/unverified news especially when law and order situation warrants so.

- Strict compliance of anti-piracy laws and mandatory compliance audit of major social networking sites.
- Cyber authorities should use the same medium to provide correct information and nip rumors in the bud itself.
- Mandatory online content rating system to classify content with regard to suitability for audiences in terms of issues such as sex, violence, substance abuse, profanity, impudence or other types of mature content.

5. *Various studies have found out that cases of depression and mental illness have increased exponentially in the recent past. Also, in the age group of 15-30 years, this problem is further pronounced. Furthermore, the rising trend of suicides in this age group has been attributed to depression.*

Given the situation, answer the following questions:

(a) Present an ethical critique of the prevalent societal attitude towards mental illness.

(b) Given the magnitude of the problem among younger generation/young adults, analyse the role of the following: i. Parenting, ii Social Media, iii. Video Games

Approach:

- Introduce the answer with statistics around mental health problems.
- Discuss the prevalent societal attitudes toward mental health issues and highlight an ethical critique towards it.
- Briefly mention the perceptual shifts needed to tackle these issues.
- Analyse the role of parenting, social media, and video games in causing the mental health issues.
- Conclude briefly.

Answer:

According to WHO, stress and depression cases increased by 18% in the last decade but the expenditure on mental health in India is merely 0.06% of GDP. In the age group of 15-30, increase in mental health issues and eventual suicide rates can be attributed toward cultural changes, and behavioural changes in the wake of increasing urbanisation, employment and emotional uncertainty, social media generated online bullying and peer pressure.

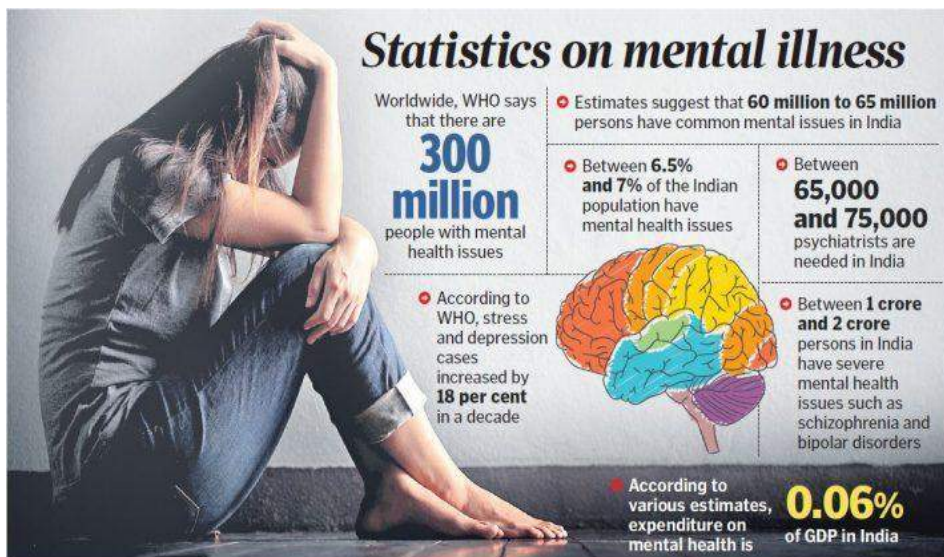
a) Attitudes and beliefs about mental illness can be shaped by multiple factors:

- Knowledge acquired through keenness
- Experience/interaction with someone living with mental illness
- Cultural stereotypes
- Media stories
- Familiarity with institutional practices and past restrictions (e.g., employment restrictions)

Hence, the prevalent societal attitudes towards mental illness vary from empathy and caring to that of neglect, pity and abhorrent treatment like a less-worthy human. **Although the societal attitude towards mental illness though has slowly been evolving, however, following ethical issues continue to remain. For instance:**

- **Trivialisation:** It is a minimising behaviour where an illness is conceptualised as being easier to acquire, suffer with, or treat. Attitudes towards mental health are still not on equal terms with those towards physical health.

- **Stigmatisation:** It is a significant barrier for the early diagnosis and treatment of various mental health conditions. People with mental health problems are less likely to seek help if they feel their condition is stigmatised.
- **Social Labelling:** In a lot of cases depression is stereotyped as a 'first world problem' or the 'problem of luxury' and not an issue in the third world – which is untrue, as large number of students, female, and farmer suicides take place in developing countries like India.



- **Treatment issues and perceptual biases:** Researching the diagnosis and treatment of mental disorders also presents special ethical issues. For instance, while dementia is perceived as quite straightforwardly 'medical', other ailments like personality disorders are sometimes treated and looked at differently, with a stigma.

The society at large, beginning from the family, needs to be open about discussing mental health issues. Consulting psychiatrist or medications should not be considered taboo and immediate assistance and familial support must be provided, for which district administrations can play a big role by creating sensitisation campaigns. Interventions like happiness curriculum as introduced by the Delhi government that included meditation; sports activities; reconnecting with nature should be undertaken so as to hone young minds.

- b) Mental health problem is a scientifically treatable disease. A disease has a cause, an aggravating condition, and finally a treatment. Excessive pressure and competition is a common cause of occurrence and its ignorance, a cause of aggravation. **The role of parenting, social media and video games for the younger generation vis-a-vis mental health problems is as under:**

- **Parenting:** Parental support and a nurturing family are key to addressing mental health issues. The first step begins with a liberal environment in the family where young adults, teenagers, can have free discussions with their parents. Moreover, parents need to also understand that peer pressure, and creating pressure over exam results, performance in competitive exams may impact young minds and increase student suicide rates. Thus, a conducive environment where the younger generation is encouraged to discuss issues should be promoted, over and above dismissing beliefs related to mental health treatments.
- **Social Media:** Social media addiction is one of the key factors responsible in changing our behaviour towards others and alienating ourselves. While social

media is a good platform towards connecting with people, and gather information, over-dependence and over-consumption of it amount to addiction, which influences the cognitive ability of adults, teenagers. Moreover, things such as trolling, cyber bullying, perceptions about others, the need to constantly post or upload – further isolate minds, while also limiting good habits like reading, playing, or spending time with nature.

- Social media behaviour should be restricted and sensitisation campaigns on limiting their usage must be undertaken by all schools, colleges, and work environments.
- **Video Games:** According to the WHO, **video-gaming disorder** is a "pattern of persistent or recurrent gaming behaviour" in which people lose control over their gaming behaviour, resulting in impairments in their family relationships and social lives and has recommended to classify gaming disorder as a separate addiction. The Blue Whale Challenge game posed serious mental health risks in the form of self-harm and attempted suicides.

It is therefore important to not dismiss mental health issues based on ill-conceived notions and understand that stigmatisation will only worsen the silent epidemic of depression. Additionally, ensuring proper implementation of the National Mental Health Policy 2014, which puts renewed focus on depression, suicides and attitudes towards mental health, shall also help in addressing these challenges.

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ETHICS IN ADMINISTRATION- SOURCES, APTITUDE AND FOUNDATIONAL VALUES

Student Notes:

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Note- This document shall cover the following topics from the UPSC syllabus-

- Ethics in Public Administration; Public/Civil Service Values; Laws, Rules, Regulations and Conscience as Sources of Ethical Guidance
- Aptitude and Foundational Values for Civil Service, Integrity, Impartiality and Non-partisanship, Objectivity, Dedication to Public Service, Empathy, Tolerance and Compassion towards the weaker sections.

1. Introduction

Professional ethics of a public administrator encompasses the standards of behaviour and conduct that are crucial for the performance of his/her public duties. It includes ideas and actions to make things right and a behaviour that reflects a sense of public administration. Ethics in public administration traditionally has been divided into two schools, the normative and the structural.

- **Normative perspective:** Drawing upon organizational development, examines how ethical values are inculcated and put into operation in organizations.
- **Structural approach:** It probes formal-legal arrangements, primarily regulatory and legal prescriptions and prohibitions through which governments seek to channel and control administrators' behavior.

The object of ethics in public administration is **to instill a sense of professional morality** in the administrator to perform his duty in a manner that conforms to the highest ethical standards.

2. Source of Ethical guidance in Administration

There are various sources which show us the light in terms of what constitutes ethics in administration. Firstly, we shall discuss some contributions from India and West. After that, we see how laws, rules, regulations and lastly conscience can act as a source of ethical guidance.

2.1 Indian sources of ethical guidance

There are various contributions from India, where one can draw important facets for ethical guidance in administration such as-

- **Concept of Dharma:** The idea of the State was based on dharma as it laid emphasis on duty and righteousness.
 - The main purpose of the State is welfare of the nation, protection for the vulnerable sections of the society.
 - Indian theorists stressed upon the prime necessity for the ruler and his ministers of **conquering personal desires** for pleasure and power.
 - The **Mahabharata** says **self-discipline** and the conquest of the self is greatest of dharma.
 - Rather, the state should aspire to achieve the following-
 - **Prabhava** — for promoting advancement and growth of all beings;
 - **Sarankshan** — for maintaining and giving security to all beings;
 - **Ahimsa** — Freedom from violence.
- **Kautilya-** In his treatise on statecraft i.e. **Arthashastra**, he has discussed various aspects of ethical governance and elaborated on the roles and duty of every stakeholder in the state. Some these can be seen as-
 - **Code of conduct-** It prescribes a detailed code of conduct for the king.
 - **Traits of an ideal king-** The king should have self-control, open mindedness and seeks advice from his council of ministers.
 - He should stay ever active in promoting the security and welfare of the people.
 - He ensures the observance of dharma by the people, by authority and by example.

Student Notes:

- He improves his own discipline by continuing his learning in all branches of knowledge and endears himself to his people by enriching them and doing good to them
- **Importance of civil service-** in providing good administration. Only persons with unimpeachable character, possessing highest personal qualities of leadership, intellect and energy, will seek service with the king.
- **Equity in Taxation:** While emphasising need for wealth collection, Kautilya underlines the principle of equity in taxation.
- **Mahatma Gandhi-** Mahatma Gandhi's philosophy, applied in its true spirit, provides answers to the problem of social and economic crisis which India as well as the entire global community is currently facing. Some critical guidance can also be taken from his principles such as-
 - **Decentralized Governance/Self Governance-** Gandhi believed in a decentralized development model as it helps consequences of development reach everyone and **promotes equality and social harmony**
 - **Social Control of Business-** Gandhi was not opposed to private ownership of industries and business, he advocated social control of business so that profit generated are equitably distributed and prevents concentration of wealth in the hands of few people, which leads to exploitation
 - **Rural-centric governance:** Agriculture and small-scale industries being the prime employer in the rural area should be focused in development agendas.

2.2. Western sources of ethical guidance

Some important contributions were made by western thinkers and theories, such as-

- **Virtue Ethics-** It talks about external and internal goods.
 - The creation of internal good by virtue ethics may at time hinder the development of external goods. For example, cultivation of justice and fairness within the institutions may harm the private interests of the stakeholders.
 - The external good here can be riches, power or fame. In such circumstances, political rulers and others would punish public administrators for acting with virtue.
 - Virtue Ethics, however has internal rewards, internal good such as contentment, happiness, job satisfaction etc that no one can take away from the public administrator.
- **Paul Appleby's Idea of Democratic Morality-** As per him, a free state, where the various private interest think only about maximizing their own good and refuse to consider common good, is likely to self-destruct over time unless the nation's leaders and the bureaucracy act to focus public policy on the public interest.
 - For a free state to remain a free state, virtuous public servants, who shared common social ethics of concern for the public interest, were essential.
 - To avoid the moral corruption of the society out of inherent conflicts of interests, public servants must maintain democratic morality.
- **Weber's Idea of Bureaucratic Morality-** As per him, bureaucracy should be a goal-oriented institution designed according to a rational principle. The bureaucrats should be guided by explicit rules and responsibilities which should override moral and ethical norms of personal conscience.
- **United Nations Code of Conduct for Public Officials** categorically states that a public office is 'a position of trust, implying a duty to act in public interest' and 'public officials shall ensure that they perform their duties and functions efficiently, effectively and with integrity, in accordance with laws and administrative policies.

2.3. Laws, Rules, Regulations as sources of ethical guidance

Law as used in ethics is different from the notion of law in physics, which implies a common or constant way of action. In ethics, **law has a moral connotation**. For instance, it has been

defined as "**an ordinance of reason for the common good, promulgated by him who has care of the community.**" (St. Thomas Aquinas).

Laws in modern context are synonymous with positive human laws. Laws are those basic ethical standards that the society expects everyone to comply to. There are sanctions against their violation, which are generally in the form of duly enforceable punishments.

Purpose of a law is to promote the common good and societal welfare as well as protect individual rights.

Difference between law and regulation or ordinary rule:

- Although law is an ordinance or a rule resulting from human reason, it is not the same as a regulation or ordinary rule. Regulations and rules often help clarify the intent of laws in more specific terms.
- Unlike laws, individuals, organizations or groups can make rules. It must be clarified again that rules are made under laws. Rules need not be for the common good; they can be for the private good and they usually bind persons wherever they go. But rules, too, must not violate natural law. Rules or regulations should declare or clarify civil laws, just as civil laws declare or clarify natural law. Rules and regulations can be extra guidance to public administrators as to what is right and wrong.

2.3.1. How Laws, Rules and Regulation are a source of ethical guidance:

- **Regulate discretionary use** of resources to fulfill personal needs.
- **Laws command both action and inaction:** Some laws lay down what should not be done, for e.g. murder, whereas others lay down what should be done, for e.g. registration of motor vehicles.
- **Help clarify the values** to be used and procedure to be followed.
- Modern laws are founded on the **libertarian principles** and therefore foster, liberty, equity, equality and social justice.
- Rules and regulation for example **communitarian laws have legal sanction** and therefore are embodiment of social values which deserves preservation.

2.3.2. Limitations of Laws, Rules and Regulations:

- **Teleology** says that we do not need standards to govern human behavior; the human intellect alone is capable of knowing and judging what is right and what is wrong.
- There are **so many** laws, rules and regulations that govern human behavior that it is virtually impossible for any human being **to know all of them**.
 - Information, reflection, judgment, decision and action are the criteria for determining morality. This approach makes sense and is a valid response to the fact that knowledge of all laws and rules is virtually impossible.
- The presumption is that rule makers have not violated natural law or civil laws, but sometimes they circumvent what the civil law clearly states.
 - While a superior can punish a subordinate for violating the rules, if the rule is contrary to civil or natural law, the violator may have acted ethically. As with laws, a person has no obligation to obey an immoral rule

While deontologists are content with focusing on laws and rules as the principal guidance for public administrators on morality, even they recognize that laws and regulations are insufficient. Without conscience to apply those laws and rules to particular actions, public administrators are missing a critical element. So, now we examine conscience as a mechanism for deciding what is right and what is wrong.

When is a law doubtful?

There are **four principles** that apply and the actor is at liberty to follow the principle that appeals most.

- A law is doubtful and does not bind when there is more probable evidence on the side of liberty than against it. This is **probabilism**. For example, a person in doubt about what day it is observes four calendars. Three indicate it is one day and the fourth indicates that it is a different day. The person may follow the date indicated by or deduced from the three calendars if that ensures more liberty.
- A **second version of probabilism** states that the person may follow an option in favor of liberty, provided the evidence in favor of liberty is solidly probable, even though the evidence against liberty is more probable. In the same example, the person may follow the time indicated by the fourth calendar even though the other three numerically appear to offer more probable evidence.
- Another version of **probabilism, equiprobabilism** states that the person may follow an opinion in favor of liberty if the evidence on both sides is equally balanced. In the above example, if two calendars show that it is one day and the other two indicate that it is a different day, the person may follow either option.
- **Compensationalism** says that the person should consider the evidence not only favoring and opposing liberty but also the gravity of the law, the reason for acting against the law, the inconvenience arising from following the strict interpretation of the law and the justness of the cause for selecting the option offering most liberty.

Some laws may be doubtful, i.e. not clearly formulated with scope of misinterpretation, and provide options for people. These serve as additional guidelines to the principles of conscience.

2.3.3. Constitution of India as the supreme law of the land

The Preamble to the Indian Constitution promises securing to all citizens: **Justice, social, economic, and political; Liberty of thought, expression and belief, faith and worship; Equality of status and opportunity; and promote Fraternity, assuring dignity of the individual.**

These ideals can be secured only if holders of public office, both the elected representatives as well as public servants, entrusted with the task of running the government have ethical moorings.

Constitutional Morality

The term 'constitutional morality' has often been invoked by Supreme court in India for striking down laws which could be termed as manifestations of popular morality. But this term is not found in our Constitution. Nevertheless, we find mention of the word 'morality' in the Indian constitution at various places (Article 19, 25 and 26). Dr. B R Ambedkar used 'Constitutional Morality' multiple times in 'Parliamentary debates'.

Constitutional morality is the morality of the constitution. It is the substantive content of a constitution in the form of ethical ideas that underlies formal provisions. To be governed by constitutional morality for a society is to be guided by ethical ideas carried by constitution e.g. justice, liberty, equality and fraternity can be taken as element of our modern constitutional morality.

2.4. Conscience as a source of ethical guidance

Conscience is a **special act of the mind** that comes into being when the intellect passes judgment on the goodness or badness of a particular act. It is a practical judgment on particular, concrete, human actions.

Deontological perspective: Conscience is a judgment—an act of the intellect. It is not a feeling or an emotion, but, rather, an intellectual decision. It is also a decision with a view to a particular action. Conscience can make a practical judgment on the morality of either a past

action or an action about to occur.

Teleological viewpoint: Conscience is quite similar to completion of the **ego identity**, whereby Every ego is in some sense a **code of ethics**. If **ego and conscience** are similar or identical, people have the capacity of determining the meaning of a particular action, past or present, and at the same time assess the morality of that action.

Difference between Conscience and Law:

- While law focuses on principles of morality outside human beings, conscience is something within human beings that determines the morality of human actions
- Law states a general rule concerning actions; conscience lays down a practical rule for specific action. Conscience applies the law or rule to specific actions, therefore it is wider than law. Some have said that conscience is to law as a brush is to paint.



Conscience and Inner Voice

▶▶ There was a man who thought that if he stole a little wheat from different farms, the other farmers would not notice it while he would have big pile of wheat for himself. One night he went to the farms and asked his daughter to stand guard while he went for stealing. As he was stealing from the first farm, his daughter shouted: **"dad! Someone is watching you."**

▶ He came running out, but saw no one was there. He then went the second farm to steal some more wheat. Again, the daughter called, "Dad! Someone is watching you." He came out running but again he saw no one there. Then he went to the third farm. For the third time, his daughter cried, "Dad! Someone is watching you."

▶ As before, he came running back but saw no one again. This time he got angry. "Why do you keep shouting that someone is watching me, when there is no one here?" His daughter replied, **"Dad, there is someone who is always watching you from above and that is God."**

▶▶ God is often **another name for one's conscience**. It is one's only guardian in moments of moral crisis. It is the **inner voice, which guides us in the right direction**. To the corrupt and the dishonest, a sleepy conscience is a source of great happiness and comfort. People who betray others actually betray their conscience first. When a person betrays his conscience, his conscience may be silent but it is never secure.

2.4.1. Types of Conscience

Human beings can have different kinds of conscience.

- (a) **True conscience:** It means that **judgment is in accordance with fact**. The judgment is a correct or accurate application of law to the action.

Student Notes:

- (b) **Erroneous Conscience:** when the judgment is false—the practical judgment incorrectly applies law to the action. The erroneous judgment can be vincibly or invincibly false. (Vincibly false means that it can be corrected i.e. it is not invincible)
- (c) **Certain Conscience:** A conscience is certain when the judgment on the morality of an action is without prudent fear of error. Prudent fear of error does not involve metaphysical certainty, but generally any normal person has no doubts about the judgment. That certainty can apply to both a correct and an erroneous conscience.
- (d) **Doubtful Conscience:** Conscience is doubtful when the judgment does not exclude all prudent fear of error. The person is aware of some doubts about the practical judgment to be made.
- (e) **Both Doubtful and Erroneous-** A conscience can be both doubtful and erroneous at the same time. A conscience is probable when the judgment "almost" excludes all prudent fear of error. A normal person is almost certain the judgment is correct, even though it may be erroneous.

2.4.2. Ethical Principles Governing Conscience

The discussion of conscience leads to the following principles governing conscience:

- A person must **take reasonable care to ensure a correct conscience**.
- A person is **bound to follow a certain conscience even if that conscience is false**. For example, if I am certain that it is morally right to lie to save another's life, I am bound to lie.
- It is **never ethically correct to act on a doubtful conscience**. Vincible ignorance does not excuse—the person must make some effort to resolve the doubt. If efforts to resolve the doubt fail, the **principle lex dubia non obligat ("a doubtful law does not bind")** comes into play.

2.4.3. Are public administrators bound to educate their consciences according to the responsibilities they have?

If public managers must not only do things right but also do what is right, they have an obligation to educate their consciences according to their state in life. This includes not only management theory and practice but also ethical theory and practice.

- If managers do not do both, they run the risk of not only being outdated but also of neglecting true managerial responsibility. If managers are educators and teachers, surely they must learn both aspects of the job if they are to fulfill their role of teaching and coaching others.
- In educating and updating the conscience, there are two extremes to be avoided. One is not caring about conscience at all—making no effort to learn what is right or what is wrong, or perhaps showing no interest in right and wrong. Some public managers exhibit this characteristic.
- The other extreme is the person unable to distinguish serious actions from those that are not, whether getting things done right or doing the right thing. There are some public managers who fit this description. Neither extreme is in accord with the concept of conscience, which involves a practical judgment on the morality of human action.

2.4.4 Crisis of Conscience:

When conscience fails to provide moral guidance to an individual in any specific situation as a result of a particular experience, it can be called as Crisis of Conscience. Individuals **loses the ability to determine right and wrong**.

It quite happens in a situation which is ambiguous in terms of values involved and its consequences. As a result, individual **cannot resolve an ethical dilemma using his moral sense**.

For instance, an IPS officer is given the duty to regulate the peaceful protest by farmers against some corporate bodies. Things are under control as situation is clearly understood. Now

suddenly officer is asked to resort strict measures irrespective of nature of protest. Officer now faces the ethical dilemma as situation is now ambiguous both in terms of the motive and the consequence of actions. This can create crisis of conscience for an IPS officer as he/she could not solely rely on his sense of right/wrong.

It is a situation in which someone feels worried or uncomfortable because they have done something which they think is wrong or immoral.

3. Need of Ethics for Public Administrators

Compared to the political, legal, technical and financial dimensions of public administration, the ethical dimension has been sorely neglected in Indian Administration. Further, much of the recent public and media concern about public service ethics has centered on conflict of interests and, to a lesser extent, on issues of political partisanship, public comment and confidentiality.

The need of ethics for public administrators can be highlighted in the following points-

- **Benevolence to all:** Our constitution provides equality and equity as fundamental virtues to be followed by administrators. This ensures that vulnerable get the protection and might shall not be right. Ethical administrators are important to achieve these goals.
- **To stay responsive and responsible-** Ethics in public administration will help bureaucrats use power in a responsive and responsible manner. This will improve sensitivity of the administration. It will eventually increase/enhance the public trust in the administration.
- **To resolve dilemmas:** which relate less to the use of public office for private, personal, or partisan gain and more to ethical and value conflicts and dilemmas that arise in the performance of administrative duties.
- **To fight against populist and majoritarian tendencies:** Public administrator must have the courage to face down the expert opinion that the expert cannot defend rigorously, and sometimes resist that clamoring public opinion, powerful interest groups or the media. This courage is the subject of Ethics in Public administration.
- **To be optimistic:** Public administrator must be able to face the ambiguity and the paradoxical nature of ethics without being immobilized by them. They must be purposive in their behavior and rather than reactive and most important, they must remain ever hopeful in their outlook.
- **Recognition of paradox of procedures:** Those procedures which facilitate deliberations, fairness, accountability, openness, equity and greater depth of thoughtful analysis to a public decision are also at times the enemy of progress and dispatch. For example Environment Impact Assessment are seen as just deliberation by the environmentalists but are considered the enemy of progress and the means to slow proper actions of the industrialist. **Ethics help bureaucrats identify such paradoxes.** Public servant who cannot recognize the paradoxes of procedures will be trapped by them

4. Determinants of Ethics in Public Administration

The major determinants of administrative conduct in the public sector include:

- 1) **Political construct:** The public administrators are a subset of the political construct. They contribute at both, the executive level and at the policy formulation level. Political ethics therefore is intrinsically woven with the bureaucratic or administrative ethics. For example Criminalization of politics adversely impacts the administrative behavior.
- 2) **Legal Rational Framework:** Weber gave a legal rational framework to the bureaucracy. The role of hierarchy is important in fixing the accountability, impersonal order was important for the bureaucrats to do their work without any fear and favor. Rules and regulations to regulate administrative behavior and to impart, rationality, impartiality, honesty and integrity in the administration.

- 3) **Public servant's Intention:** Public servants' behavior is the key to the ethical nature of administration. No matter how good the intentions of the policy makers be, if the mechanism to implement it is corrupt, politicized, partisan, prejudiced or stereotypical in nature, **the intention will cease to matter**. For example, Using Aadhar for direct benefit transfer is an innovative idea, however not allowing a needy person ration without Aadhar will jeopardize the whole effort and bureaucracy will be termed as insensitive.
- 4) **Citizenry and Civil society:** Citizenry hold administration accountable for its acts of omission and commission. It provides the much-needed feedback which helps in evolution of bureaucratic and political response. Role of civil society is to scrutinize the government and its actions and inactions plus sensitize the citizenry about the same. It helps in Ethical decision making.

The minor and discreet elements of administrative conduct are guided by-

- **Individual attributes** of public/civil servants which guide ethical decision-making skills, mental attitude, virtues, and professional values.
- **Organizational structure** which is explained by **clear accountability, collaborative arrangements, dissent channels, and participation procedures**.
- **Organizational culture** includes artefacts, beliefs and values, and assumptions. Ethical behaviour is encouraged when organizations have a climate **where personal standards and employee education are emphasized**, where supervisors stress the truth, and where employees regularly come together to discuss ethical problems.
- **Leadership** is important in the **development, maintenance, and adaptation of organizational culture**.
- **Societal expectation** includes public participation, laws, and policies.

OECD has developed an **ethical infrastructure** (refer the infographic below) which can be taken as a framework to include all the above determinants.



5. Concept of Public Service

Public service is a **public trust**. Public service according to the **modern definition** goes **beyond the administrative functions of the governments and incorporates non-governmental organization and institutions as well**.

Citizens are the source of sovereignty and importantly, are taxpayers demanding accountability. They should be treated as such and **not merely as consumers or customers** in the marketplace. Markets are not alternatives to public service. **Rather, sound governance, public service, and responsible citizenship are sine qua non of a business-friendly environment, the smooth operation of markets, effective democracy, and social peace.**

Primary responsibility of civil servants is enforcement of law, provision for various public services such as food, health, education, relief during disasters, etc. Also, they are responsible for settlement of disputes and enforcement of contractual obligations. These duties boil down to exercise of power over other citizens, conferred under the statutes, which civil servants exercise in their own right under the law.

They also implement programmes and policies of the government. This requires a **certain level of character, a sense of justice and fairplay, transparency and accountability**. To be able to deliver administrative justice, capacity for critical thinking and fairness and respect for procedures are essential qualities which must be cultivated for efficient delivery of all type of public services.

Public service is concerned with **provisioning for the needs of public** as per the expectations of the public. It represents one of the oldest, if not the noblest, most widespread and celebrated values in the history of humankind. In fact, **civilization and public service and administration are intimately related**, one reinforcing and contributing to the other.

In traditional societies of the East and West, little distinction was made between voluntary service for the good of the community and remunerated work performed on a professional contractual basis. However, **with development of the concept of State, a structured civil service has been central to its (State's) idea**. From the times of Mauryan Kingdom, we have had an elaborate public service performing public duties.

5.1. Measuring Publicness of a Service

The expectations of public i.e. ordinary citizens from the government have been changing. Moreover, many private entities are providing services which were traditionally considered as 'public'. According to **M. Shamsul Haque of the University of Singapore**, following are the major dimensions along which 'Publicness' of a service can be measured-

- **The extent of its distinction from the private sector:** Haque identifies impartiality, openness, equality and representation as being distinctly public characteristics.
- **The scope and composition of service recipients:** the greater the number and broader the scope of service recipients, Haque writes, the higher the degree of publicness, and he refers to a 'shared and universally accessible domain involving the interest of all citizens'.
- **The magnitude and intensity of its socioeconomic role:** the wider a service's societal impact, the greater the degree of its publicness.
- **The degree of its public accountability:** this goes beyond the existence of institutions to the extent to which those institutions are influenced by particular classes or sections of society.
- **The level of public trust:** that is, how much people trust the credibility, leadership or responsiveness of a service.

5.2. Principles Guiding Public Service

Today, public sector is employing number of ways of private sector to enhance their efficiency. Does it mean that the spirit behind the public service may get weakened? In this regard, it is essential that the **following principles should guide all the civil service institutions** and their personnel:

Principles Guiding Public Service



Ethical Education

Ethical education is must and should be a part of all the educational systems at all levels. However, education and training in administrative ethics are most essential for public service careers anywhere in the world. They must include both personal and administrative ethics.

Preservation of Professional and Personal Integrity

Professional values should prevail over questionable organizational or personal orders of superiors. This requires self-regulation, knowledge, self-control, a degree of autonomy and personal independence, and subordination of private interests to the public interest and public trust.

Prudence

Prudence requires self-controlled, discretionary decisions based on knowledge, expertise, and ethical judgement on particular situations.

Public spirit

Private interests should be subordinate to public, community interests. In making decisions or acting as an administrator, one must think of the public trust and citizens' interests first, and then think of oneself. Common good should be promoted at all times to build harmonious communities and curb social ills.

Code of ethics

Codes of ethics (CoE) in public administration are written and unwritten collections or systems of laws, rules, regulations, and norms that guide public service conduct.

It is often argued that a CoE would moralize and then codify everything, which is undesirable as it would create a dysfunctional bureaucracy. However, it is that very lack of clarity and rigidity which has created many loopholes to be exploited. A codified CoE would add objectivity.

A sense of Total Quality Management (TQM)

The idea of doing things right the first time should be promoted to prevent the costly error of duplicating or repeating poor quality work. A sense of motivation for public interest and self-actualization helps in internalizing the work ethics.

There are values which are supposed to take care in public life and administration and that is why correct and appropriate aptitude and foundational values are required the self, according to those values. In every administration, **aptitude will play a very important role.**

6. Aptitude

6.1. Definition and Explanation:

Our experiences shape our thinking in unique ways and this subconscious thinking shapes our preferences, ultimately influencing (but not determining) how we will respond to an event in future. Innumerable characteristics influence a person's behavior. The concept of aptitude is applied to those which are considered as useful for particular task.

In a simpler way, **Aptitude** is the natural ability to do something, a natural tendency. 'Natural' here refers more towards the sum total of experiences that a person has had rather than simply meaning 'by-birth'. A person with an aptitude for boxing, if given necessary training, **can develop** the ability to a great extent. On the other hand, if a person has no aptitude for boxing, no amount of training can bring about any appreciable change in his performance.

Thus, **Aptitude** is the combination of abilities and other characteristics, whether native or acquired, known to be indicative of an individual's ability to develop proficiency in certain particular area.

Aptitude is different from skill

Aptitude is a group of characteristics deemed to be symptomatic of an individual's ability to acquire proficiency in a given area. It thus has a futuristic reference. **Skill**, on the other hand, is acquired through training. Aptitude is not skill. Skill is acquired and constantly upgraded through training and learning. Aptitude is what is there but could be nurtured.



To become an officer in defense or police services, you need to have both physical and mental aptitude; for being a good sportsman one needs aptitude of psycho-motor coordination. Problem arises when one is in a profession not suited by his/her aptitude. A person becoming a cricketer because his father was a great may not be able to deliver best results unless he himself has the aptitude required for the sport. Remember carefully – aptitude looks at the future potential. It, however, is the **present condition – a pattern of traits which are there presently and are deemed to be indicative of potentialities.**

Aptitude is generally categorized as **physical** or **mental**.

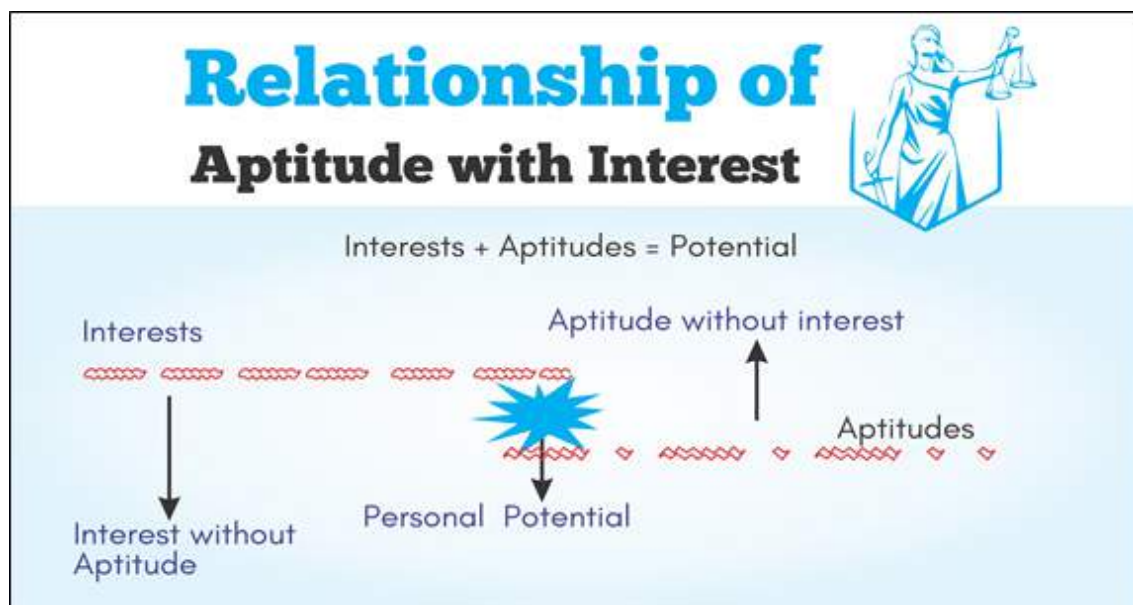
- **Physical aptitude** means the physical characteristics for performing some task successfully. For example, armed forces require a specific set physical features, like height, strength etc.
- **Mental aptitude** means certain specific set of mental qualities needed to perform some tasks successfully. This is further characterized as general mental ability and value orientation. The former implies an ability to think rationally, while the latter also includes certain value-based behavior, like the one guided by empathy, compassion, integrity, accountability, responsibility etc.

This difference can be understood with some examples. For example, a banker should have the ability to deal in numbers, while an effective leader is one who is empathetic and honest. A thief, on the other hand, probably needs to be a good liar.

6.2. Relationship of Aptitude with other qualities

6.2.1. Aptitude and Interest

People have interests in many things, but this does not imply they have the aptitude for that. One may like cricket very much – but playing it on field is much different than watching it on television. One may have the aptitude for good commentary or writing skills and then one may choose a profession where his/her interests and aptitude match- such as becoming a commentator or a sports journalist.



6.2.2. Aptitude & Ability

Aptitude is often considered to represent specific subsets of mental ability which provides useful information on an individual's potential, particularly with regards to education and employment. **Ability** is much closer to intelligence. It is concerned with present. It is the combination of skills, habits and powers that an individual now has which enable him to do something.

Aptitude indicates what an individual will be able to learn/do and ability presents evidence of what the individual is able to do now (or in future without additional training). From a practical standpoint, it is impossible to measure aptitude without the degree of training which an individual has already had. It is assumed that individuals have been exposed to certain experiences which enhance their aptitude when it is measured.

For **example**, the **CSAT (Civil Services Aptitude Test)** exam which is meant to test the aptitude of a candidate for Civil Services will invariably show better scores for candidates who have practiced rather than those who have not. It tests aptitude by subjecting the candidates to pressure situation (solving many questions in limited time), which they are likely to experience once they become Civil Servants. Moreover, a person who has practiced the tests demonstrates readiness and labour, which is again a trait desirable in a Civil Servant. It therefore, although intended to measure aptitude, also measures ability.

Thus, according to some psychologists, **ability** includes aptitude and achievement. Ability refers to what a person can do today. It is the power, at a given time, to perform.

6.2.3. Aptitude and Intelligence

Aptitude is innate potential to do certain task in future, provided appropriate training is provided to the person. **Intelligence's** key component is the ability to think rationally, act purposefully and deal effectively in one's present environment.

Intelligence has a **wider** scope as in it refers to general mental ability. **Aptitude** on the other hand has narrow scope- it is specific to work. It breaks down intelligence into several characteristics, referring to a specific ability of a person to do a task in future. Thus, aptitude is not same as intelligence. Two people with same intelligence quotient (IQ) may have different aptitudes e.g. one to become scientist and another novelist.

Difference between Attitude and Aptitude 	
Attitude 	Aptitude 
Attitude is 'a relatively enduring organization of beliefs, feelings, and behavioural tendencies towards socially significant objects, groups, events or symbols.'	Aptitude is the combination of abilities and other characteristics, innate or acquired, which is indicative of an individual's ability to develop proficiency in a particular area.
It is associated with character or virtues i.e. it depends upon the underlying values of a person. It can be negative, positive or neutral.	It is associated with competence or talent. For e.g. quantitative aptitude, verbal aptitude, reasoning aptitude, etc.
It is regarded as the predictor of one's behaviour.	It is the capacity or ability to acquire skill or knowledge, on the basis of which future performances can be predicted.
It is largely a mental aspect.	It involves both physical and mental aspects.
Attitude is hard to change. It requires personal experience, cognitive dissonance, exposure etc. to change the attitude of a person.	Aptitude can be changed relatively easily through learning, training and skill enhancement

Example: In public service, aptitude may help a civil servant achieve career positions. For instance, someone working very hard on sanitation best practices, who has the natural aptitude to understanding issues of sanitation may get a posting with the central government, purely on the basis of their aptitude and acquired experience.

Attitude in times of say disaster management exercises being undertaken in a district, may determine the leadership abilities of an individual facilitating stress management and overall composure of people in times of distress.

6.2.5. Aptitude and Values

Value denotes the degree of importance of some thing or action, with the aim of determining what actions are best to do or what way is best to live. Though values may be "positive" or "negative", like empathy towards weaker section is positive while regarding one's own caste to be highest is negative. But generally, they are taken for positive and desirable values.

Values tend to influence attitudes and behavior. Types of values include ethical/moral values, doctrinal/ideological (religious, political) values, social values, and aesthetic values. In the next section we will discuss "Foundational Values for Civil Services."

Relationship between Aptitude and values:

From the point of view of ethics, **aptitude** concretely exist in the form of desired values in a person i.e. what is important in person's behaviour with respect to specific requirement e.g. aptitude for civil service can be measured in terms of ability to perform, deliver, empathize and exhibit integrity, emotional intelligence in performance of public services.

6.2.6. Aptitude, Proficiency & Achievement

Proficiency is the ability to perform an activity with ease and precision. **Achievement** looks at the past - what has been done, accomplished

6.3. Aptitude for Civil Services

While Aptitude tells us about the concrete values that can be realized (as we have discussed in above section such as intellectual aptitude via CSAT etc), there are certain ideal values that underlies civil service. Civil servants **need to demonstrate moral aptitude for them**.

Moral aptitude for ethical behaviour is the precondition for a public functionary to understand the normative requirement of the job.

It helps to understand the role, its associated responsibilities and institutional environment easily e.g. an individual who is honest, rational and believes in fairness of conduct will more tended to understand the normative goals of integrity and accountability in the service.

Following section will deal with foundational values for civil services to understand the same.



Aptitude for

Civil Services

Some experts believe that civil servants must have three kinds of aptitude: **Intellectual, Emotional, and Moral**. These aptitudes make the civil servant capable of acquiring professional values.



Intellectual Aptitude would ensure that respective civil servant would think rationally, act purposely and deal effectively with his environment. Thus, it can be regarded as **means oriented aptitude**.



Emotional Aptitude would ensure his effective conduct with colleagues, subordinate and public at large. Thus, it may be regarded as the **behavior oriented aptitude**.



Moral Aptitude includes the desirable values, like justice, empathy, compassion etc. This is also called as **Foundational Values for Civil Services** and would ensure that civil servants perform their duties not only efficiently but also effectively, upholding public interest. Thus, it may be regarded as **end-oriented aptitude**.

7. Foundational Values for Civil Services

7.1. Definition and explanation

Value are a set of **standards**, on the basis of which, we judge things as right or wrong. There are many values, and these may be arranged in **hierarchy**. For example, Gandhi regarded truth as the highest value followed by non-violence.

Civil service values are **contextual to a culture**. Democratic cultures, for example, are based on the doctrine of public trust- that the sovereign power lies with the public, who has entrusted it to the State, which must exercise that power through officials (appointed and elected) in the best interest of the public.

Values are also **contextual to time**, i.e. they evolve. For example, civil services have now started focusing on improving business environment, which may not have been the case earlier.

7.2. Need of foundational values

- **To Uphold the Public Interest:** Civil servants hold the public positions with wide-ranging powers. They come with the special obligations because as they are responsible for managing resources entrusted to them by the nation. They provide and deliver services to the public and take important decisions that affect all aspects of a nation's life. Consequently, the public has a right to expect that the civil service **functions fairly, impartially and efficiently**. It is essential that the people must be able to **trust** and have **confidence in the integrity of the civil service** decision-making process.
- **To stand up to the expectations reposed in the office:** It ensures that the decisions and actions of civil servants **reflect the policies of the government of the day** and the governance standards. The expectation that the civil servants should maintain the standards of professionalism, responsiveness and impartiality while serving successive political governments is a key element of the way our democratic polity functions.
- **To uphold the constitution, its laws and underlying values:** To fulfill this, Civil Servants must uphold the constitution, its laws and underlying values. To fulfill this, civil servants must inculcate such values to guide their conduct. Particularly in the situations where **discretionary decisions** have to be taken, it is expected that civil servants should be guided by those values. In absence of such values, there are chances of corruption as well as possibilities of abuse of power. These concerns are also raised by various Judicial pronouncements as in **Vineet Narain case by Justice J.S Verma**.

7.3. Types of Foundational Values

Foundational values for civil services may be categorized into two main groups:

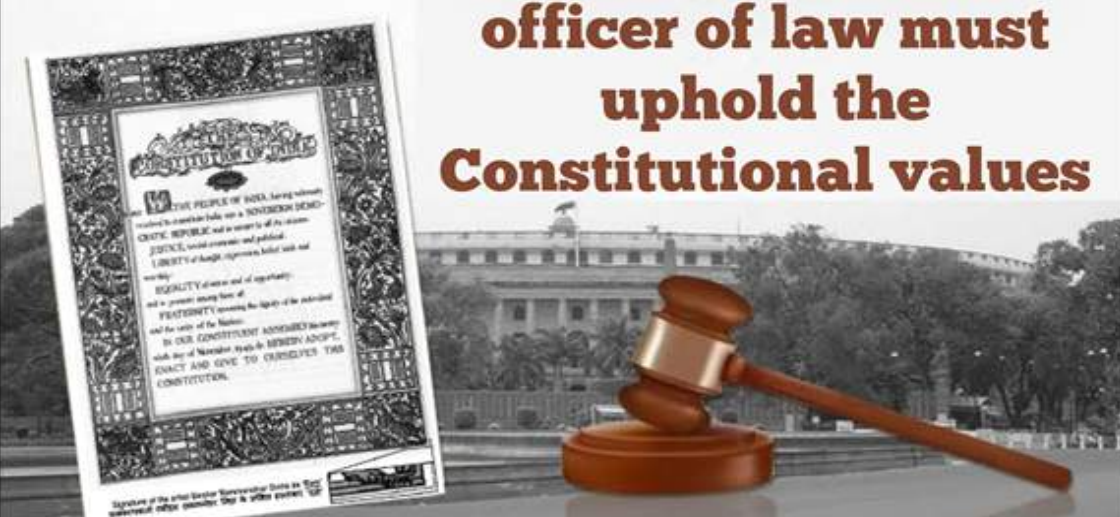
- **End-oriented values:** These are concerned with the goals which civil servants should aim to achieve while performing their duties. They relate to the end product, and may best be visualized as those covered by Directive Principles of State Policy, Fundamental Rights etc.
- **Means-oriented values:** They are concerned with the ways in which civil servants behave or act while performing their duty. They relate to the means and include such values as transparency, responsiveness, efficiency etc.

7.4. Major Foundational Values for Civil Services

In India, the current sets of ethical norms are –

- the Conduct Rules, contained in the Central Services (Conduct) Rules, 1964 and
- analogous rules applicable to members of the All India Services or employees of various State Governments.

Civil servant- an officer of law must uphold the Constitutional values



A civil servant is expected to uphold these values while discharging his official duties. They are:

- ◆ **Sovereignty:** It essentially means the people of country are sovereign & elect their representatives to govern them in the best possible manner.
- ◆ **Socialism:** It means government controlling the means of production in an economy with the goal of developing an equal society.
- ◆ **Secularism:** State should not discriminate negatively or positively towards any religion
- ◆ **Democracy:** Rule by people
- ◆ **Republic:** It means that supreme power lies in the body of citizens. Head of the state is elected & not a hereditary institution like the monarchy.
- ◆ **Justice:** Social, economic & political. Which essentially means the society progress together without any sections left unattended to & rule of law prevail throughout the country.
- ◆ **Equality:** of status & opportunity seeks to empower the marginalized sections of the society with certain affirmative action.
- ◆ **Fraternity:** means common brotherhood of all Indians, assuring the dignity of all individuals.

The code of behaviour as enunciated in the Conduct Rules, while containing some general norms like 'maintaining integrity and absolute devotion to duty' and not indulging in 'conduct unbecoming of a government servant' is generally directed towards cataloguing specific activities deemed undesirable for government servants. These conduct rules do not constitute a code of ethics. The **Draft Public Services Bill, 2007**, proposed a necessary first step in evolving a code of ethics. It states **Values of Public Service** as a set of values which will guide the Public Servants in the discharge of their functions. These are:

- Patriotism and upholding national interest
- Allegiance to the Constitution and the law of the nation
- Objectivity, impartiality, honesty, diligence, courtesy and transparency
- Maintain absolute integrity

Despite not having a specific code of ethics in public service, there are various sources which contain- explicitly or implicitly, the values expected in a civil servant. The foremost source is the **Constitution of India**

A general overview of the Civil Service Values

2nd ARC in its report '**Ethics in Governance**' has elaborated on values expected in Civil Servants. It also makes references to Civil Services in other countries like the U.K. and Australia.

One of the most comprehensive statements of what constitutes ethical standards for holders of public office came from the Committee on Standards in Public Life in the United Kingdom, popularly known as the **Nolan Committee**, which outlined the following seven principles of public life: **Selflessness, Integrity, Objectivity, Accountability, Openness, Honesty, and Leadership**.

Note- For further details, please refer the document on Probity in Governance.

7.4.1. Integrity

The word 'Integrity' originates from the word **integer** (Latin). It means being whole or complete. In ethics, being a person with integrity means having the quality of being honest and having strong moral principles that one refuses to change. It means having strong moral standards and the determination not to lower them.

Integrity is regarded as

- a concept of **consistency** of actions, values, methods, measures, principles, expectations, and outcomes.
- the honesty and truthfulness or accuracy of one's actions.
- the **integration of ideals, conviction, standards, belief and behavior**.

Integrity in essence means **adherence to principles**. It is a three-step process:

- choosing the right course of conduct;
- acting consistently with the choice—even when it is inconvenient or unprofitable to do so;
- openly declaring where one stands.

All three are equally important – for **example** a thief can be consistent in his thoughts and actions but has low moral standards and has not chosen the right course of action. It doesn't matter whether he himself believes it to be correct or not. Has he done the hard work of ascertaining what is right or wrong? No. In any case, he fails the test of trustworthiness as well.

Integrity is the foundation of public trust that is essential for a person holding a public office. Civil Servant should not act or take decisions in order to gain financial or other material benefits for themselves, their family, or their friends. They must declare and resolve any interests and relationships.

What is integrity for a Civil Servant?



Nolan commission defined it as 'Holders of public office should not place themselves under any financial or other obligation to outside individuals or organizations that might influence them in the performance of their official duties'. It can be seen that being a civil servant of integrity, a person must

- have high moral standards
- be honest towards his objectives,
- be consistent in the decision-making process - he should not only be honest and truthful, but also perceived to be so.

How is it Different from Honesty?

Honesty	Integrity
- It simply means holding the facts as they are, i.e. upholding the truth. - If you tell the truth, you possess the quality of honesty. Being honest means choosing not to lie, steal, cheat, or deceive in any way	- It means thinking and doing what is right at all times, no matter what the consequences. When you have integrity, you are willing to live by your standards and beliefs even when no one is watching, to live so that your thoughts and behavior are always in harmony. - Therefore, it not only requires truthfulness (honesty) but also the quality to do what is right in all circumstances

Honesty as a subset of Integrity:

Integrity implies reliability; consistency in one's principles and values. Honesty then becomes a necessary, though not a sufficient, criteria for integrity.

To be integral one has to be honest, but not vice-versa. Put simply, one can be honest in an act, but one needs to be integral in his/her whole conduct.

Honesty without integrity:

- Integrity requires one to face challenging situations. For **example**, in the battle of Mahabharata Arjun was confused whether to follow dharma/righteousness/duty or to follow kinship/inclination. Such conflict between duty (the right thing to do) and inclination is a critical test to determine whether a person has high or low integrity.

- Honesty on the other hand does not require such a context. One can be honest in day to day life without necessarily showing integrity. Integrity means soundness of moral character, as well as honesty – there's more to integrity than honesty alone.
- The major difference between honesty and integrity is that one may be entirely honest without engaging in the thought and reflection integrity demands.
- The honest person may truthfully tell what he or she believes without the advance determination of whether it is right or wrong. For example, a person may say “all athletes cheat” and really believe in this statement -that’s honesty. But, not taking the effort to determine whether this assertion is correct or not shows lack of integrity. Thus, one can be honest without being integral.

Types of integrity

The view of integrity that has been described above is integrity as a moral purpose and a **wholesome virtue**. Virtues such as benevolence dispose us towards a characteristic thought. However, there is nothing in particular that integrity leads those who possess it to attend to. However, integrity is an **anomalous virtue** – it is not associated with any characteristic motivations and thoughts. It is a special kind of virtue and a **cluster concept** and thus involves multiple motivations and thoughts.

Given human beings’ capacity and need for compartmentalization, or psychologically separating out different parts of their lives, we can recognize different types of integrity.

1. Moral Integrity:

- It means consistency and honesty in standards that one uses in judging others as well as oneself as right or wrong.
- This is the most comprehensive type of integrity, also the personal integrity that has been described above.

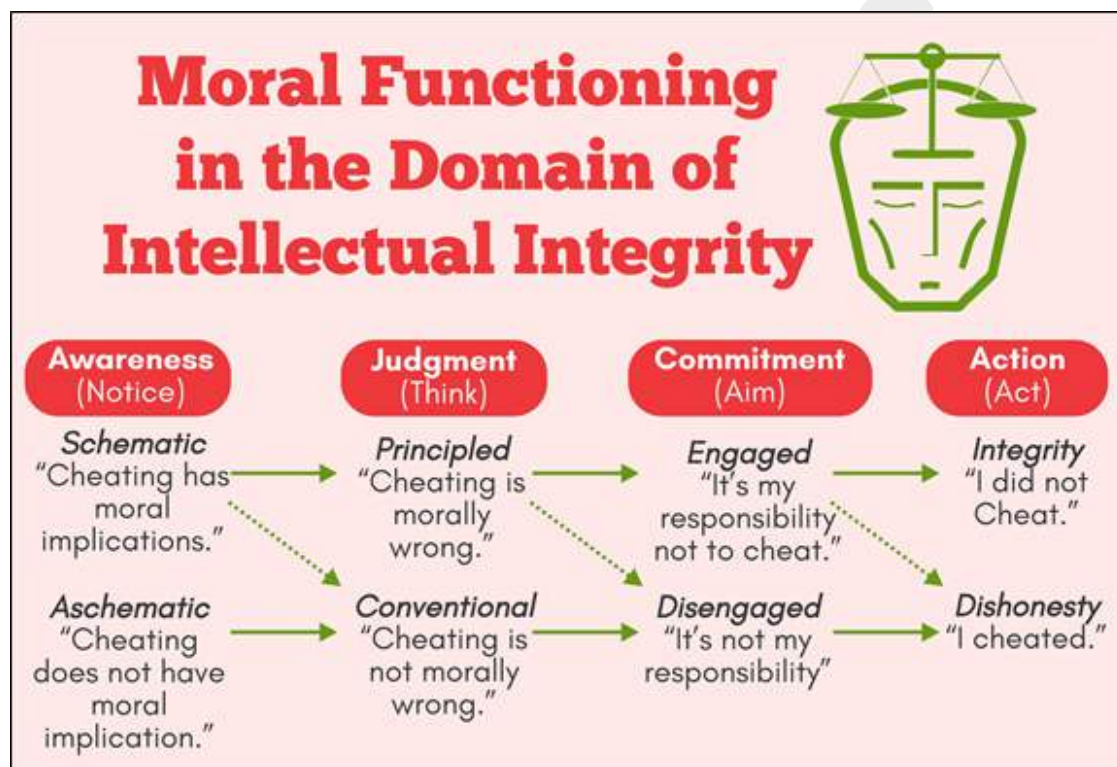
2. Professional integrity:

- It means upholding the code of ethics, standards, norms and values of the respective profession.
- It thus implies a professional who consistently and willingly practices within the guidelines of the chosen profession.
- Professional integrity is **weaker** than moral integrity. It can be argued that the responsibilities of performers, for example, are quasi-moral; they are not truly moral because they are internal to the profession. However, it seems plausible to maintain that professional integrity is better understood as an important contribution to the living of a moral life. Professional integrity is specific to the sphere of a profession, but not entirely independent of morality.

3. Intellectual Integrity:

- The term ‘intellectual integrity’ is ambiguous between integrity of the intellect and the integrity of the intellectual.
- Construed broadly, as integrity of the intellect, it would be applicable to anyone who thinks, and thus becomes too general.
- In a more specific understanding, intellectual integrity is the integrity as an academic’s virtue.
- Intellectuals may differ in the extent to which they exemplify intellectual virtues such as honesty, impartiality, respect for facts, and openness to the views of criticism.
- Intellectual integrity may then be thought of as the over-arching virtue that enables and enhances these individual virtues by maintaining a proper balance between them. For example, Socrates may be an outstanding example of a person of intellectual integrity. He had a commitment to the pursuit of truth and knowledge, and he demonstrated his intellectual integrity in the face of attacks on it.

- Some commonly cited intellectual virtues central to the conception of intellectual integrity are honesty, courage, fairness, sensitivity, perceptiveness or insightfulness, intellectual humility, perseverance, adaptability and communicativeness.
- Possession of these virtues is part of what it means for a person to have intellectual integrity, although they may exist in varying degrees without undermining a person's overall intellectual integrity.
- There are a range of kinds of actions one might expect from a person of intellectual integrity as well: for example, being against plagiarism, refusing to suppress counterarguments, and consistently acknowledging help.
- Thus, it can be said that intellectual integrity is that quality that enables a person to balance the various demands of intellectual work and to manifest intellectual virtues in a proper order.



4. Artistic integrity:

- It is essentially the integrity displayed by an artist towards his/her work. The **wholesomeness of the work** – accuracy, careful depiction, placing no component out of place, etc. are hallmarks of artistic integrity.
- Consider the **example** of a painter. He leaves his family, home, country, etc. and goes to an exotic country so that he can find breathtaking views that can be put on the canvas. Is he behaving as man of integrity? Should his commitment to his chosen profession supersede his responsibility towards his family/country? There is no clear answer here – if his artistic project fails, we might judge him as morally deficient, otherwise we are likely to see his actions in a more favourable moral light. However, there is no reason to think that he will succeed only if he leaves and not by remaining in his home. In any case, our judgment about his artistic integrity does not absolve him for his lack of personal/moral integrity.

Moral values which artworks suggest or promote are relevant to considerations of artistic integrity. As such, **artistic and moral integrity can overlap**, particularly if the standards of artistic integrity are high. On the other hand, **artistic and moral integrity can come in conflict** in situations of great pressure. Circumstances also vary, and with them both the difficulty of pursuing integrity, and our assessment of its merit. A journalist reporting from a totalitarian

state is under considerable pressure. He may have to make certain compromises in his works. One might rate his moral integrity as higher than artistic integrity – he may have made compromises which affected his integrity as an artist (journalist).

Student Notes:

How to Inculcate Integrity?

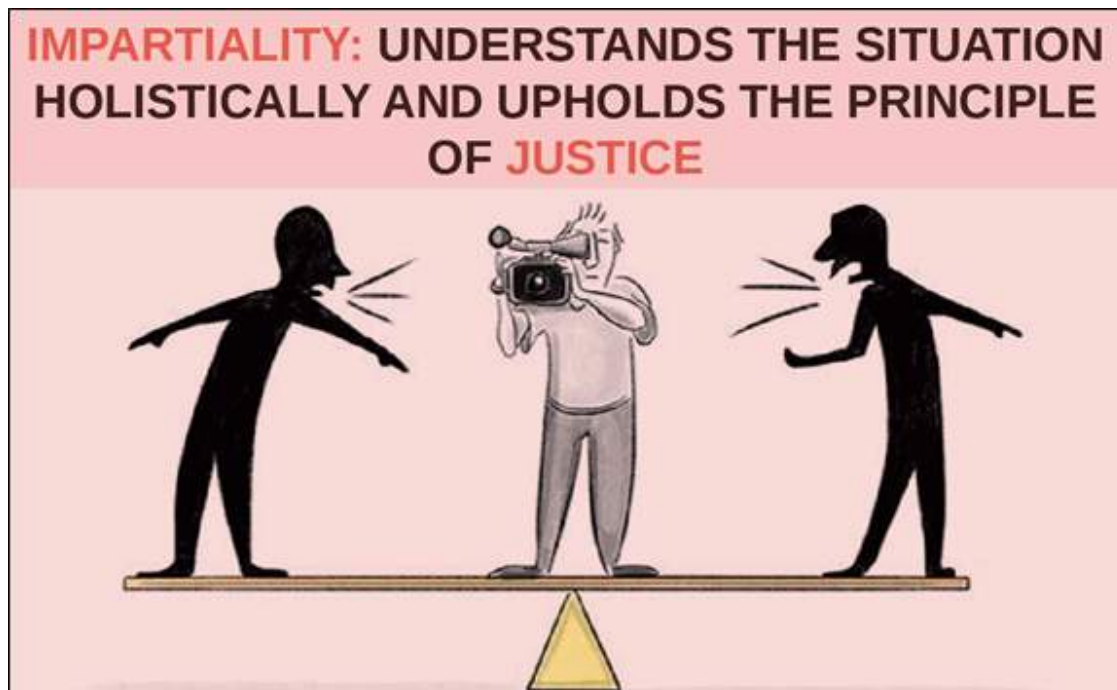


- **Through Model Learning:** If young recruit's first posting is made under an honest officer, then he's more likely to remain honest because of mentoring by a good role model.
- **Reward and Punishment:** To consolidate a newly developed value, appropriate behavior must be rewarded and inappropriate should be punished accordingly. This is called 'carrot and stick' policy.
- **Sensitivity Training:** Under this kind of training, the person is made to learn the desired value through role-playing, so that he understands the nuances of it.
- **Code of Ethics and Code of Conduct:** 2nd ARC recommends setting up code of ethics for all departments of the government. It'll have broad principle- that all participants have to follow and its reports will be given and evaluated by the departmental head.

7.4.2. Impartiality

- Impartiality is a broad concept founded on law that is commonly understood as a **principle of justice**. It refers to the fact of not supporting one person or a group more than the other. It simply means not taking any sides.
- Synonymous with fair-mindedness, impartiality holds that decisions should be based on objective standards, instead of on the basis of bias, prejudice, or preferring the advantage to one person over another for unsuitable reasons.
- Being impartial, though, is very difficult. People have their biases about most of the things. For civil servants, politicians and judiciary, who most commonly deal with taking decisions which may benefit one person or group of persons, being impartial becomes very important.

For **example**, a judge cannot presume a person to be guilty only because he/she belongs to a certain community. That would compromise the whole due process of law. Similarly, a civil servant cannot prioritize one person over another just because of his personal preference. There has to be a reasonable, intelligent criterion. Consider acquisition of land for 'public purpose'. Who are the people whose land will be acquired? They can be farmers cultivating land on the outskirts of the city, or a hamlet comprising of scheduled caste population, or land lying with a religious body, etc. The District Magistrate may have his/her own concerns or preference towards any of the group, but the decision will have to be taken based on objective criteria and most importantly, project requirements – he/she cannot be partial in evaluation of facts or application of rules based on the owner only. The views of the people affected will be ascertained and their objections disposed-off as per the procedure established under the Land Acquisition Act.



For civil servants, impartiality works at two different levels:

Political Impartiality

- Since, impartiality is acting solely according to the merits of the case, therefore it implies serving equally well governments of different political persuasions, irrespective of the civil servant's own personal opinion.
- A civil servant has to act in a way which deserves and retains the confidence of ministers.
- It also means that civil servants will comply with any restrictions that have been laid down on him in regard to political activity.
- At the same time, civil servants are under no obligation to defend the 'views' of the ministers but they must implement the 'decisions' with utmost objectivity, impartiality and to the best of their abilities.

Public Impartiality

- Impartiality vis-à-vis public means that, a civil servant carries out his responsibilities in fair, just, objective and equitable manner.
- He must not act in a way which is unjustifiably favors or discriminate against a particular individuals or interest.
- The principle of public impartiality can be seen to be derived from the values of merit, equality, justice, which are enshrined in the Indian Constitution.
- In other words, impartiality means that civil servants in carrying out their official work, including functions like procurement, recruitment, delivery of services etc., should take decisions based on merit alone.

7.4.3. Non-Partisanship

Non-partisanship can also be called **political neutrality** (explained in more details next). Non-partisanship infers that the officer is to do his task without any fear of, or favor to any political party, even if he has strong faith in any political thought. The values of the administrator will flow from the constitution not from the philosophy of any political party. It would ensure that civil servants would serve equally well to the political executives, irrespective of political changes.

Non-partisanship	Impartiality
- Non-partisanship is a narrow concept, as it deals with relation of public officials only with the political executive, and is also called as neutrality - Practically, it may be said that non-partisanship is a kind of attitude	- Impartiality is a broader term and deals with public officials' relation with their entire ecology, consisting not only of political executive but also the stakeholders i.e. the people. - Impartiality has more to do with behavior in a particular situation.

Why are they needed?

1. It brings credibility and trust in the public with respect to the functioning of the public service.
2. It makes the civil servants gutsy, rather than merely capable, so that they can ask relevant questions with respect to the policy, law etc. The difference between the two is that, capability ensures that a civil servant does things correctly, but gutsiness would ensure that he does the right things.
3. It ensures equality, justice among different sections of the society.
4. It ensures the morale, effectiveness and efficiency of civil services, as the transfer, posting etc. are expected to be based on merit alone rather than any extraneous factors.

How are they ensured?

1. **The Central Civil Services Conduct Rules, 1964 and The All India Services Conduct Rules 1968:** To maintain integrity in public service the conduct rules were notified in 1964, which stipulate certain guidelines for the Civil servant to perform the duty with full devotion; and shall not adopt dilatory tactics in their dealings with the public & the likes that are uncalled for like accepting bribe etc. from a civil servant.
2. Though we have these Conduct Rules for the Civil Servants in the form of certain guidelines to follow while discharging of one's duty, however they do not lay down the values & morals in the form of a Code of Ethics that they should imbibe in their persona to do justice with public service.
3. **Code of Ethics, 1997:** It was the first initiative to introduce the code of ethics for public servants in India, which was considered a step towards better governance. The salient features of the code were as follows:
 - Uphold the rule of law & respect human rights
 - Maintain objectivity & transparency in their conduct with the public & in discharge of their duties
 - Maintain utmost impartiality in respect of service matters

7.4.4. Neutrality

- **Neutrality is with specific reference to relationship between the civil servants and the government/politician.**
- Neutrality is not being biased in providing facts, feedbacks, opinions, etc. to the political executive or diligently carrying out tasks ordered by the government, irrespective of which political party's government is in power.
- It implies that a civil servant would remain politically impartial and non-partisan while serving as public officials. He has to function with a kind of **political sterilization**, i.e. bureaucrats should remain unaffected by the changes in politics. Conversely, he has to implement **the given policy as it is** without any personal considerations.

The **policy making is the prerogative of the political executive, and civil servants are meant to implement that policy without questioning**. In administrative jargon, it is called as **politics-administration dichotomy**. At the same time, the bureaucrat must not hesitate to correct the politician or provide honest opinion. **His/her job is not be a 'Yes-man' or a 'committed bureaucrat'**

CONDUCT RULES FOR NEUTRALITY



The Central Civil Services Conduct Rules, 1964 and the All India Services Conduct Rules 1968 lays down the following provisions to ensure neutrality of public servants:

- ⊗ Public servants must not take part in politics.
- ⊗ They must not give election fund/ assistance to any political party.
- ⊗ They can vote. But must not tell his preference to other people.
- ⊗ They must not display any election symbols on his person, vehicle or home.
- ⊗ They must not participate in rallies, and demonstration etc., without government permission.

Committed Bureaucracy

It can be understood from two perspectives:

1. **Positive:** It implies that civil servants should be **committed to the objective of the state**, the **constitution**, and should have **faith in the program** and **intention** of the political executive, if they genuinely seek to bring social change for the good.

Such committed bureaucrat needs not to be partisan in his working, he only needs to have **empathy** to understand the mind of his political master and be political responsive. Therefore, he needs to give **technical advice** in accordance to the political philosophy of the ruling party.

2. **Negative:** It implies **politicized bureaucracy**, where the administrative system functions only to serve the narrow interest of the political party in power. For example, the functioning of administrative system in Nazi Germany.

Generally, the term 'committed bureaucracy' is used with the negative connotation – a bureaucracy committed to the goals of a political party/leader rather than that of the people

Types of neutrality

Sometimes, it is classified into two types.

1. **Passive neutrality:** Here the public official will do anything that the political executive orders him to do. But then he may end up violating some legal/constitutional provisions. It was the neutrality that was actualized by Nazi bureaucracy. Hence passive neutrality is undesirable.
2. **Active neutrality:** The Officer will do what the constitution, rules, laws and office manual says, without following any particular party. Sometimes, it leads to civil services activism.

Areas of conflict between political executive and civil servants:

The concept of civil servants being neutral to political dispensation has been debated in context of India. Demands of a committed bureaucracy have been implicit on change of governments, if not explicit. Further, what is the extent of neutrality that can be observed in practice? The reasons for a potential conflict between civil servants and political executive can arise because of the following reasons:

1. **Societal consensus** about the goals to be pursued **varies among people**. In West, there is a certain consensus on goals of development. There is also a certain degree of homogeneity in societal formation. Lack of consensus on the goals and path of development creates ambiguity in the policy preferences. This in turn leads to adhocism, which cannot provide clear direction to the permanent executive. On the contrary, political process start occupying the space (i.e. more interference) meant for civil servants. This can strain the relationship.

2. **Political executive may pressurize the permanent executive** to violate the very rules that they themselves formulated. Civil Services, being rooted in a rule-based system resist this pressure. This may again lead to conflicts between the two.
3. **Presence of shared belief system:** It means there is common belief system with respect to vital social issues. Belief system is a product of various factors, important amongst them the culture, society, surroundings that one has grown up in, the education system one was exposed to, etc.

In India, the civil services have mostly come from a urban middle class where as political executive is more diverse. Although the character of bureaucracy is changing, it has been changing rather slowly. While a bulk of the members of the political executive, particularly at the state level, have been drawn from the rural and agricultural background, the top and middle level administrators are from the urban middle and upper middle classes- most that qualify for civil services are from urban towns, whereas political representation is spread equally, and since roughly only 32 percent of population is urban, the distribution of seats would also be similar. These **differences are manifest in their style of living, mode of communication, ways of looking at things and their mannerisms**. The relationship between the two is partly shaped by this factor of value system.

Further, it is argued that, **in developing societies**, there are **weaker sections** that must be supported by the administration if the devised policies are ill-suited to their needs. In this context, one of our former Prime Ministers said, "In developing countries, civil servants, to be genuinely neutral, has to take side of the poor."

However, it must be remembered that **neutrality is an ideal**, like any other ideal such as democracy, which can't exist in its perfect form, simply because it is an 'ideal'. But it doesn't mean that we should discard them for this reason only. Just as the absence of democracy would lead destruction of individual rights, similarly absence of neutrality would cause chaos in functioning of public administration. Therefore, **this ideal is worth pursuing forever in the appropriate cultural context**.

7.4.5. Anonymity

The principle of anonymity emphasizes that permanent executive works from behind the screen. In other words, they should avoid public gaze.

The **anonymity** of the civil service is **linked** to two concepts: **permanence and neutrality**. Civil servants, many of whom remain in their jobs whilst serving numerous governments, are thus likely to have to give advice to governments of different political parties, who may have different attitudes to policy. The advice they give needs to be given to ministers both freely and also without fear of adverse public or political reactions and without fear of future career damage. This is tied into the concept of ministerial responsibility, whereby the convention is for the minister to accept responsibility for their actions and decisions and those of their departments.

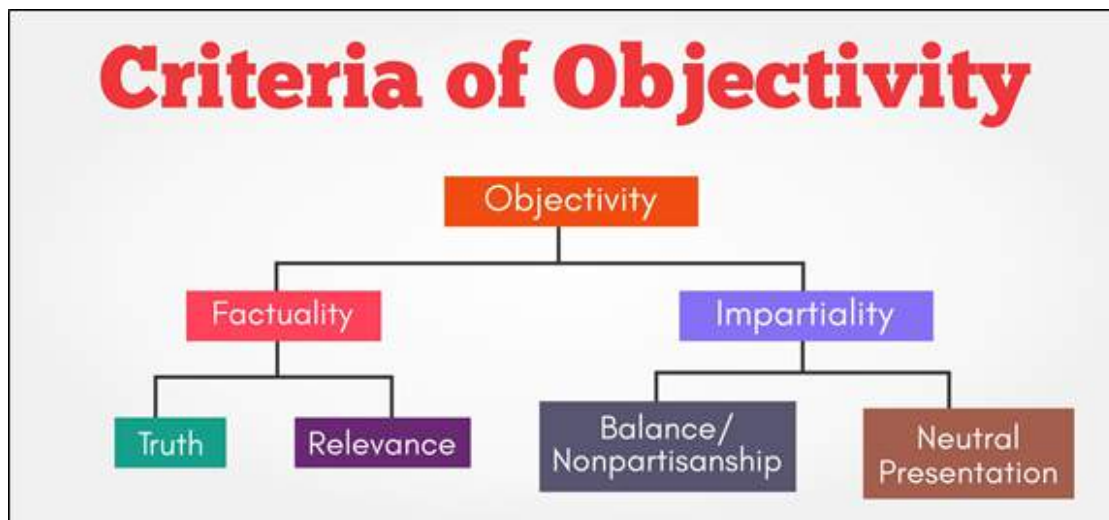
Anonymity and Neutrality: Both values have to be followed simultaneously. The technical and managerial skills are not political. The **tools of administration** – i.e. the practices that make carrying out of tasks more efficient and effective are politically neutral. It is only the **diligence** in their application that incorporates the human bias. **Anonymity, and thus accountability is necessary to get rid of this bias.** The skills and the technical knowledge which are assumed to be non-political can be used by the government of any political ideology. For **example**, Lenin incorporated many strands of efficiency of industrial capitalism in USSR's economy. Or, China embracing tenets of capitalism in its economy while maintaining communism in its polity.

7.4.6. Objectivity

Objectivity is sticking to the facts – the evidence. It means being guided by the evidence and considering an event will be closer to the truth the more supporting evidence it has. It is that

quality in which a person or his/her judgement is not influenced by personal feelings or opinions in considering and representing facts.

Student Notes:



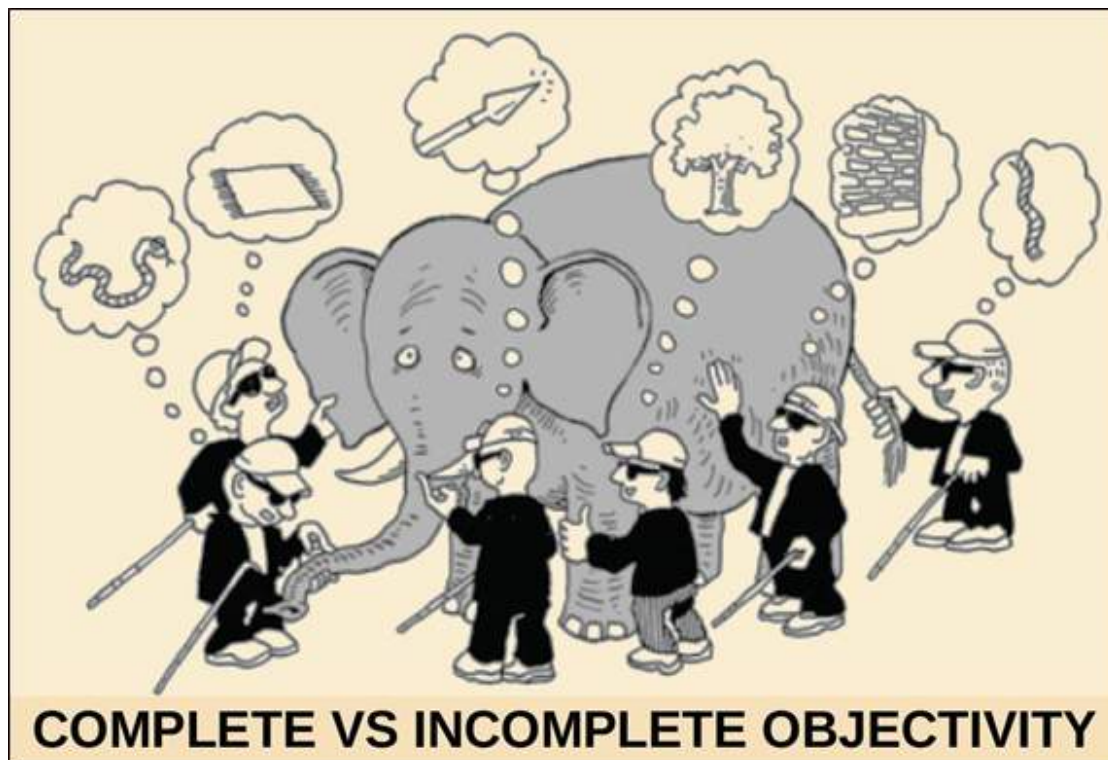
It means evaluating a situation fairly, based on facts, without any bias, personal belief, feelings or external influence. Therefore, it is **rational** and most of the times, **empirical** in nature. It is **antithetical to subjectivity**, i.e. feeling, values, emotions etc. In practice, civil servants should make choices on merit while carrying out their duties, for example making public appointments, awarding contracts, or recommending individuals for rewards and benefits.

Nolan Commission on Importance of Objectivity:

- » The duties of public office vest, in the holder, authority to take decisions including making appointments, awarding contracts, recommending benefits etc
- » The choices cannot be allowed to be made on any criteria other than merit.
- » The decisions must be based on reasons free from the vice of caprice.
- » The executive can take a leaf out of the book of judiciary by suo-motu supply of reasons for every action.
- » The requirement of recording reasons is by itself a great safeguard that inhibits the decision maker from being subjective.

Why is it needed?

Civil servants discharge their duties based on clearly defined rules. These rules lay out their responsibilities as well as give them required authority to carry them out. A public office enjoys legitimacy and public trust because the responsibility and authority it carries are not arbitrary (Max Webber's Legal-Rational Authority). Hence, it is necessary for the individual who occupies a public position to be rational in his/her decisions rather than being arbitrary. Rationality comes from facts rather than biases- a mind open to assessment of facts uninfluenced by any pre-conceived notions. Biases blind our view and act as hindrance in taking a decision and its execution.



How it is ensured?

To ensure objectivity, the civil servants are expected to function based on some written rules, regulations, and laws, so as to eliminate or at least reduce the discretions. Even in situations where discretionary decisions have to be taken, they must be based on facts and not on personal beliefs or any other considerations.

How to develop it?

- **Transparency:** If the decisions and reasons behind them are made public, then civil servant would be more careful in taking decisions according to the facts rather than whims and fancies. For example, we have seen this trend with the enactment of RTI Act.
- **Information Management System (IMS):** If the organization doesn't record and document the incidents, information and statistics, then it won't be able to make decisions based on proper information.

7.4.7. Dedication to Public Service

Dedication is the quality of being able to give or apply one's time, attention, or self, entirely to a particular activity, person or cause.

It is commitment with passion and personal urge to do something, without any external formal instrument to enforce that urge. Strictly speaking, dedication is **different from commitment**, in that, commitment is formally obligated/bound, whereas dedication is guided by sense of duty, inspired by some ideals, like that of state or society.

Thus, dedication ensures that one is devoted to the task even in the absence of a formal commitment or external reward.

In **civil services**, dedication integrates the person with the idea of public good/interest. This dedication would ensure that civil servant's sense of duty is integrated with his official responsibility. As a result, he will keep doing his job even if it is boring, unwanted, tedious, or in a hostile environment etc. It is because his **duty itself becomes his end**, and he realizes Kant's maxim of "Duty for the sake of duty."

Spirit of sacrifice and service to the public & to the nation are the essential **ingredients of public service** and civil servants should feel motivated & inspired by the fact that they are working & devoting their life to a noble cause if they chose to be a part of it.

Why is it needed?

- Without it civil servants would find it difficult to perform their duties in difficult situations.
- To make civil servants emphatic to their job and empathetic to the people.
- To realize the ideals mentioned in the Constitution, like justice, equality etc.

How to develop it?

Since dedication to public service is more of a kind of aptitude, it has an internal motivational component, which, if not present, is hard to develop. However, the following can still be done to ensure dedicated civil services:

- The examination pattern should be so devised to gauge the aptitude of the prospective recruits.
- By giving them sensitivity training, like the problems faced by different sections of the population and how they can make a difference.

7.4.8. Empathy, Tolerance and Compassion towards the weaker section

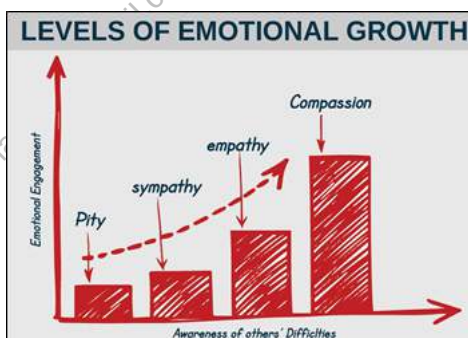
7.4.8.1. Empathy

It is about understanding another person's condition from their perspective. Simply put, empathy means putting yourself in their shoes & feel what they must be feeling in the circumstances they are faced with.

How empathy is different from sympathy?

Sympathy is instinctive and largely involves **cognitive aspect**. For example, seeing a poor man at raining winter night you would **think** to do something for him, but may not necessarily do anything. You can sympathize with his situation by expressing pity or remorse.

But empathy is deeper than this as it **includes emotions as well, apart from that cognitive aspect**. Empathizing with the person means that you are able to view the situation from his perspective and have knowledge of his circumstances and hardships. You cannot empathize with an abstract or detached feeling- you need to have knowledge about who he is, what is he trying to do and why. Therefore, it would **make you feel to understand** his problems, causes and consequences thereof. Thus, it is a step ahead of sympathy. **Empathy is stronger attitude than sympathy, hence it's better indicator of behavior.**



For example, consider climate change. Developed countries may well sympathize with developing countries which face immediate threats because of rising sea levels and temperatures. However, their lack of ability to put themselves in the shoes of developing countries struggling to meet multiple conflicting objectives (poverty alleviation v/s environmental protection) has **led to slow progress** in implementing measures needed to counter climate change and providing adequate climate finance. Thus, they are sympathizing but lacks empathetic attitude.

Why is it needed?

- To **break prejudices and enhance effectiveness of bureaucracy**: The bureaucratic system has become so complex that adhering to rules has become an end in itself rather than

pursuit of the end which was to be achieved by those rules. More time is spent in transactional business rather than working for welfare of people.

- To improve **Emotional intelligence and Decision making**: Empathy helps us understand others' emotions, therefore empathy is required to increase one's emotional intelligence.
- To improve **social cohesion and inclusivity**: Lack of empathy may lead to social unrest and intolerance towards women/minorities/ children/disabled as we can't understand their actual problems and specific needs. An empathetic civil service is the need of the hour to usher in inclusive growth.

How to inculcate it?

- **Sensitivity training**: Role playing games, put yourself in the shoes of other people.
- **Open conversation**: When members of different sections interact with each in open environment then the long held prejudiced are dismantled, and thereby empathy is inculcated.
- **Sarvadharm Sambhav**: When members of different cultural groups participate in each other's cultural festivals then tolerance is developed for each other and empathy is inculcated.
- **Art and literature**: They can also sensitize people about the conditions of some specific group of people.
- **Cultivation of interest in other cultures**: It means extending our knowledge of ways of life which are unfamiliar to us and appreciating the underlined ethical values.

7.4.8.2. Compassion

Compassion literally means **"to suffer together or co-suffering."** It is defined as the feeling that arises when you are confronted with another's suffering and **feel motivated to relieve that suffering**. Buddhism teaches the practice of compassion, called **karuna**.

Compassion and empathy are fundamentally different but are closely related i.e.:

- Empathy is the feeling of awareness towards other people's emotions and an attempt to understand how they feel while compassion is when those feelings and thoughts include the desire to help. So, **empathy precedes compassion**.
- **Empathy is putting oneself in someone else's shoes to understand what they are going through, but compassion spurs one to action.** For example: empathetic people may cry with the person experiencing a loss or if something unfortunate happens but a compassionate person would rather do something to alleviate/reduce the other person's suffering.
- While **empathy is a very internal feeling, compassion moves outwards** as it compels us to dive into another person's environment and offer help, without concern for ourselves or the cost involved.



Importance of having compassion towards weaker section in administration:

- Civil servants are the **agents of change**. Compassion is ranked as one of the great virtues for civil servants which has bearing upon the functioning of the administration and society. Compassion drives the civil servant to help people and ensure the **welfare of people**.
- Compassionate people often have other positive traits like generosity, kindness, and understanding. Compassion makes a civil servant **lead with not only head but also heart**. It gives rise to active desire to alleviate the sufferings of others.

- Compassion ensures a **people-centric, humane, accommodative administration**. It makes administration sensitive and responsive to the needs of every citizen, thus contributes to **efficient service delivery**.
- Compassion helps in getting a **better understanding of ground realities and grass root problems and hence helps in better planning**. It also establishes mutual trust and coordination between society and administration.
- A civil servant with virtues of compassion will make him help the needy and weaker sections of society even if he may have to deal with external pressure. It helps civil servants to earn the trust of the public, which **enhances his confidence, gives a sense of satisfaction, and energy to work harder**.

How to develop it?

- Increasing awareness about the life and living condition of powerless. It can be done by getting to know about the downtrodden sections like by visiting their neighborhood.
- Enhancing sensibility towards people by valuing others life and understanding their perspective.
- Following universal values that are part of one's religion such as Buddhism's 4 Noble Truths (Existence of suffering, its cause, its end, Path that leads to its end), etc.

7.4.8.3. Tolerance

Tolerance comprises of allowing people to exercise their rights, religious or constitutional. It is the midpoint on a spectrum ranging between prohibition/unacceptance at one end to acceptance at the other. For **example**, a vegetarian might be convinced it is wrong to eat animals. Such a person may never accept the practice as part of their own life. However, they may not want to stop others eating meat.

It teaches us to exercise restraint in sensitive matters. Tolerance is defined as a **fair and objective outlook** towards those whose lifestyle differs from a person. It refers to the skills a person needs to live together peaceably. In **Jainism** tolerance is captured in the ideal of **Syaadavaada**, which means that every view is correct from its own perspective, but no particular view is absolutely correct.

It means showing respect for the race, gender, opinions, religion and ideologies of other people or groups, and to admire the good qualities and good work of others. And to express one's point of view in a decent and respectful way while respecting the sentiments of others.

Why is it needed?

1. Without tolerance and harmony, the **lasting peace of societies cannot be maintained**.
2. Tolerance encourages freedom of expression, which is necessary for perusal of truth and progress. Without it differing views can't be expressed freely and thereby the society would become status-quoist and decadent, where **new inventions** can't take place.
3. It is necessary to **uphold the moral worth** of every individual, as according to J.S. Mill, all individuals have equal moral worth, and therefore should be allowed to express their views without any constraint.
4. **Human development** is possible only when we allow everyone to express their views and pursue their interest.
5. In a diverse society, like ours, civil servants are required **to serve all the sections equally well**, which is not possible if they are not tolerant.
6. In fact, values **of justice, impartiality and objectivity** are not possible without tolerance.

How to develop it?

- Sensitivity training.
- Promoting the notion of Sarvadharm-Sambhav, where we participate in cultural festivals of different sections of society.

- Developing empathy for others would lead to tolerance by itself.

7.4.9. Miscellaneous Values

7.4.9.1. Serving the public interest

Civil servants and public officials are expected to maintain and strengthen the public's trust and confidence in government, by demonstrating the highest standards of professional competence, efficiency and effectiveness, upholding the Constitution and the laws, and seeking to advance the public good at all times.

7.4.9.2 Legitimacy

Civil servants and public officials are required to administer the laws, and to exercise administrative power on behalf of the government, or the Parliament, or other such authority. That power and authority should be exercised legitimately, impartially and without fear or favour, for its proper public purpose as determined by the Parliament or their employer.

7.4.9.3. Fairness

Civil servants and public officials should make decisions and act in a fair and equitable manner, without bias or prejudice, taking into account only the merits of the matter, and respecting the right of affected citizens.



7.4.9.4. Courage and bravery

It is another feature of gutsy bureaucrats, because they can take transformational steps only if they have courage to accept the responsibility of failure, if there is any. Moreover, **to uphold highest order of integrity**, they have to be courageous, otherwise they would remain spineless, which is of no use.

7.4.9.5. Responsiveness

As agents and employees of the elected government, civil servants and public officials are required to serve the legitimate interests and needs of the government, other civil servants, and all citizens, in a timely manner, with care, respect and courtesy.

They have to be responsive to whatever new opportunities and challenges arise every day. And must be able to respond to the emerging needs of the people. For **example**, arranging shelter, food, financial help for migrants during lockdown.

7.4.9.6. Efficiency and Effectiveness:

Civil servants and public officials are required to obtain best value for public assets deployed in or through public management, and to avoid waste and extravagance in expenditure and the use of public assets

7.4.9.7. Innovativeness and Creativity

In a rapidly changing environment with new ICT technologies coming every day, civil servants have to be innovative and creative to utilize them to make their administrative work **faster, smoother and more efficient**.

Moreover, administration should be ecology based, and when there are fast pace changes in ecology the civil servants must be creative enough to **match the changing environment** so as to fulfill their duties innovatively.

For **example**, in the era of fast paced advancements in technology civil servants are left with little to no time to first understand the impact of advancements in technology and then frame policies on them. Rather they'll need to **adapt to the circumstances and engage in pre-emptive policy making**.

7.4.9.8. Fortitude

It means to have courage in pain or adversity, having courage over a long period. Civil servants work in dynamic environment where they may be subjected to various external pulls and pressures. They must demonstrate steadfastness and commitment to values that they adhere to. For **example**, trying to help helpless people during lockdown even when there are little means at disposal.

7.4.9.9. Perseverance and Tenacity

It means **continued effort and determination**. It means doing something despite difficulties or delay in achieving success. Single-minded focus of researchers that keep on repeating experiments for number of years is a good example of perseverance. For civil services, perseverance is a key value. Changes that policies bring, for **e.g.** removing open defecation, or improving sex-ratio in a district are goals that cannot be achieved overnight. There will be lot of people opposing the schemes because it did not show results in one year or two years. Civil servants have to persevere if they honestly believe that the current policy/scheme is the best way to achieve desired goals, although there may not be an immediately visible impact.

Tenacity is very similar- it means the quality of being determined, persisting.

7.4.9.10. Resilience

Resilience is the quality to recover quickly and bounce back. It is the individual's ability to adapt in face of crisis and return back to pre-crisis status quickly, better prepared this time. Failure is inevitable in a task that has uncertainties and decisions that are based on incomplete information. The task of a civil servant is not to be bogged down by eventual failure of efforts but to dissect the causes of failure and develop a mechanism to incorporate negative feedback to improve up on future decisions. A positive attitude, ability to manage emotions and optimism are key qualities of people who are resilient.

7.5. Consequences of Erosion of Values

- **Corruption** and absence of public service which is central to any administrative system.
- The administration becomes **unresponsive to public needs** as it tries to fulfill the ends of the political party it is affiliated to.
- It results in the **destruction of meritocracy**, where merit is rewarded and all service conditions are based on objective assessment of merit. Therefore, transfers, posting etc. are guided solely by affiliations rather than the capability of the respective civil servant. This results in inefficiency, ineffectiveness, complacency, and lack of morale.
- It **reduces the popular trust in the public services**, thereby hurting their credibility.

This erosion of values leads to various concerns, dilemmas and issues. We shall discuss these concerns and the measures to strengthen ethical administration in the next document of Ethics in Administration.

8. Previous Years UPSC GS Mains Questions

2013

1. What do you understand by the following terms in the context of public service? a) Integrity b) Perseverance c) Spirit of service d) Commitment e) Courage of conviction f) Personal opinion.

2. Indicate two more attributes which you consider important for public service. Justify your answer.
3. The good of an individual is contained in the good of all. What do you understand by this statement? How can this principle be implemented in public life?

2014

1. There is a heavy ethical responsibility on the public servants because they occupy positions of power, handle huge amounts of public funds, and their decisions have wide-ranging impact on society and environment. What steps have you taken to improve your ethical competence to handle such responsibility?
2. Integrity without knowledge is weak and useless, but knowledge without integrity is dangerous and dreadful. What do you understand by this statement? Explain your stand with illustrations from the modern context.
3. What does ethics seek to promote in human life? Why is it all the more important in public administration?

2015

1. "A mere compliance with law is not enough, the public servant also have to have a well-developed sensibility to ethical issues for effective discharge of duties" Do you agree? Explain with the help of two examples where (i) an act is ethically right, but not legally and (ii) an act is legally right, but not ethically.
2. Public servants are likely to confront with the issues of "Conflict of Interest". What do you understand by the term "Conflict of Interest" and how does it manifest in the decision making by public servants? If faced with the conflict of interest situation how would you resolve it? Explain with the help of examples.

2016

1. Why should impartiality and non-partisanship be considered as foundational values in public services, especially in the present day socio-political context? Illustrate your answer with examples.
2. What do you understand by the term 'voice of conscience'? How do you prepare yourself to heed to the voice of conscience?
3. What is meant by 'crisis of conscience'? Narrate one incident in your life when you were faced with such a crisis and how you resolved the same.

2017

1. Conflict of interest in the public sector arises when (a) official duties, (b) public interest, and (c) personal interest are taking priority one above the other. How can this conflict in administration be resolved? Describe with an example.
2. Examine the relevance of the following in the context of civil service:
 - (a) Transparency
 - (b) Accountability
 - (c) Fairness and justice
 - (d) Courage of conviction
 - (e) Spirit of service
3. One of the tests of integrity is complete refusal to be compromised. Explain with reference to a real-life example.

2018

1. State the three basic values, universal in nature, in the context of civil services and bring out their importance.
2. What is mean by public interest? What are the principles and procedures to be followed by the civil servants in public interest?
3. "In looking for people to hire, you look for three qualities: integrity, intelligence and energy. And if they do not have the first, the other two will kill you." – Warren Buffett. What do you understand by this statement in the present-day scenario? Explain.
4. Explain the process of resolving ethical dilemmas in Public Administration.

1. What is meant by the term 'constitutional morality'? How does one uphold constitutional morality?
2. What is meant by 'crisis of conscience'? How does it manifest itself in the public domain?

9. Previous Years UPSC Mains Questions: Case Studies

1. Suppose you are an officer in-charge of implementing a social service scheme to provide support to old and destitute women. An old and illiterate woman comes to you to avail the benefits of the scheme. However, she has no documents to show that she fulfils the eligibility criteria. But after meeting her and listening to her you feel that she certainly needs support. Your enquiries also show that she is really destitute and living in a pitiable condition. You are in a dilemma as to what to do. Putting her under the scheme without necessary documents would clearly be violation of rules. But denying her the support would be cruel and inhuman.
 - (a) Can you think of a rational way to resolve this dilemma?
 - (b) Give your reasons for it.
2. Rameshwar successfully cleared the prestigious civil services examination and was excited about the opportunity that he would get through the civil services to serve the country. However, soon after joining the services, he realized that things are not as rosy as he had imagined. He found a number of malpractices prevailing in the department assigned to him. For example, funds under various schemes and grants were being misappropriated. The official facilities were frequently being used for personal needs by the officers and staff. After some time, he noticed that the process of recruiting the staff was also not up to the mark. Prospective candidates were required to write an examination in which a lot of cheating was going on. Some candidates were provided external help in the examination. Rameshwar brought these incidents to the notice of his seniors. However, he was advised to keep his eyes, ears and mouth shut and ignore all these things which were taking place with the connivance of the higherups. Rameshwar felt highly disillusioned and uncomfortable. He comes to you seeking your advice. Indicate various options that you think are available in this situation. How would you help him to evaluate these options and choose the most appropriate path to be adopted?

10. Previous Years Vision IAS GS Mains Questions

1. ***One has not only a legal but also a moral responsibility to obey just laws. Conversely, one has a moral responsibility to disobey unjust laws.***

Approach:

- Briefly highlight your understanding of the quote.
- Discuss its importance in the current context.
- Conclude accordingly.

Answer:

In a democracy, a law not only has the statutory sanction but also reflects the will of the people. Obedience to the law of the land is also a moral obligation for maintaining social and political order in the interest of common good. Socrates when condemned to death, did not flee the city. According to him, it would have been violation of law amounting to mistreatment or disrespect of his fellow citizens.

If one has agreed to constrain his freedom being bound by the law, under the premise that others will do likewise, then it's unfair if others choose to disobey the law to suit their convenience. This approach to obeying laws on the basis of convenience will create chaos.

However, not all laws can have moral sanction. Even in a democracy, a majority can take over the legislative process and frame a law that may not be just to every section of the society or may undermine the dignity of some. A law that caters to most, at the cost of a few is an unjust law. And according to St. Augustine an unjust law is no law at all. Mahatma Gandhi also argued that an unjust law is itself a species of violence. In the present context, following examples could be seen in this light:

- **Criminalizing Homosexuality:** Many countries, including India till recently, criminalised LGBT community for their sexual orientation.
- **Adultery and sexual harassment-** Until recently, only a man in India could be prosecuted for adultery under Section 497 of IPC. On the hand only women can file cases against sexual harassment in India. Men do not have legal recourse, if faced with sexual harassment.

Historically laws related to apartheid in South Africa and racial discrimination in US were morally corrupt. Therefore, these laws were withdrawn after widespread opposition and resentment by the population. Martin Luther King also provided a template for opposing unjust law. He said that one who breaks an unjust law must do so openly, lovingly, and with a willingness to accept the penalty. There should be acceptance of penalty of imprisonment in order to arouse the conscience of the community over its injustice. This in reality expresses the highest respect for law.

2. "Law should be so succinct that it can be carried in the pocket of the coat and it should be so simple that it can be understood by a peasant." Discuss.

Approach:

- Introduce by stating the relevance of this quote.
- Discuss the meaning of the statement – emphasising key words.
- Conclude with examples.

Answer:

The given statement was quoted by Napoleon, which also finds its mention in the 2nd ARC report on ethics in governance. The statement focuses on why law should be brief and concise so that one can comprehend it easily. Also, law should be away from complexities, so that even the person existing at the lowest rung of the pyramid (in this case, peasant) can decipher it.

The above statement gains relevance in the context of:

- The lengthy legal texts and intricate language used in framing the constitution, and a no. of civil & criminal laws, etc.
- Expensive legal system for the poor and marginalised and termed as lawyer's paradise.
- Complex jurisprudential interpretation of law and policy.
- The complexities in the law often end in secrecy as well as harassment of the ordinary people.
- Existence of obsolete and archaic laws.

In the present context, to make laws succinct and simple a substantive exercise must be carried out of identifying those statutes and regulations that no longer serve a useful purpose, but may become a tool for delay, obstructionism and harassment. There should be systematic use of drafting techniques like sunset and review clauses, and simplification of the procedure for repeal.

As a civil servant and a law-abiding citizen of the country, it is the duty of every citizen to aid and assist the poor by not only promoting the cause of simple procedures and

legislations, but by also making available free legal aid for socially and economically vulnerable people as envisaged under Article 39A and the Legal Services Authorities Act.

Several such initiatives have been undertaken to simplify legislative procedures. For instance:

- The government undertook repeal of about 2000 archaic laws in the past decade such as through Repealing and Amending Act, 2017.
- Civil society organisations taking law to tribals and poor by making them understand and representing their causes. For example, civil societies working for the rights of Adivasis in Chattisgarh. Single window clearance mechanisms have expedited last mile service delivery and minimised hassles of complex procedures.

Apart from reforming the laws, The National Legal Services Authority (NALSA) has been constituted under the Legal Services Authorities Act, 1987 to provide free Legal Services to the weaker sections of the society and to organize Lok Adalats for amicable settlement of disputes. Mahila Adalats, e-courts for effective and timely justice have also been setup.

To conclude, a nation should strive for succinct and simple law which is easily understandable by the people. It must also be noted that laws are drafted in conformity with existing laws and principles of jurisprudence. It is never meant to be used as tool for rough and ready delivery of justice. Only a court or a duly appointed authority can provide for expression of views of contending parties, and that inevitably brings in lawyers, who may interpret the law according to convenience if it is not well-drafted.

3. *Why are certain rights considered universal in nature? Explain using examples.*

Approach:

- Briefly introduce with a definition of rights.
- Discuss why certain rights are considered universal in nature.
- Give a brief conclusion based on the discussion in the answer.

Answer:

Rights mean claims & entitlements of individuals and groups that are considered to be necessary for leading a life of respect and dignity and are essential for their well-being.

There are certain rights that are considered universal in nature because:

- They are rights **inherent to all** human beings since all human beings are born free and equal. They have a right to have rights. For example, Freedom is an essential condition for life and entitlement of the right to freedom is hence a universal claim.
- They are natural rights, that is, they are **derived from the law of nature** and not dependent on laws or customs of any particular culture or government. For example, Right to life and liberty.
- They **impact all people** without distinction of any kind, such as race, colour, sex, language, religion, nationality etc. For example, Right against Exploitation & Right to Justice affects all people equally & hence makes a case for their universal availability.
- They are inalienable as **exclusion from any of such rights would lead to discrimination**, unequal access to resources and opportunities, inability to realize their potential. For example, No one shall be held in slavery or servitude or be subjected to torturous or degrading treatment.

- They are required to meet the **basic needs**, for example, the right to develop one's own talent and skills, right to opportunities etc. ensures that certain sections are not denied the equal chance to have a dignified life in terms of food, clothing and shelter.

Although mostly individualistic, the above discussed rights are required for the overall development of the society because an empowered individual only would lead to a sustainably empowered society. Entitlement to these universal rights would help build a world in which every man, woman and child lives life with liberty and is protected from oppression, violence and discrimination.

4. Explain the significance of the following in the context of civil service: (i) Public trust (ii) Objectivity (iii) Strength of character (iv) Empathy (v) Selflessness

Approach:

- Succinctly define the terms.
- Outline the significance of each, by using examples or otherwise, in civil services.

Answer:

The given terms are the assets that a civil servant must possess in order to be true to his/ her duty towards the society. Significance of these is discussed below:

- Public Trust:** It is the firm belief in the reliability, truth, or ability of the people in public offices, institutions and officials i.e. the measure of public confidence and faith commanded by an officer or an institution or a system. High public trust enables a civil servant to take bold decisions, whereas, low public trust raises question on every activity. It can be built by consistent performance and efficient delivery of expected services. For example, the Election Commission enjoys high trust and this has helped it to implement 'Model Code of Conduct' even without Legislature's backing. One of the reasons that bribery is regarded as a notorious evil is that it contributes to a culture of political corruption in which the public trust is eroded.
- Objectivity:** It is the quality of being truthful, unbiased, impartial and sticking to the facts beyond the influence of one's feelings and prejudices. Objectivity helps a civil servant to rise above his own biases and perceptions and take actions in the larger interest. For example, a judicial magistrate with objectivity would go by the merits of a robbery case rather than being influenced by the public perception of the culprit.
- Strength of character:** It is a measure of how much a person can persevere in adverse circumstances and stand against wrong actions/deeds.. It is determined by how strongly or weakly does one believes and adheres to certain values. It stands to test in the face of hardships. If a person holds high strength of character, he/ she would hold on to his principles even in the face of crisis be it social, economic or political. This strength helps a civil servant to firmly say 'no' to anyone's ill demands that may go against the law or the general public e.g. during riots, passing of tenders, work during disasters and so on.
- Empathy:** It is the ability to place oneself in another's position and understand their feelings and experience their emotions. In context of civil services, unless the public officials empathize with the common man, they will not be able to understand the problems faced by him and consequently, public services will not improve e.g. an empathetic official will ensure ramps etc. in his/ her office premises to aid the movement of the physically disabled.
- Selflessness:** It means to put others before oneself to the extent of having little or no concern for one's life, money, position etc. The job of civil servant demands that public concerns be the top priority. There might be situations where an official has

to give up family time at a stretch in order to fulfil professional responsibilities. Further, selflessness helps in building an organization of integrity and honesty.

Student Notes:

5. *Courage is the first of human qualities because it's the quality that guarantees the others.*

Approach:

- Define courage & establish its importance as an important human virtue.
- Discuss, with examples, how courage is a prerequisite for other human qualities.
- Conclude in a balanced manner.

Answer:

Courage is the virtue that enables a person to restrain fear in the face of danger, difficulty or doubt. As Nelson Mandela put it, "Courage is not the absence of fear, but the triumph over it".

Courage guarantees other qualities

- Courage enables people to face tough consequences for their acts. For instance whistleblowers like Edward Snowden often pay heavy price for disclosures.
- Without courage it is difficult to display qualities like leadership which entails laying out roadmaps for the future amidst uncertainty. For example it is "courage" that enabled Mahatma Gandhi to display the virtue of nonviolence against the oppressive colonial regime.
- It encourages people to take firm decisions and attempt things that they have not tried before. For instance, it takes courage to invest in novel & seemingly impractical/commercially unviable ideas like the SpaceX.
- Various personal, social and professional feats are unthinkable without courage. It may be the fight for social reforms or fearless decision making by public officials to bring about public accountability, impartiality and truthfulness in daily life.

However, it must be borne in mind that courage must stay within limits defined by reason (like the courage displayed by law-enforcing personnel vis-à-vis criminals). Moreover life provides daily opportunities and instances of courageous acts (for instance standing up for injustice, actively supporting a just cause like cleanliness in public places etc.) as distant from notions of courage as extreme or dramatic physical heroism.

6. *What are the factors that have influenced the contemporary attitude of the state and the society towards homosexuality in India? Also, comment on the changing attitude and the factors driving this change.*

Approach:

- State the factors that are affecting currently held attitude towards homosexuality in India.
- Mention the factors that result in changing attitude towards homosexuality and what this change is all about.
- End with a way forward.

Answer:

While acceptance of homosexuality has not been fully entrenched in India, there is a shift in stance of the society and state regarding it. The factors that have influenced the contemporary attitude include religion, international discourse, individual rights, legal pronouncements, advancement of medical understanding, etc.

Reasons for the attitude opposing homosexuality:

- At the core lies the question that is it the natural expression of sexuality or merely a product of closet desires? Those opposed to homosexuality generally consider it to be the latter.
- **Religion:** Major religions such as Islam and Christianity consider homosexuality to be a sin explicitly. Further, religious groups of all major religions support criminalizing homosexuality.
- **Traditional values:** Indian culture espouses marriage, procreation and continuity of traditional values. People suppress homosexual tendencies to prevent ostracization by family members.
- **Social stigma:** For many Indians, homosexuality is still a taboo and a Westernized concept.
- **Legal provisions:** Section 377 of IPC criminalizes homosexuality and thus strict legal provisions have also shaped the attitude.
- **Political reasons:** The political class has shown apathy to LGBT rights in India mainly due to prevailing attitude in the society which can affect vote bank.
- Homosexuality has been considered a medical problem and claimed to be treatable with indigenous therapy.

However, off late, there has been considerable shift in the attitude of some sections of the society which led to the filing of PIL to quash the law criminalising homosexuality.

Reasons for the changing social attitude towards homosexuality:

- **Globalisation:** With the free flow of information and ideas, the liberal attitude towards homosexuality held found in the developed world is being adopted by Indians as well.
- **Social media:** Social media networks are important platforms to accommodate homosexuals who need a support system.
- **Film industry:** The film industry is also increasingly depicting favourable attitude towards homosexuals.
- **Support from organizations:** Organisations like Humsafar Trust, Naz Foundation etc. support decriminalising homosexuality. They are aided by the favourable judgements by the higher judiciary, like in 2017; the SC stated that freedom to express sexual orientation is guaranteed under Article 21.
- **Open social support:** There is increasing youth support through participation in events like gay parade in Delhi, Bangalore etc.

Thus, both legal and social attitudes regarding homosexuality are witnessing change. There is a need to support legal rights of the LGBT community and develop positive social attitude towards them to prevent marginalization.

11. Previous Years Vision IAS GS Mains Questions: Case Studies

1. *You are posted as a District Collector in one of the districts in India. It has been brought to your notice that a structure has been built by few members of a religious community on the public land without getting due permissions. In keeping with the guidelines of the Supreme Court of India, disallowing the construction of any permanent religious structures on public land, you are contemplating its removal. However, the leaders of the community in question have requested you to permit the structure saying that it is for the period of month long religious festival only. Moreover they say that there is no other religious place nearby where community members can celebrate their festival. Your seniors and the political leader of the area*

also support their views. However you are skeptical that after the festival is over, it may not be easy to remove the religious structure from the public land due to the involvement of community members at large.

1. Perform an objective and subjective analysis of the case.

2. What will you do in such a situation?

Answer:

Objective Analysis:

- The constitution of India caters to treat everybody as equal before of the law irrespective of his religion. Thus, religious community in the question should not be dealt with any special treatment.
- As a civil servant an officer should follow the guidelines of SC as its interpretation is final and binding in India.
- If he violates the law he has to answer to his superior for such a violation.
- The religious community too is part of Indian population. Therefore, their customs and beliefs should be respected.

Subjective Analysis:

Religion plays an important part in lives of people in India. If the structure is removed, the action can be given a communal color. Since our model of secularism respect all the religion equally, their sentiment should also be respected. Leadership quality of civil service also demands not to antagonize any community.

Course of Action:

1st Approach

Firstly, leaders of the community should be persuaded that though District Administration fully respect the values and customs of their religion but due strict guideline administrators have to suffer from penal action if structure is not removed.

Second, if leaders do not agree, then the matter should be discussed with the superiors that are there any authority which can give such permission. If it is not possible, then he should remove the structure.

If such solution is not available, then he should check whether it is possible to limit the number of people attending the festival, based on law and order administration available and with the help of leaders of the community? If it is possible, then he can allow them to take up the festival because structure can be removed later if number of people involved is not much. If it is not possible, then he should remove the structure.

2nd Approach

Community activities can be taken up on a government land but proper permission needs to be taken so I will ask to that community to take requisite permission in written manner.

As a district officer it is my responsibility to maintain law and order and peace in district and also to ensure sentiments of community is not hurt. Therefore to maintain such balance permission will be granted till festive month but after that demolition will be carried out under municipal act, following proper procedures and discussions with influential and important members of religious community such that peace would not be disturbed.

2. *You are the director of a unit in a regulatory agency that is charged with monitoring the use of potentially harmful commercial chemicals. Geeta, a junior project manager under your supervision, is responsible for studying a broad-spectrum insecticide that is used not only in agriculture by small food-grain farmers and cotton farmers, but also in the livestock sector as an animal spray. She has been assigned to determine whether this product should be removed from the market. At a social event, Geeta met a man named Siddharth, who she later learned was the Mumbai representative for the insecticide manufacturer. After meeting Siddharth several times, she became rather fond of him and wanted to pursue the relationship further. However, Geeta realized that their professional roles created a potential conflict of interest for her, and she decided to tell you about the situation. She intended to continue seeing Siddharth and said she considered herself mature enough to maintain a separation between her professional and private lives. Geeta insisted that her feelings for Siddharth would not influence her judgment in any way; in fact she and Siddharth had never even discussed the chemical in question. What would you do in such a situation? While you evaluate the alternatives available to you, what are the moral codes and maxims that come to your mind as reference points for arriving at a decision?*

Answer:

1st Approach

Approach

In this case the ethical situation is not much clear. Has Geeta done anything that represents a breach of professional ethics? Because of her relationship with Siddharth, it might well be difficult for her to maintain objectivity in discharging her duties. But perhaps it might not be. People differ in their ability to manage tensions of this kind. And what is your responsibility? Is it more important to avoid even the appearance of unethical conduct within your organization or to support an employee's right to freedom in her private life? Should Geeta be trusted until her behaviour demonstrates otherwise? Examine your alternatives and arrive at a suitable conclusion.

Answer

You have to think about how to handle this highly sensitive situation. Some alternatives may come immediately to your mind:

1. Order Geeta to stop seeing Siddharth
2. Transfer her to another task
3. Discuss the matter with your superior
4. Trust Geeta to do the job without being biased by the relationship

Then you consider the possible consequences:

- Geeta may resign
- Progress on investigating the chemical may be delayed
- The media may pick up the story
- A biased decision may be reached about the chemical, with serious consequences for the public
- You may be blamed for irresponsible conduct if your superior discovers the relationship without being informed by you

As you evaluate the alternatives and their possible consequences, various moral rules and maxims come to mind as reference points for arriving at a decision:

- "You should be fair with subordinates under your supervision." Would you handle this situation differently if it involved a male member of your staff?

- “Avoid even the appearance of evil.” Even if Geeta performs in an objective, professional manner, will the credibility of your organization be eroded if this situation is picked up by the press?
- “Honesty is the best policy.” If you take any action that Geeta perceives as punishment or distrust, are you discouraging honest communication from your staff? Should you tell your superior, or should you maintain Geeta’s confidence and accept responsibility for dealing with the situation yourself?

As we review the facts of the case, the alternatives for action, and their likely consequences on the one hand, and associate them with our stock of relevant moral rules on the other, the field of alternatives begins to narrow and one or two rules emerge as crucial. We can move towards a decision, with the practical consequences and the moral justification related in some way that is acceptable to us.

After defining the situation as objectively as possible and defining the ethical issue, the most difficult requirement is resisting the inclination to view the alternatives in dichotomous terms, as meaning that you must do either this or that. Either you tell Geeta to stop seeing Siddharth, or you trust her to handle the relationship in a professional manner. This either-or view is the most common trap in the ethical process. Rarely does such an ethical issue have only two or three possible solutions: If you tell Geeta to stop seeing Siddharth, what is the likely outcome? What if you transfer her to another position? Ask another member of the staff to work along with her? Tighten your supervision of her work? What chain of events will likely unfold, and toward what end?

There may also be regulations concerning conflict of interest that could apply to this case. Moreover, the importance of individual dignity should be considered along with respect for privacy: values that are highly important. The question is not only whether you should observe the regulations or be responsive to Geeta’s wishes. Rather, it is a matter of how the intent of the regulation can be upheld while still showing respect for Geeta’s dignity and privacy. The tension between these two obligations is a healthy one for any superior to address and reflect on. Simply ordering Geeta to stop seeing Siddharth would be treating her in a mechanical and disrespectful manner, but simply giving in to her would run the risk of accepting real or perceived conflicts of interests.

Thus one solution might be to talk it through with her, offering assurance that you understand her dilemma and want to be helpful. You might then discuss the various alternatives for protecting her dignity and privacy while fulfilling your duty to the law. You should attempt searching her for a win-win solution that does not punish her for having a private life outside work.

2nd Approach

Analysis

- Regulatory organization is very crucial as it can affect the lives of people, animal and environment. Geeta’s relationship can have detrimental effects on the stakeholders.
- If this issue comes into the public domain, people can lose the faith in regulatory framework of the country.
- Though Siddharth have not asked her to help in this matter, but in future it can happen.
- If she is not allowed to continue her relationship, it can affect her efficiency.

My action

First, I will find out whether code of conduct or code of ethics of the organization clearly debar such relationship. If it is so, then I will convey it to Geeta. I will also explain how important it is to remain neutral in regulatory works. I will explore the options of transferring her to some other departments. If no other solution work, I will ask her to make a choice between the relationship and the office.

If no code anywhere mention about such relationship, even then I owe the responsibility to carry out the regulatory functions with autonomy and unbiased. Thus, I will transfer the case of Siddharth's company to the other officials than Geeta.

Student Notes:

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Heartiest Congratulations to all successful candidates

10 IN TOP 10 SELECTIONS IN CSE 2020

FROM VARIOUS PROGRAMS OF VISION IAS

1
AIR



**SHUBHAM
KUMAR**

2
AIR



**JAGRATI
AWASTHI**

3
AIR



**ANKITA
JAIN**

4
AIR



**YASH
JALUKA**

5
AIR



**MAMTA
YADAV**

6
AIR



**MEERA
K**

7
AIR



**PRAVEEN
KUMAR**

8
AIR



**JIVANI KARTIK
NAGJIBHAI**

9
AIR



**APALA
MISHRA**

10
AIR



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